TOWN OF THUNDERBOLT
REGULAR MONTHLY MEETING
WEDNESDAY, SEPTEMBER 14, 2022
6:00 PM

AGENDA HEARING

Public has three minutes per person to ask questions or comment on any agenda item.

REGULAR MEETING

1. **Call to order**

2. **Roll Call by Presiding Officer with Invocation, followed by the Pledge of Allegiance**

3. **Approval of Meeting Agenda**

4. **Approval of Minutes from Previous Meeting**: **pg. 3 – 10**
   Minutes of August 10, 2022

5. **Presentations:**

   a) Lieutenant Brandon Runyon's Promotional Ceremony
   b) Recognition of Officer & Firefighter of the Year – Officer CJ Wilson and Mathew Harrell
   c) Life Saver Awards **pg. 11**
   d) Finance Report:

6. **Consent Agenda:**

   a) Approval of Home Occupation Business License for Home Vistas LLC, 3306 Gragg St. **pg. 12 – 15**

   b) Approval of Outdoor Activity Permit for American Legion Post 182 Turkey Shoot, October – December and Waive Fee. **pg. 16 – 21**

   c) Approval of Contract with Witt O'Brien's LLC for Debris Monitoring and Public Assistance Consulting Service. – Council Approved – Reviewed and approved via legal. **pg. 22 – 46**

   d) Approval of Contract with Ceres Environmental Services, Inc as Primary Disaster Debris Hauler. Approved via Council – Reviewed and approved via legal. **pg. 47 – 69**

   e) Approval of Contract with Simple Savannah Marketing for Blessing of the Fleet – Only Cost is Deposit and that will be refunded upon sponsorship – Reviewed and approved via legal. **pg. 70 – 72**
   f) Approval of Cummings Generator Contract - Best cost and value and continuing relationship with vendor - – Reviewed and approved via legal. **pg. 73 – 82**

g) Approval of Eric Fournier, IT, Lease Agreement - Will use unused office in the Senior Center – This will be an exchange for services, where we no longer pay for any overages for time in exchange for space – estimated cost savings for the Town of $5,000 - $6,000 annually – Reviewed and approved via legal. pg. 83 – 84

7. **Discussion Agenda:**

8. **Town Administrator Report:** Town Administrator, Bob Milie **pg. 85 - 88**

9. **Department Report –** Written Reports Submitted

by: **Police / Municipal Court / Neighborhood Watch – Sean Clayton, Chief of Police** **pg. 89 – 90**
Fire –Fire Chief, Andrew Bateman **pg. 91 – 94**
Public Works Department – Oscar Crosby, Public Works Manager **pg. 95 – 105**

10. **Legal Report – Town Attorney**

11. **Mayor and Council –**

a) TDRUP Ad hoc Committee Council Member Drohan **pg. 106 -127**
b) Thunderbolt Museum Report

12. **Executive Session-** Mayor requests a motion and a second to recess into executive session for the purpose of Legal, Real Estate and/or Personnel matters.

13. **Adjournment:**

TOWN OF THUNDERBOLT
REGULAR MONTHLY MEETING
WEDNESDAY, AUGUST 10, 2022
6:00 PM
REVISED

AGENDA HEARING

Public has three minutes per person to ask questions or comment on any agenda item.

Jan Yarbrough, 24 Bonaventure Rd., requested Mayor and Council respond to the request from over 30 people asking them to rescind the rezoning of five properties on River Dr. Ms. Yarbrough asked why did the Town rezone and not the owners? Town Attorney Barrow stated staff saw a gap in the River Drive District and brought this to Council's attention. She asked if the property owners were notified before going to Planning & Zoning. They were notified during the process. She asked why include Center Street? Town Attorney Barrow stated for continuity. Ms. Yarbrough asked why did staff and Council not follow the ordinance of an application. Town Attorney Barrow explained the town does not have to do an application. The Council's motion was the application. Ms. Yarbrough stated Council Member Crenshaw did not reveal financials. Town Attorney Barrow explained that is true and can be rectified now but everyone on Council was aware he owned two of the parcels. Ms. Yarbrough read off a list of items not met: the requirements for a text amendment was not met. A map was not attached to the application. Public notices were not verified. Ad was in the newspaper did not have the names of the property. Letter did not go out. A report was not submitted to Council from Planning and Zoning. Town Administrator Milie stopped Ms. Yarbrough as stated it would be easier one question at a time. Town Attorney Barrow explained the meeting minutes was the report. He then explained the process staff and Council followed. He explained staff made an error in the newspaper ad for the March Council Meeting. The petition was moved to the April Meeting. The newspaper made an error with the April ad and the petition had to be moved to the May meeting. Letters were mailed out before each meeting. The PIN numbers and addresses were on the letters. As for rescinding the rezoning, Mayor and Council are the ones to make that decision.

Town Administrator Milie stated as staff had explained several times before in the previous meetings Center Street was included to create a contiguous line. We corrected the spot zoning that was created when River Drive and Victory Drive Districts were created.

Council Member Lavin spoke about not agreeing with the decision and had voted against the rezoning.

Geneva Golden, 3126 Gilbert St., asked who or what is considered the town? Town Attorney Barrow explained the town in his response was Mayor and Council.

Mayor Williams closed the hearing at 6:30 pm

MILLAGE RATE PUBLIC HEARING

Public has three minutes per person to ask questions or comment on millage rate.

Mayor Williams opened the millage public hearing at 6:30 pm. Town Administrator Milie stated this is the 3rd meeting in compliance with the state law. The current millage is 6.132. Staff recommendation was to maintain the same

millage rate. This is considered an increase. Holding at the current millage rate, instead of rolling back, will assist in maintaining the current budget.

Beth Goette, 3006 Leonard St, asked why is the percentage 11.7% at the bottom so high. Town Administrator Milie stated he was not sure. He did not believe the number was wrong. He believed if we adopt the complete rollback, it would be a 11.7% difference to holding the current rate. Council Member Drohan explained the County values the property. Council Member Drohan asked Town Administrator Milie the difference in the budget holding at the current millage. Town Administrator Milie stated it is an approximate $75,000 added to the budget. Council Member Crenshaw asked Town Attorney Barrow to explain Stevens-Day Bill. Town Attorney Barrow explained on your primary home the assessed value will stay at the price of your home when you completed the filing with the County until selling or pass to heirs.

Mayor Williams closed the hearing at 6:45 pm

REGULAR MEETING

1. **Call to order**

Mayor Williams called the regular meeting to order at 6:45 pm.

2. **Roll Call by Presiding Officer with Invocation, followed by the Pledge of Allegiance**

Those in attendance were Mayor Dana Williams and Council Members: Dave Crenshaw, Larry Ward, Ed Drohan, James Lavin, and Brooks Barbaree. Council Member Bethany Skipper-Greer was virtual. Staff in attendance were: Town Administrator, Bob Milie; Town Attorney, Charlie Barrow; Town Clerk, Deatre Denion; Accts Payable/Utiltiy Manager, Katina Spaulding, Police Chief, Sean Clayton; Fire Chief, Andrew Bateman and Customer Service Clerk, Renee Holmes.

3. **Approval of Meeting Agenda**

Mayor Williams asked for a motion to approve the agenda. **Council Member Ward made the motion to approve with a second from Council Member Drohan. The motion passed unanimously.**

4. **Approval of Minutes from Previous Meeting**:
   Minutes of July 13, 2022

Mayor Williams asked for a motion to approve the July 13th meeting minutes. **Council Member Ward made the motion to approve with a second from Council Member Drohan. The motion passed unanimously.**

5. **Presentations:**

   a) Atlantic Waste

Mallory Boyd, Atlantic Waste, explained there has been a recent change in drivers. To keep the integrity of the collections, on Monday for recycling the truck will stop and check in with Town Hall. They will provide a list of the containers not dumped due to contamination and to make sure no containers were missed. They will do the same with Trash and Yard waste on Tuesday. Tags will be placed for violations of the policy. Mayor Williams asked if glass was now ok. Ms. Boyd stated no glass. They will only pick up 4 X 4 piles of yard waste. If we do not set a limitation, we will not complete services in a day. They do pick up bulk items such as grills, stoves and old furniture; but cannot pick up refrigerators. Council Member Drohan asked if they will dump the old green bins for yard waste. Ms. Boyd stated they prefer 4 X 4 pile and yard waste bags. Mayor Williams asked Ms. Boyd to explain about contamination for recycling. She explained it only takes 15% or 20% contamination to prevent recycling the truck. She explained general trash is the biggest issue. Council Member Ward asked this information to be in the newsletter.

   b) Finance Report:

Shannon Brett, CPA firm, provided an overview. Everything has been updated through July. The Town has spent 2.6 million, 51% of the budget.

6. **Public Hearing for Planning and Zoning**

a. **Petitioner:** Nona & Ray Darley
Request: Property Line Adjustment
Parcel Involved: 3-0009-01-030 and 3-0009-01-031
Location: 24 & 22C Brightwater Dr.
P & Z unanimously approved the petition

Clerk of Council Denion explained the Darleys sold the adjacent property to a relative and wish to provide a little more yard. This was agreed upon in writing at the sell. Mayor Williams asked for a motion. **Council Member Drohan made the motion to approve the petition with a second from Council Member Ward. The motion passed unanimously.**

b. **Petitioner**: Kay McCafferty
Request: Setback Variance
Parcel Involved: 3-0005-01-014
Location: 3227 Bannon Dr.
P & Z unanimously approved the petition

Petitioner, Kay McCafferty, explained they need variance to build a carport. **Council Member Barbaree made the motion to approve the petition with a second from Council Member Drohan.** Council Member Drohan explained he was at the P & Z meeting and stated Ms. McCafferty did a great job illustrating the request for the board to understand. This petition will provide a continuity of the block. **The motion passed unanimously.**

Petitioner: 209 Bonaventure Rd LLC
Request: Variance for Parking and Number of Units
Parcel Involved: 3-0001-02-010
Location: 209 Bonaventure Rd.
P & Z unanimously denied the petition

Clerk of Council Denion explained the request is a variance to allow up to 96 units over 63 units that are allowed. They also are requesting a reduction in the number of parking spaces. Staff did not recommend approval due to putting the town to its sewer capacity limits. P & Z unanimously denied the petition. **Council Member Drohan made the motion to deny with a second from Council Member Crenshaw.** Council Member Drohan stated this petition is what instigated a discussion for later on in the meeting on infrastructure. **The motion passed unanimously.**

7. **Consent Agenda:**

a) Approval of Staff Modifications
b) Approval of the Police Department Vehicle Purchase

Council Member Ward made the motion to approve the Consent Agenda with a second by Council Member Drohan. The motion passed unanimously.

8. **Discussion Agenda:**

a) Approval of the Milage Rate

DRAFT

Town Administrator Milie stated there have been three meetings. Staff recommendation was to adopt the maintenance of 6.132. He clarified the net increase of 11.7 % is the difference of the roll back to the proposed millage. **Council Member Crenshaw made the motion to approve staff recommendation with a second from Council Member Ward. The motion passed unanimously.** Council Member Barbaree stated if you look at other communities there is a large increase in the net increase.

b) Discussion and Approval of the Disaster Monitoring Contract

Town Administrator Milie stated there were four bids and they all met requirements. After scoring the bids, they all were equal so they looked at the financials. Staff recommends Witt O'Brian since they came in a little less and are our current monitor. **Council Member Crenshaw made the motion to approve the recommendation with a second from Council Member Ward. The motion passed unanimously.**

c) Approval of Planning and Zoning Commissioner Appointments

Mayor Williams stated the recommendation for Planning and Zoning appointments are Richard Schleicher, Krista Kilburn and Sean Compton. **Council Member Crenshaw made the motion to approve the appointments with a second by Council Member Drohan. The motion passed unanimously.**

~~d) Approval of Savannah Simply Marketing Contract for 2023 Blessing of the Fleet~~ removed until Sept.

9. **Town Administrator Report:** Town Administrator, Bob Milie
   a) AARP Certification
   b) Website and STR Update
   c) Grass Cutting Update

Town Administrator Milie stated the STR host compliance with Granicus should start September 8. The website is in collection of content phase.

Town Administrator Milie explained AARP recognized Town of Thunderbolt as an age friendly community. He presented the certification to Mayor and Council.

10. **Department Report –** Written Reports Submitted

by: Police / Municipal Court / Neighborhood Watch – Sean Clayton, Chief of Police

Town Administrator Milie explained there was a robbery of a very violent nature. The police were able to arrest a suspect by noon the next day. Mayor Williams stated the suspects from the shooting that happened several weeks ago were apprehended. The stolen trailer was recovered. Council Member Skipper-Greer asked about the speed cameras on Whatley. Chief Clayton stated they are working and run from 6:45 am to 7:45 am then from 2 pm to 3 pm.

Fire –Fire Chief, Andrew Bateman

Chief Bateman stated they are currently shorthanded. He recognized Josh Moeller for stepping up during this time. Council Member Drohan asked how construction is going at the Firehouse. Chief Bateman stated everything is framed out.

Public Works Department – Oscar Crosby, Public Works Manager

Council Member Brooks pointed out the landscaping the staff have been working on at Thompson Park and other locations.

11. **Legal Report – Town Attorney**

a) Rezoning of five properties to River Drive District

DRAFT

12. **Mayor and Council –**

a) Thunderbolt Development and Resource Utilization Project – Council Member Drohan
See notes

The Changing Face of Thunderbolt

To address the structural and infrastructure needs of our town, anticipating future needs is central to that task. The data that drive these decisions are often a function of longer-term trends that reflect the transformational capacity of cultural factors such as education, lifestyle priorities as well as the financial realities of living in a part of the world where it seems like everyone wants to live.

The following are sets of comparative and current data reflecting the evolving trends that impact the Town Thunderbolt and necessarily drive the choices that we will need to make as a community in both the near and long-term.

Thunderbolt, GA Demographic Data

Census Year	2010	2020	
Population	2668	2638	
Factors			
Mean Age	39.2	49.8	
Under 17	17.6	14.4	(1-19)
18-24	9.2%	7.0	(20-24)
25-44	28.1%	35.8%	
45-64	23.8	27.6	
65+	21.2	26.4	

The Population of Thunderbolt is relatively steady over the past 15 years and has become notably older over the past decade.

Households	1088	1091
Average Household Size	2.19	2.01
Median Income	$45,327	$60,819 (2019)

The number of households are relatively even over the past decade though household size has dropped by about 20%.

Number of Residences	1382	
Single Units		54%
Occupied		91%

DRAFT

Owner Occupied	59%
Rental	41%

Currently, the residences in Thunderbolt are evenly split between single units and condominiums and apartments.

Property values are about 20% higher than the Savannah area and 25% higher than the State of Georgia.

Education Attained	Percentage	
	2010	2020
	(Unavailable)	
Less Than 9th Grade		3.33%
9th to 12th Grade		10.09%
High School Graduate		23.37%
Some College		17.91%
Associates Degree		5.17%
Bachelor's Degree		20.33%
Graduate Degree		19.80%

The educational attainment of the citizens of Thunderbolt is about 25% higher than the Savannah area and the State of Georgia.

Per capita income is about 20% higher than the Savannah area and the State of Georgia.

Thunderbolt continues to be a consistently diversified community over the past 10 years.

About 60% of the population self-describe as White Collar or Professional.

SUMMARY

1- The Population of Thunderbolt is relatively steady over the past 15 years and has become notably older over the past decade.

2- The number of households are relatively even over the past decade and the household size has dropped by about 20%.

3- Currently, the residences in Thunderbolt are fairly evenly split between single units and condominiums and apartments.

Property values are about 20% higher than the Savannah area and 25% higher than the State of Georgia.

4- The educational attainment of the citizens of Thunderbolt is about 25% higher than the Savannah area and the State of Georgia.

Per capita income is about 20% higher than the Savannah area and the State of Georgia.

Thunderbolt continues to be a consistently diversified community over the past 10 years.

DRAFT

About 60% of the population self-describe as White Collar/Professional.

In other words, our citizens are a diversified group of older, generally better educated individuals living in smaller family units.

More of our citizens self-identify as white-collar and professional.

The relatively higher property values likely reflect the desirability of living in Thunderbolt suggesting future pressures on the development of available properties that exist here.

In addition to these data, many people have commented on how Thunderbolt is becoming a prime area for first-time homebuyers, bringing in younger couples and growing families.

All of these factors impact the evolving "Face of Thunderbolt" and as such directly impact the decisions that we need to make as a town for our mutual long-term welfare.

The recent requests for variances on property development have highlighted a notable problem with regards to the upper limits of sewer resources allowed us by our contract with the City of Savannah and the clear messages from them that those limits are unlikely to be increased. Though these issues have been focused upon the 7-acre tract along Bonaventure Avenue, I believe that this is in fact a town wide issue and deserves to be addressed by then Council in the near term.

In pursuit of that goal, I have asked our folks in administration to create a listing of undeveloped/underdeveloped properties in Thunderbolt so that we can then approach the likely future demand of development in Thunderbolt relative to the realities of our limited capacities in a manner that is responsible to our citizens and equally respects the rights of all property owners in Thunderbolt.

To that end, I have formulated some "Development Zones" that I think reasonably identifies the category and location of properties whose development will likely place demands on our infrastructure. Furthermore, I have taken a stab at identifying "Development Factors" that should reasonably be assessed for each of these categories.

The goal of course would be to operationalize a clear understanding of the nature and degree of future development demands and to assess those alongside the realities of our limited infrastructure capacities.

Please review the following information and feel free to help me create a more thorough list of Development Zones and Development Factors as well as recommending additional factors relative to this issue that you believe are important.

Development Zones

River Drive

Victory Drive

Shell Road Corridor

Bonaventure Ave

Downing Ave

Individual Lots (Undeveloped)

Blighted Properties

Development Factors

Density (Per Current Code)

Water Usage/ Density Unit

DRAFT

Sewer Usage/ Density Unit

Drainage Requirements

Improvement Requirements

Water Infrastructure

Sewer Infrastructure

Drainage Infrastructure

Roadway/ Transportation Infrastructure

Council Member Lavin asked about sewer capacity. Town Administrator Milie stated the Town uses 320,000 a day with 500,0000 allowed gallons.

b) Thunderbolt Museum Report

Anna Maria Thomas stated there will not be a spaghetti dinner this year. There will be multi-vendor sale September 24th. They are looking for donations. The museum has had some updates with a new fire wheel.

Mayor Williams asked for a motion to adjourn into executive session. **Council Member Ward made the motion with a second from Council Member Crenshaw. The motion passed unanimously.**

13. **Executive Session-** Mayor requests a motion and a second to recess into executive session for the purpose of Legal, Real Estate and/or Personnel matters.

Mayor Williams asked for a motion to return to regular meeting. **Council Member Ward made the motion with a second from Council Member Crenshaw. The motion passed unanimously.**

Mayor Williams asked for a motion to adjourn. **Council Member Ward made the motion with a second from Council Member Crenshaw.** Town Administrator Milie stated for the record before they adjourn**,** Council supports the Police Chief and his department. **The motion passed unanimously.**

14. **Adjournment:**

The meeting adjourned at 8:06 pm.

DRAFT

Recognition of Life Saving Awards

The Town of Thunderbolt believes in recognition of our employees, their actions, and outstanding efforts to their community, concurrently, we desire to recognize those in and around the community when their actions go above and beyond. In keeping with this belief, the Town of Thunderbolt Mayor, Council and Thunderbolt Police and Fire Departments recognize the following individuals for their outstanding efforts on August 19th, 2022.

Fire Fighter Kristopher Fain – Meritorious Life Saving Award

Paramedic Heather Fain – Outstanding Citizen Life Saving Award

Police Chief Sean Clayton – Letter of Commendation

Police Lt. Brandon Runyon – Letter of Commendation

Fire Chief Andrew Bateman – Letter of Commendation

Fire Fighter Drew Davies – Letter of Commendation

Fire Fighter Frank Koualczuk – Letter of Commendation

While attending the Savannah Bananas baseball game at Grayson Stadium for a Thunderbolt employee appreciation event. Thunderbolt off-duty police, fire fighters, and their families answered two medical needs that arose. Their actions performed seamlessly and professionally resulted in performing life-saving CPR on an active player in cardiac arrest on the field, as well as revival and medical care for a spectator that had passed out.

These individuals without hesitation jumped the fence to the field, performed hands on patient assessment, ensured access to perform CPR and apply the AED to deliver shocks, when necessary, to the patient and restart his heart. Concurrently, police ensured the scene was secure and access available for EMS. Immediate medical intervention coupled with use of the AED (Automated External Defibrillator) ensured that not only was the player saved, he was able to walk off the field under his own strength.

These actions are the backbone of what we strive for in the Town of Thunderbolt, providing assistance, getting involved, and ultimately helping the people you have sworn to protect. Your actions reflect great credit upon yourself, Thunderbolt Police & Fire Department, and the Town of Thunderbolt.

Therefore, it is my honor as Mayor of the Town of Thunderbolt to bring down my hand and seal these Unit Citations and Individual Commendations of Life Saving Award Letters to express my and the Town's appreciation for all of your efforts.

TOWN OF THUNDERBOLT
Application for Home Occupation Permit

[X] New Application [ ] Renewal Application (for 2022 year)

Home Occupation: An occupation customarily carried on within a home for gain or support; involving the sale of only those articles, products, or services produced on the residing in such dwelling unit, using only such equipment as is customarily found in a home and involving no display of articles or products. A home occupation shall include the boarding of not more than two non-transient guests. A beauty parlor operating in a room separate from, but attached to a dwelling unit and using equipment other than that customarily found in a home, shall be defined as a home occupation under the following specific conditions:

a. Such beauty parlor shall occupy not more than 500 square feet of floor area.
b. There shall be no more than two employees, both of whom shall reside in the dwelling unit to which the beauty parlor is attached.

1. Name and Type of business to be conducted under this home occupation permit.
Home Vistas LLC Residential Remodeling Specializing in Doors and Windows

2. Address where home occupation will be operated:
3306 Gragg St. Savannah, GA 31404

3. Town of Thunderbolt Classification for address where home occupation is to be permitted.
_____

4. Does the applicant live at the above address?
Yes

5. Is the home occupation to be operated entirely within the dwelling in which the applicant lives? No Is the space used for such home occupation also for household purposes? Yes, most business will be conducted away from the home

6. Are the applicant and his/her immediate family the only persons who will engage in the home occupation? ~~Yes~~ No, Sub contractors will be used as well

7. Do all persons who will work in within the home occupation permit live in the dwelling in which the home occupation will be conducted? Yes
List Complete Name of Persons: Trenton McElreath
Print

8. Will there be a sign necessary to advertise the home occupation? No

9. Will there be any outward evidence of such Home Occupation, such as a display of goods, or the accumulation of trash, or the storage of materials, or the loading or unloading of trucks? No

10. List the name/address/contact phone number of property owner if different from applicant. _____

11. If applicant is different from property owner of record, a statement of consent MUST accompany this application (this should be a notarized statement). Is that document provided? _____

12. **Applicant:** Please list name and addresses of the adjoining property owners. The Town of Thunderbolt will contact them to inform them of your application.
- Board of Regents of the University System - Lot 15 & 16 Gragg St.
- Joan, Frank, & Robert Gordon - 3302 Gragg St.
- Bonita LaPread - 3307 Gragg St.

The applicant who, being duly sworn, deposes and says that the above statements are true and correct to the best of the applicants knowledge.

Applicant Signature — 08/29/2022 Date

Trenton McElreath
Print Name — Phone Number

Signature of Notary — 8/29/22 Date

BROOKE EADDY NOTARY PUBLIC EXP. Jan. 11, 2026 CHATHAM COUNTY, GA

NOTICE TO ALL APPLICANTS FOR HOME OCCUPATION: The Town of Thunderbolt issues all home occupation permits for a period not to exceed one year. These applications are reviewed by the Mayor and Aldermen in December of each calendar year. In addition to this application a separate business license must be applied for.

FOR TOWN OF THUNDERBOLT USE ONLY

Application Final Determination: APPROVED [ ] DENIED [ ]

If denied state reason: _____

Permit Number_____ Permit Paid: _____ Date: _____/_____/_____

Initials _____

IRS DEPARTMENT OF THE TREASURY
INTERNAL REVENUE SERVICE
CINCINNATI OH 45999-0023

Date of this notice: 03-08-2022

Employer Identification Number:
88-1102878

Form: SS-4

Number of this notice: CP 575 G

HOME VISTAS LLC
TRENTON MCELREATH SOLE MBR
3306 GRAGG ST
SAVANNAH, GA 31404

For assistance you may call us at:
1-800-829-4933

IF YOU WRITE, ATTACH THE
STUB AT THE END OF THIS NOTICE.

WE ASSIGNED YOU AN EMPLOYER IDENTIFICATION NUMBER

Thank you for applying for an Employer Identification Number (EIN). We assigned you EIN 88-1102878. This EIN will identify you, your business accounts, tax returns, and documents, even if you have no employees. Please keep this notice in your permanent records.

Taxpayers request an EIN for their business. Some taxpayers receive CP575 notices when another person has stolen their identity and are opening a business using their information. If you did **not** apply for this EIN, please contact us at the phone number or address listed on the top of this notice.

When filing tax documents, making payments, or replying to any related correspondence, it is very important that you use your EIN and complete name and address exactly as shown above. Any variation may cause a delay in processing, result in incorrect information in your account, or even cause you to be assigned more than one EIN. If the information is not correct as shown above, please make the correction using the attached tear-off stub and return it to us.

A limited liability company (LLC) may file Form 8832, *Entity Classification Election*, and elect to be classified as an association taxable as a corporation. If the LLC is eligible to be treated as a corporation that meets certain tests and it will be electing S corporation status, it must timely file Form 2553, *Election by a Small Business Corporation*. The LLC will be treated as a corporation as of the effective date of the S corporation election and does not need to file Form 8832.

To obtain tax forms and publications, including those referenced in this notice, visit our Web site at www.irs.gov. If you do not have access to the Internet, call 1-800-829-3676 (TTY/TDD 1-800-829-4059) or visit your local IRS office.

(IRS USE ONLY) 575G 03-08-2022 HOME O 9999999999 SS-4

IMPORTANT REMINDERS:

* Keep a copy of this notice in your permanent records. This notice is issued only one time and the IRS will not be able to generate a duplicate copy for you. You may give a copy of this document to anyone asking for proof of your EIN.

* Use this EIN and your name exactly as they appear at the top of this notice on all your federal tax forms.

* Refer to this EIN on your tax-related correspondence and documents.

* Provide future officers of your organization with a copy of this notice.

Your name control associated with this EIN is HOME. You will need to provide this information along with your EIN, if you file your returns electronically.

Safeguard your EIN by referring to Publication 4557, Safeguarding Taxpayer Data: A Guide for Your Business.

You can get any of the forms or publications mentioned in this letter by visiting our website at www.irs.gov/forms-pubs or by calling 800-TAX-FORM (800-829-3676).

If you have questions about your EIN, you can contact us at the phone number or address listed at the top of this notice. If you write, please tear off the stub at the bottom of this notice and include it with your letter.

Thank you for your cooperation.

Keep this part for your records. CP 575 G (Rev. 7-2007)

Return this part with any correspondence so we may identify your account. Please correct any errors in your name or address.

CP 575 G

9999999999

Your Telephone Number ( ) -

Best Time to Call

DATE OF THIS NOTICE: 03-08-2022
EMPLOYER IDENTIFICATION NUMBER: 88-1102878
FORM: SS-4 NOBOD

INTERNAL REVENUE SERVICE
CINCINNATI OH 45999-0023

HOME VISTAS LLC
TRENTON MCELREATH SOLE MBR
3306 GRAGG ST
SAVANNAH, GA 31404

TOWN OF THUNDERBOLT
PERMIT APPLICATION FOR COMMERCIAL OR BUSINESS OUTDOOR ACTIVITY EVENT OR EVENTS

APPLICANT NAME: Joseph S. Higgins

BUSINESS NAME: American Legion Post 184

ADDRESS: 3003 Lowland Ave Thunderbolt, GA 31404

TELEPHONE: (912) 354-5515 Cell (912) 414-8120

ACTIVITY EVENT PURPOSE: Post Turkey Shoot

DATE OR DATES OF EVENT: October Thru December
SPECIFY: DAY OR DAYS: Friday & SAturday Nights

TIME OF EVENT: BEGINS 7pm ENDS 10pm

PLEASE CHECK AND NOTE NUMBER(S) THE FOLLOWING IF APPLICABLE:

APPLICANT WILL HAVE THE FOLLOWING PRESENT AT THE ABOVE EVENT:

____ FOOD- **SPECIAL/TEMPORARY FOOD PERMIT IS REQUIRED BY THE CHATHAM COUNTY HEALTH DEPT FOR PUBLIC EVENTS**
If the applicant or business has a current Food Permit from the Chatham County Health Dept. Please provide the following information on this permit:
Permit No. _____ **Date** _____ **Expires** _____

____ ALCOHOLIC BEVERAGES – **A SPECIAL/TEMPORARY PERMIT IS REQUIRED FROM THE TOWN OF THUNDERBOLT AND ALSO THE GEORGIA DEPT OF REVENUE.**
If applicant or business has a current Alcohol Permit or License from the Georgia Depart of Revenue. Please provide the following information:

Permit/License no. _____ **Date:** _____ **Expires:** _____

____ PORTABLE TOILET/S

__X__ FIREWORKS

____ TENTS, STAGES, ETC.

____ BOOTH/S

____ VENDORS

____ AMUSEMENT TYPE EQUIPMENT

____ BANDS, MUSIC, INSTRUMENTS, ETC.

***Temporary/Special Licenses or Permits requirements by Georgia Department of Revenue & Chatham County Health Dept. must be obtained prior to the event.**

APPLICANT, OWNER OR INDIVIDUAL SHALL SUBMIT THIS APPLICATION 30 DAYS PRIOR TO EVENT OR EVENTS AND MUST APPEAR BEFORE THE MAYOR AND TOWN COUNCIL AT THE TOWN MEETING WHEN APPLICATION APPEARS ON THE TOWN MEETING AGENDA.

THIS APPLICATION AND PERMIT FEES SHALL BE APPROVED FOR NOT MORE THAN ONE YEAR AT A TIME. APPLICANT MUST APPLY AND PAY ALL PERMIT FEES EACH CALENDAR YEAR.

INDEMNIFICATION AGREEMENT AND ACCEPTANCE TO ADHERE TO APPLICATION REQUIREMENTS

I, individually and as the Agent representing the Event Organization, do hereby agree to indemnify and hold harmless the Town of Thunderbolt, Georgia, its officers, agents, employees, officials, and contractors from and against any and all loss, damage, claim, demand, liability or expense by reason of any damage or injury to property or person which may be claimed to have arisen as a result of or in connection with the occupancy or use of listed event premises during the time period of said event.

Such obligation to indemnify and hold harmless shall continue notwithstanding any negligence or comparative negligence on the part of the Town of Thunderbolt relating to such loss or damage, except for loss or damage arising from the sole negligence or willful misconduct or gross negligence of the Town, and shall include all costs, expenses and liabilities incurred by the Town in connection with any such claim, suit, action or cause of action, including the investigation thereof and the defense of any action or proceeding brought thereon and any other judgment or decree which may be entered in any such action or proceeding or as a result thereof. These provisions shall survive the expiration or earlier termination of the use of premises. Nothing in this Agreement shall be construed to affect in any way the Town's rights, privileges, and immunities as set forth in Georgia Statues and/or the Constitution of the State of Georgia.

Representative Signature: _____ Date: 8/10/22

PERMIT FEES:

ONE DAY EVENT: $ 50.00 – Resident/Business $150.00- Non Resident/Non Business
*SPECIAL ONE DAY EVENT - $500.00 (require closing of streets, additional preparation of the Town's police officers, firefighters, employees, agents or contractors; additional fees may be assessed to cover the Town's costs for assistance or services)

TWO DAY EVENT: $ 100.00 – Resident/Business $200.00 – Non Resident/Non Business

THREE OR MORE
DAY EVENT: $ 150.00 – Resident/Business $ 450.00 – Non Resident/Non Business

Note: Request of Waiver of Fee(s) requires the completion of a Waiver of Fee Form to be attached to the permit application and must be approval of Mayor and Council.

If applicant is renting or leasing the facility where the event is to take place then the applicant shall receive an affidavit from the legal property owner of their approval to have an event stating their complete application request including the dispensing or selling of alcoholic beverages. The affidavit must be signed and notarized and must be attached to the applicant's application prior the review and approval of Town Council.

****** PERMIT FEE MUST BE PAID AT THE TIME OF APPLICATION******
FAILURE TO SUBMIT PAYMENT ALONG WITH APPLICATION SHALL RESULT IN THE APPLICATION NOT BEING CONSIDERED FOR APPROVAL BY THE TOWN OF THUNDERBOLT.

PERMIT FEE REFUND:

THE TOWN OF THUNDERBOLT WILL REFUND THE PERMIT FEE IF THE TOWN IS NOTIFIED WITHIN AT LEAST 5 DAYS PRIOR TO THE EVENT BEING CANCELLED AND/OR 5 DAYS AFTER REQUESTED DAY OF THE EVENT, IF CANCELLED: SEE THE FOLLOWING:
ONE DAY EVENT: FULL REFUND, IF EVENT CANCELLED AND TOWN NOTIFIED OF CANCELLATION.
TWO DAY OR MORE EVENTS: ONE –THIRD OF THE PERMIT FEE REFUNDED, IF ONE OR MORE DAYS OF EVENT CANCELLED AND TOWN NOTIFIED OF CANCELLATION.

NO PARTIAL OR FULL PERMIT FEE WILL BE REFUNDED UPON PERMIT BEING REVOKED AS A RESULT OF APPLICANT, OWNER OR INDIVIDUAL BEING IN VIOLATION OF TOWN OF THUNDERBOLT ORDINANCES OR RULES AND REGULATIONS.

TOWN OF THUNDERBOLT ORDINANCES
RULES & REGULATIONS
FOR COMMERCIAL OR BUSINESS OUTDOOR ACTIVITY EVENT OR EVENTS

The following Town of Thunderbolt Ordinances, Rules and Regulations do hereby apply and are the sole responsibility of the Applicant, Owner or Individual to comply with:

1. Applicant, Owner, or Individual shall engage the services of an Off-Duty Police Officer or Officers be present at all times during the course of the Outdoor Activity Event, when alcoholic beverages are sold or distributed. Services of a Security Guard or Security Guard Service is not acceptable. IF APPLICANT, OWNER OR INDIVIDUAL REFUSES OR DOES NOT ENGAGE THE SERVICES OF AN OFF-DUTY POLICE OFFICER OR OFFICERS THE OUTDOOR ACTIVITY EVENT PERMIT SHALL BE REVOKED FOR 6 MONTHS, WHICH MAY ALSO INCLUDE A FINE OR FINES.

2. Applicant, Owner or Individual shall be responsible for removing Portable Toilets within 3 days following the event or shall be fined in the amount of $100.00 per day per unit until Portable Toilet or Toilets are removed.

   In the event, Applicant. Owner or Individual requires future use of Portable Toilet or Toilets, they shall be responsible for the cleaning, disinfecting, maintenance, and securing the Portable Toilet or Toilets.

3. Applicant, Owner or Individual will be responsible to remove all Tents, Stages, etc within 3 days following the Outdoor Activity Event or shall be fined in the amount of $100.00 per day until Tents, Stages, etc., have been removed.

4. Applicant, Owner or Individual will be responsible for removing all booths within 3 days following the Outdoor Activity Event or shall be fined in the amount of $50.00 per day per Booth until Booth or Booths have been removed.

5. Applicant, Owner or Individual will be responsible for removing all Amusement Type Equipment within 3 days following the Outdoor Activity Event or shall be fined in the amount of $50.00 per day per Amusement Type Equipment until Equipment has been removed.

6. Applicant, Owner or Individual shall be held responsible for Bands, Instruments, Music, etc., to abide by the Town of Thunderbolt Noise Ordinance. NO BANDS, INSTRUMENTS, MUSIC, ETC. SHALL BE ALLOWED TO CONTINUE PLAYING AFTER 10:00 PM. IF APPLICANT, OWNER, OR INDIVIDUAL VIOLATES THIS ORDINANCE, THE OUTDOOR ACTIVITY PERMIT SHALL BE REVOKED FOR 6 MONTHS, WHICH MAY ALSO INCLUDE A FINE OR FINES.

7. Applicant, Owner or Individual shall be responsible for cleaning grounds and disposing of all trash, debris, etc. as a result of the Outdoor Activity Event no later than 24 hours following the Event. If Applicant, Owner or Individual has not cleaned and disposed of trash, debris etc, within 24 hours following the Event they will be fined in the amount of $25.00 per day until all trash, debris, etc. is disposed and grounds are cleaned.

By Signing below, I the Applicant, Owner or Individual applying for this Outdoor Activity Event(s) Permit have read and will comply with the above and all other Town of Thunderbolt Ordinances, if applicable pertaining to Outdoor Activities and Events. A copy of Applicant, Owner or Individual Driver's License is also attached.

Applicant, Owner or Individual

Witness

American legion post 184
Business

Nancy L Tipton
Notary Public

Date 8/10/22

Notary Public Stamp & Seal

NANCY L TIPTON NOTARY PUBLIC CHATHAM COUNTY, GEORGIA MY COMMISSION EXPIRES APRIL 29, 2023

RECEIVED BY: _____
Town Official and Title

THE ATTACHED APPLICATION FOR AN OUTDOOR ACTIVITY EVENT PERMIT HAS BEEN APPROVED THIS _____ DAY OF _____, 20___.
BY THE TOWN OF THUNDERBOLT MAYOR AND TOWN COUNCIL WHOSE NAMES AND SIGNATURES ARE LISTED BELOW OR BY THE TOWN ADMINISTRATOR WHOSE SIGNATURE IS LISTED BELOW.

Mayor

Town Administrator

Councilmember

Councilmember

Councilmember

Councilmember

Councilmember

Councilmember

TOWN OF THUNDERBOLT
REQUEST FOR WAIVER FEE FOR
PERMIT APPLICATION FOR EVENT

APPLICANT NAME: Joseph S. Higgins

ORGANIZATION/ENTITY: American legion Post 184

DATE OF EVENT: October - December

PURPOSE OF EVENT: Post Turkey Shoot.

REASON FOR WAIVER
REQUEST: Non-Profit Veteran Service Organization

In consideration of being permitted to engage in the above activity, I hereby and on behalf of the organization/entity named above assume the risk of personal injury or death and I, for my heirs, executors, representatives and administrators, hereby agree to release, hold harmless, and forever discharge the Town of Thunderbolt and its police officers, firefighters, employees, agents, officials, and contractors from any and all liability, claims, demands, damages, expenses, fees, suits, proceedings, causes of action, cost of actions, including attorney's fees, for trial and appeal, which I or the organization/entity named above may have against them arising out of or in any way connected with my participation or the organization/entity in the activity listed above. I understand that this release and waiver includes any claims based on negligence, gross negligence, misconduct, actions or inactions of the Town of Thunderbolt, Georgia, it's employees, police officers, firefighters, officials, agents, representatives or contractors.

I HAVE READ THIS CONTRACT BEFORE SIGNING.

Joseph S. Higgins
APPLICANT'S NAME (PRINT)

8/10/22
DATE

SIGNATURE OF APPLICANT

SWORN BEFORE ME THIS 16 DAY OF Aug, 2022

Nancy L Tipton
NOTARY PUBLIC

April 28, 2025
MY COMMISSION EXPIRES & SEAL

NANCY L TIPTON NOTARY PUBLIC CHATHAM COUNTY, GEORGIA MY COMMISSION EXPIRES APRIL 28, 2025

WAIVER FEE WAS APPROVED BY MAYOR AND COUNCIL ON _____

WAIVER FEE WAS DENIED BY MAYOR AND COUNCIL ON _____

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PROFESSIONAL SERVICES AGREEMENT

This Professional Services Agreement ("Agreement") is effective as of the 13th day of July, 2022 is entered into by and between Town Of Thunderbolt GA("Client"), with offices 2821 River Drive, Thunderbolt, GA 31404 and **Witt O'Brien's, LLC** ("Consultant"), located at 818 Town & Country Blvd., Suite 200, Houston, Texas 77024. For purposes of this Agreement, Client and Consultant may be referred to individually as the "Party" or collectively as the "Parties".

WHEREAS, Consultant is in the business of providing certain consulting services, and is willing to provide such services to Client;

WHEREAS, Consultant submitted a proposal to Client dated July 8, 2022, to provide Debris Monitoring & Public Assistance Consulting Services ("Consultant Proposal"); and,

WHEREAS, Client desires to utilize Consultant's services as provided for herein;

NOW, THEREFORE, in consideration of the mutual covenants and promises contained herein, the Parties hereto agree as follows:

1. Recitals. The above-referenced recitals are true and correct and are incorporated herein.

2. Scope of Work. Consultant's responsibility under this Agreement is to provide professional/consultation services in the area of Debris Monitoring & Public Assistance Consulting Services (hereafter "Services"), as more specifically set forth in the Scope of Services detailed in Appendix "A", which is incorporated into and forms part of this Agreement. Consultant shall furnish all reports and deliverables as set forth in Appendix A in accordance with the terms set forth therein (hereafter "Deliverables").

3. Period of Performance. The initial period of this Agreement shall be for 2 year(s) from the signing of this Agreement and may be renewed for up to two additional 1 year(s) periods, maximum term may not exceed 48 months, subject to adjustments of costs and fees to be agreed upon in writing by the Parties.

4. Beginning Performance. Consultant shall not begin performance under the Agreement until the Client issues and Consultant accepts a purchase order, work order, or other notification to proceed in writing.

5. Fees. In consideration of Services performed hereunder, Client shall pay Consultant in accordance with the rates set forth in Appendix "B", which is incorporated into and forms part of this Agreement. Payment terms for the Agreement shall be in accordance with Section 12 of this Agreement. Invoices are to be sent to the following address:
Town of Thunderbolt, 2821 River Drive, Thunderbolt, Georgia, 31404

6. Consultant's Responsibilities. Consultant shall perform the Services utilizing the standard of care normally exercised by professional consulting firms in performing comparable services under similar conditions. CONSULTANT MAKES NO OTHER WARRANTIES, EXPRESS OR IMPLIED, EXCEPT AS SPECIFICALLY SET FORTH IN THIS AGREEMENT.

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7. Client's Responsibilities. Client shall provide site access to the site or facility at which the Services are to be performed at such times as may reasonably be required by Consultant, and shall make timely payments in accordance with the terms and conditions of this Agreement. To the extent Client has access to information relating to the Services to be performed, Client shall provide such information as is reasonably available and appropriate for the efficient performance of the Services ("Information"). Such Information includes, but is not limited to, available site history and the identification, location, quantity, concentration and character of known or suspected hazardous conditions, wastes, substances or materials that are likely to pose a significant risk to human life, health, safety or to the environment (Hazardous Waste). Consultant shall be entitled to rely upon the Information provided by the Client or the Client's agents without independent verification except to the extent set forth herein and shall bear no liability arising from such reasonable reliance.

8. Proprietary Information. Proprietary confidential information ("Proprietary Information") disclosed by either Party under this Agreement shall be clearly labeled and identified as Proprietary Information by the disclosing Party at the time of disclosure. When concurrent written identification of Proprietary Information is not feasible at the time of such disclosure, the disclosing Party shall provide such identification in writing promptly thereafter. Proprietary Information shall not be disclosed to any other person except to those individuals who need access to such Proprietary Information as needed to ensure proper performance of the Services. Neither Party shall be liable for disclosure or use of Proprietary Information which: (1) is generally available to the public without breach of this Agreement; (2) is disclosed with the prior written approval of the disclosing Party; or (3) is required to be released by applicable law or court order. Each Party shall return all Proprietary Information relating to this Agreement to the disclosing Party upon request of the disclosing Party or upon termination of this Agreement, whichever occurs first. Each Party shall have the right to retain a copy of the Proprietary Information for its internal records and subject to ongoing compliance with the restrictions set forth in this Paragraph 8.

9. Deliverables. Upon payment in full for the Services, and unless otherwise agreed to by the Parties, the Deliverables shall be the property of the Client. The Consultant shall not disclose the Deliverables relating to the Services to a third party without the prior written authorization of the Client. Client shall be solely responsible for any disclosure of the Deliverables, which may be required by law and agrees to indemnify and hold Consultant harmless for any loss, liability, or claim resulting from Client's failure to make such disclosure and fully indemnify Consultant. Where applicable law requires immediate disclosure by the Consultant, Consultant shall make its best efforts to give prior notice to Client. At Client's request and expense, Consultant will assist the Client in making such disclosures as may be required by law.

Notwithstanding the foregoing, the Client acknowledges that in the course of its performance under the Agreement the Consultant may use products, materials and methodologies proprietary to the Consultant, and the Client agrees that it shall have or obtain no rights in such proprietary products, materials and methodologies except pursuant to a separate written agreement (if any) executed by the Parties.

10. LIABILITY AND INDEMNIFICATION

10.1 CONSULTANT HEREBY AGREES TO DEFEND, INDEMNIFY AND HOLD CLIENT ("INDEMNIFIED PARTY") HARMLESS FROM AND AGAINST DEMANDS, CLAIMS, LOSSES, COSTS, DAMAGES, LIABILITIES, PENALTIES, FINES AND EXPENSES (INCLUDING COURT COSTS AND REASONABLE FEES OF ATTORNEYS) INCLUDING BUT NOT LIMITED TO PERSONAL INJURY, OR PROPERTY DAMAGE, TO THE EXTENT ARISING OUT OF, RELATING TO OR RESULTING FROM THE NEGLIGENCE

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OR WILLFUL MISCONDUCT OF CONSULTANT, ITS EMPLOYEES OR SUBCONTRACTORS IN THE PERFORMANCE OF THE SERVICES UNDER THIS AGREEMENT.

10.2 CONSEQUENTIAL DAMAGES WAIVER: EACH PARTY EXPRESSLY WAIVES AND RELEASES THE OTHER PARTY AND ITS SUBCONTRACTORS FROM, AND AGAINST, ANY AND ALL PUNITIVE, INDIRECT, SPECIAL, EXEMPLARY AND CONSEQUENTIAL DAMAGES OF ANY KIND, INCLUDING WITHOUT LIMITATION, LOST PROFITS OR LOSS OF USE, REGARDLESS OF THE CAUSE OR LEGAL THEORY OF RECOVERY, INCLUDING NEGLIGENCE, GROSS NEGLIGENCE OR WILLFUL MISCONDUCT OF THE PARTY BEING RELEASED.

11. Acceptance. Client shall have five (5) days from the date each deliverable is made to Client to reject all or part of each Deliverable. Each Deliverable, to the extent not rejected in writing by Client, shall be deemed accepted.

12. Payment Terms. Consultant will provide two (2) sets of invoices, separating the hourly rate invoice and the reimbursable expense invoice for each calendar month. Consultant will submit end of month invoice within a reasonable time frame, but no later than 45 days. Payment of any undisputed amount is due 30 days after receipt of each invoice. All invoices shall include information required to comply with the Federal laws, regulations, and policies governing Federal reimbursement of disaster recovery-related expenditures. Invoices are considered accepted by Client unless a written notice explaining rejection of specific charges is provided to Consultant within ten (10) days from date electronically submitted. A service charge equivalent to 1.5% (per month) of invoice amount may be assessed by Consultant and will be paid by Client for invoices aging beyond 30 days until invoice is paid in full. In the event that payment has not been made in accordance with the terms of this Agreement, in addition to any other remedy, which Consultant may have under law or equity, Consultant may stop work immediately, without further duty, obligation, and/or liability.

13. Not-To-Exceed Amount. For time and material or unit price contracts with a Not-To-Exceed Amount, if at any time Consultant has reason to believe that an increase in such limitation will be necessary, it will give prior notice to that effect and propose a new limitation figure with appropriate supporting data so that Client may, at its sole discretion, increase such limitation by written notice to Consultant. If Consultant does not receive a timely increase of such Not-To-Exceed amount, Consultant is entitled to stop the performance of the work once the Not-To-Exceed Amount has been reached, without any further liability, for any delay in the performance of the work caused by Client delay to increase the Not-To-Exceed Amount. Consultant shall be entitled to an equitable adjustment to the price and/or schedule of the Services, including any mobilization or demobilization costs of Consultant, due to Client's failure to provide a timely increase of the Not-To-Exceed amount.

14. Currency of Payment. Unless otherwise set forth in this Agreement, all payments shall be made in United States Dollars (USD). Where exchange rates are involved, the rate of exchange between USD and the other currency involved in the transaction shall be the rate of exchange as of the date of invoice. The date of each invoice shall be clearly marked on each invoice.

15. Health & Safety. Client shall notify Consultant of any known or suspected hazards existing at any site where the Services are to be provided, including but not limited to, Hazardous Waste, substances or materials and underground utilities.

16. Conflict of Interest. The Client acknowledges that the Consultant provides similar services for a broad range of other clients and agrees that Consultant shall be free to work for other clients in matters that do not involve the use of any Proprietary Information that has been disclosed by the

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Client under the terms of this Agreement or do not directly relate to the specific Services provided by the Consultant to the Client under this Agreement.

17. Force Majeure. Neither Party shall be responsible for any delay or failure in performance, other than the obligation to make payments for work previously performed, to the extent that such delay or failure was caused by a force majeure event including Act of God, war, civil disturbance, governmental action, labor dispute unrelated to and without fault or negligence of the Party claiming the force majeure event, computer virus, or denial of access to the site or any other event beyond the reasonable control of the claiming Party. Performance under this Agreement shall resume promptly once the cause of delay or failure ceases and an equitable adjustment shall be made to the price and/or schedule of the Services including any mobilization or demobilization costs of Consultant.

18. Notice. Any notice given by either Party shall be in writing and shall be given by email with delivery confirmation and registered or certified mail, return receipt requested, postage prepaid, or Federal Express or DHL courier, shipped prepaid, addressed to the Parties at the addresses herein designated for each Party or at such other addresses as they may hereafter designate in writing.

To: Town of Thunderbolt GA	Witt O'Brien's, LLC
Attention: Town Administrator	Attention: Director of Contracts
Address: 2821 River Drive, Thunderbolt, Ga, 31404	818 Town & Country Blvd., Suite 200 Houston, TX 77024
Phone: 912-856-8939	Phone: 281-606-4721 Alternate Phone: (202) 207-2935
Email:rmilie@thunderboltga.org	contractrequests@wittobriens.com with a copy to cjoiner@wittobriens.com
For Legal Notices, a copy shall be provided to: Town of Thunderbolt Attorney 2821 River Drive, Thunderbolt, Ga, 31404	For Legal Notices, a copy shall be provided to: Witt O'Brien's, LLC Attention: Legal Counsel 2200 Eller Drive Fort Lauderdale, FL 33316 Email: blong@ckor.com with a copy to cjoiner@wittobriens.com

19. Changed Conditions. The discovery of any hazardous waste, substance or material; underground obstruction; underground utilities; or other latent obstruction to the performance of the Services, to the extent that such conditions are not the subject of the Services, and to the extent that such conditions were not brought to the attention of the Consultant prior to execution of this Agreement, or any change in law that materially affects the obligations or rights of either Party under this Agreement, shall constitute a materially different site condition entitling the Consultant to an equitable adjustment in the contract price, time of performance, or both, as appropriate. If the change materially changes the nature of the Services, the Consultant may terminate this Agreement as a result of such changed conditions.

20. Changes to The Services. The Client may direct changes within the general Scope of Work. Upon notification of such direction, the Consultant shall prepare an estimate of the additional costs and time required, if any, to perform the change. Upon mutual written agreement, Consultant shall perform the change and an equitable adjustment shall be made to the price and/or time schedule as appropriate.

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21. Governing Law. The validity, enforceability and interpretation of this Agreement will be governed by the laws of the State of Georgia, without reference to its rules relating to choice of law to the contrary. Client consents to the exclusive jurisdiction of state and federal courts located in State of Georgia, with respect to any claim arising under or by reason of the Agreement.

22. Independent Contractor. Consultant is an independent contractor and shall not be deemed to be an employee or agent of the Client. Client shall not be deemed a joint employer of the other Party's employees. Consultant shall indemnify and hold Client harmless against all liability and loss resulting from i) claims made by Consultant's employees that they are co-employed by Client, ii) Consultant's failure to pay wages to its employees, and iii) Consultant's failure to pay all taxes and fees imposed by the government under employment insurance, social security and income tax laws with regard to Consultant's employees engaged in the performance of this Agreement.

23. Nonwaiver. No waiver of any breach of this Agreement shall operate as a waiver of any similar subsequent breach or any breach of any other provision of this Agreement.

24. Severability. If any provision of this Agreement is held invalid by a court of competent jurisdiction, such provision shall be severed from this Agreement and to the extent possible, this Agreement shall continue without affect to the remaining provisions.

25. Assignment/Subcontracts. Neither Party may assign this Agreement without the written consent of the other Party, which shall not unreasonably be withheld; provided, however, that Consultant may assign this Agreement in connection with a sale of all or substantially all of its assets without Client's consent, or to a parent, subsidiary, or affiliate.

26. Drafting Party. Each Party has reviewed this Agreement and any question of interpretation shall not be resolved by any rule of interpretation providing for interpretation against the drafting Party. This Agreement shall be construed as though drafted by both Parties.

27. Captions. The captions and headings of this Agreement are intended for convenience and reference only, do not affect the construction or meaning of this Agreement and further do not inform a Party of the covenants, terms or conditions of this Agreement or give full notice thereof.

28. Additional Instruments. The Parties agree to provide the other with any and all documents required to carry out any and all obligations in connection with the Agreement as set forth herein.

29. No Agency. Except as specifically set forth otherwise, it is agreed and understood that neither Party hereto is, by this Agreement or anything herein contained, constituted or appointed agent or representative of the other for any purpose whatsoever, nor shall anything in this Agreement be deemed or construed as granting either Party any right or authority to assume or to create any obligation, warranty or responsibility, express or implied, for or in behalf of the other.

30. Order of Precedence. In the event of a conflict in the terms and conditions of this Agreement, the following order of precedence shall apply:

1. This Agreement
2. The Rate Schedule (Appendix B)
3. The Scope of Work (Appendix A)
4. FEMA Clauses (Appendix C)
5. Task Orders (if applicable)
6. Other Contract Documents

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31. Termination. This Agreement may be terminated for convenience at any time by either Party provided the requesting Party provides the other with 30 days written notice. If either Party fails to perform any of its duties or obligation or shall violate any of the prohibitions imposed upon it under this Agreement, or shall be dissolved or be adjudged bankrupt or shall have a petition in bankruptcy filed against it, or shall make a general assignment for the benefit of creditors, or if a receiver shall be appointed for a Party, the other Party may terminate this Agreement, without prejudice to any other rights or claims which it may have under this Agreement, on written notice to the other Party and fifteen (15) business days opportunity to cure such breach. In any event, Client shall pay all fees due and expenses incurred for Services rendered through the date of termination.

32. FEMA Clauses. If applicable to the Services provided by Consultant under this Agreement, Consultant shall comply with FEMA Clauses set forth in Appendix C.

33. Use of Logo. Client hereby authorizes Consultant to use its name, logo and/or trademark without further notice to Client in connection with certain promotional materials that Consultant may disseminate to the public. The promotional materials may include, but are not limited to, brochures, video tape, internet website, press releases, and advertising in periodicals. Nothing herein obligates Consultant to use a Client's logo and/or trademark, in any promotional materials of Consultant. Consultant shall include a trademark attribution notice giving notice of the Client's ownership of its trademarks in the marketing materials in which Client's name and logo appear.

34. Entire Agreement. Both Parties acknowledge that they have read this Agreement, understand it, and agree to be bound by its terms and further agree that it is the entire Agreement between the Parties which supersedes all prior agreements, written or oral, relating to the subject matter hereof. No modification or waiver of any provision shall be binding unless in writing signed by the Party against whom such modification or waiver is sought to be enforced.

IN WITNESS WHEREOF, the Parties hereto, by their duly authorized representatives, execute this Agreement to be effective as of the date set forth above.

Town of Thunderbolt GA	**Witt O'Brien's, LLC**
	Cheryl Joiner
Name: Dana Williams	Name: Cheryl Joiner
Title: Town of Thunderbolt Mayor	Title: Director Contracts & Compliance

DocuSign Envelope ID: 33E60543-0552-4692-8280-6B6A72804446

APPENDIX B
SCOPE OF WORK

Consultant shall provide the Services as set out in Consultant Proposal dated July 8, 2022 which is attached hereto as Exhibit A and is incorporated into and forms part of this Agreement.

DocuSign Envelope ID: 33E60543-0552-4692-8280-6B6A72804446

APPENDIX C
COMPENSATION

Compensation for Services will be based as follows:

Please see Witt O'Brien's proposed price proposal below. The hourly rates are fully burdened with all applicable overhead, project, and non-related project costs. As demonstration of our commitment to service for the Town of Thunderbolt, the rates provided below are consistent with our current contract with the Town. Thus, we have not escalated any rates since our initial agreement in 2017.

POSITION	Hourly Rate
Project Manager	$70.00
Operations Manager	$55.00
Scheduler/Expeditor	$48.00
Field Supervisor	$48.00
Disposal Site/Tower Monitor	$34.00
Collection Monitor	$34.00
Roving Monitors/Mapping	$36.00
Citizen Drop off Monitor	$34.00
Call Center/P.I. Staff	$28.00
Data Manager	$55.00
Billing/Invoice Analyst	$38.00
Admin	$27.00
GIS Analyst	$50.00
Environmental Compliance Specialist	$98.00
FEMA/FHWA Program Consultant	$98.00

In addition to the hourly rates, Consultant shall be reimbursed for out of pocket expenses incurred in connection with performance of this Agreement. Travel expenses such as lodging, airfare (coach class), rental car, and other miscellaneous expenses shall be reimbursed at Consultant's cost, without mark-up. Per diem shall be reimbursed in accordance with the rates published by General Services Administration (GSA) for the area of operation. If mileage is applicable, mileage shall be reimbursed at the prevailing IRS mileage rate.

DocuSign Envelope ID: 33E60543-0552-4692-8280-6B6A72804446

APPENDIX D
FEMA CLAUSES

The Parties shall comply with all federal laws and regulations applicable to the receipt of FEMA grants, including, but not limited to the contractual procedures set forth in Title 2 of the Code of Federal Regulations, Part 200 ("2 CFR 200"), including Appendix II to such Part ("Appendix II").

In addition, the Parties agrees as follows:

1. Client confirms that it is entitled to exercise all administrative, contractual, or other remedies permitted by law to enforce Consultant's compliance with the terms of this Agreement, except to the extent expressly provided otherwise by this Agreement.

2. Client confirms that it may terminate this Agreement for cause or convenience in accordance with the procedures set forth in this Agreement.

3. Compliance with the Davis-Bacon Act and Copeland Anti-Kickback Act as applicable to the Services.

    a. Consultant shall comply with 18 U.S.C. §874, 40 U.S.C. § 3145, and the requirements of 29 CFR Part 3 as may be applicable, which are incorporated by reference into this Agreement.

    b. Subcontracts. Consultant and any subcontractors to Consultant shall insert in any subcontracts the clause above and such other clauses as FEMA may by appropriate instructions require, and also a clause requiring the subcontractors to include these clauses in any lower tier subcontractors. The prime contractor shall be responsible for compliance by any subcontractor or lower tier subcontractor with all of these contract clauses.

    c. Breach. A breach of the contract clauses above may be grounds for termination of the contract, and for debarment as a contractor and subcontractor as provided in 29 CFR §5.12.

4. Compliance with the Clean Air Act and the Federal Water Pollution Control Act.

    a. Clean Air Act

        (i) Consultant agrees to comply with all applicable standards, orders or regulations issued pursuant to the Clean Air Act, 42 U.S.C. §7401 et seq.

        (ii) Consultant agrees to report each violation to CLIENT and understands and agrees that Client will, in turn, report each violation as required to assure notification to FEMA and the appropriate Environmental Protection Agency Regional Office.

        (iii) Consultant agrees to include these requirements in each subcontract exceeding $150,000 financed in whole or in part with Federal assistance provided by FEMA.

    b. Federal Water Pollution Control Act

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(i) Consultant agrees to comply with all applicable standards, orders or regulations issued pursuant to the Federal Water Pollution Control Act, as amended, 33 U.S.C. 1251 et seq.

(ii) Consultant agrees to report each violation to Client and understands and agrees that Client will, in turn, report each violation as required to assure notification to FEMA and appropriate Environmental Protection Agency Regional Office.

(iii) The contractor agrees to include these requirements in each subcontract exceeding $150,000 financed in whole or in part with Federal assistance provided by FEMA."

5. Suspension and Debarment

a. This contract is a covered transaction for purposes of 2 C.F.R. pt. 180 and 2 C.F.R. pt. 3000. As such, Consultant is required to verify that none of Consultant, its principals (defined at 2 C.F.R. § 180.995), or its affiliates (defined at 2 C.F.R. § 180.905) are excluded (defined at 2 C.F.R. § 180.940) or disqualified (defined at 2 C.F.R. § 180.935).

b. Consultant must comply with 2 C.F.R. pt. 180, subpart C and 2 C.F.R. pt. 3000, subpart C and must include a requirement to comply with these regulations in any lower tier covered transaction it enters into.

c. This certification is a material representation of fact relied upon by Client. If it is later determined that Consultant did not comply with 2 C.F.R. pt. 180, subpart C and 2 C.F.R. pt. 3000, subpart C, in addition to remedies available to Client, the Federal Government may pursue available remedies, including but not limited to suspension and/or debarment.

d. The bidder or proposer agrees to comply with the requirements of 2 C.F.R. pt. 180, subpart C and 2 C.F.R. pt. 3000, subpart C while this offer is valid and throughout the period of any contract that may arise from this offer. The bidder or proposer further agrees to include a provision requiring such compliance in its lower tier covered transactions.

6. Compliance with Byrd Anti-Lobbying Amendment

a. Consultant hereby certifies to the best of its knowledge that:

(i) No Federal appropriated funds have been paid or will be paid, by or on behalf of Consultant, to any person for influencing or attempting to influence an officer or employee of an agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal contract, grant, loan, or cooperative agreement.

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(ii) If any funds other than Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this Federal contract, grant, loan, or cooperative agreement, Consultant shall complete and submit Standard Form- LLL, "Disclosure Form to Report Lobbying," in accordance with its instructions.

b. Consultant shall require that the language of this certification be included in the award documents for all subawards at all tiers (including subcontracts, subgrants, and contracts under grants, loans, and cooperative agreements) and that all subrecipients shall certify and disclose accordingly. Contractors who apply or bid for an award of $100,000 or more shall file the required certification. Each tier certifies to the tier above that it will not and has not used Federal appropriated funds to pay any person or organization for influencing or attempting to influence an officer or employee of any agency, a member of Congress, officer or employee of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant, or any other award covered by 31 U.S.C. § 1352. Each tier shall also disclose any lobbying with non-Federal funds that takes place in connection with obtaining any Federal award. Such disclosures are forwarded from tier to tier up to the recipient.

c. This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into this transaction imposed by 31, U.S.C. § 1352 (as amended by the Lobbying Disclosure Act of 1995). Any person who fails to file the required certification shall be subject to a civil penalty of not less than $10,000 and not more than $100,000 for each such failure.

d. By executing this Agreement, Consultant hereby certifies or affirms the truthfulness and accuracy of each statement of its certification and disclosure, if any. In addition, Consultant understands and agrees that the provisions of 31 U.S.C. § 3801 *et seq.*, apply to this certification and disclosure, if any.

7. Procurement of Recovered Materials

a. In the performance of this contract, Consultant shall make maximum use of products containing recovered materials that are EPA- designated items unless the product cannot be acquired

(i) Competitively within a timeframe providing for compliance with the contract performance schedule;

(ii) Meeting contract performance requirements; or

(iii) At a reasonable price.

b. Information about this requirement, along with the list of EPA-designate items, is available at EPA's Comprehensive Procurement Guidelines web site, https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program.

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8. Access to Records

The following access to records requirements apply to this Agreement:

a. Consultant agrees to provide Client, the FEMA Administrator, the Comptroller General of the United States, or any of their authorized representatives access to any books, documents, papers, and records of the Contractor which are directly pertinent to this contract for the purposes of making audits, examinations, excerpts, and transcriptions.
b. Consultant agrees to permit any of the foregoing parties to reproduce by any means whatsoever or to copy excerpts and transcriptions as reasonably needed.
c. Consultant agrees to provide the FEMA Administrator or his authorized representatives access to construction or other work sites pertaining to the work being completed under the contract.

9. Use of DHS Seal

Consultant shall not use the DHS seal(s), logos, crests, or reproductions of flags or likenesses of DHS agency officials without specific FEMA pre- approval.

10. Compliance with Federal Law

This is an acknowledgement that FEMA financial assistance will be used to fund the Agreement only. Consultant will comply will all applicable federal law, regulations, executive orders, FEMA policies, procedures, and directives.

11. Non-Obligation of Federal Government

The Federal Government is not a party to this Agreement and is not subject to any obligations or liabilities to the non-Federal entity, contractor, or any other party pertaining to any matter resulting from the contract.

12. Program Fraud and False or Fraudulent Statements or Related Acts

Consultant acknowledges that 31 U.S.C. Chap. 38 (Administrative Remedies for False Claims and Statements) applies to the contractor's actions pertaining to this contract.

13. Prohibition on Contracting for Covered Telecommunications Equipment or Services:

(a) Definitions. As used in this clause, the terms backhaul; covered foreign country; covered telecommunications equipment or services; interconnection arrangements; roaming; substantial or essential component; and telecommunications equipment or services have the meaning as defined in FEMA Policy 405-143-1, Prohibitions on Expending FEMA Award Funds for Covered Telecommunications Equipment or Services (Interim), as used in this clause—

(b) Prohibitions.

(1) Section 889(b) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019, Pub. L. No. 115-232, and 2 C.F.R. § 200.216 prohibit the head of an executive agency on or after Aug.13, 2020, from obligating or expending grant, cooperative

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agreement, loan, or loan guarantee funds on certain telecommunications products or from certain entities for national security reasons.

(2) Unless an exception in paragraph (c) of this clause applies, the consultant and its subcontractors may not use grant, cooperative agreement, loan, or loan guarantee funds from the Federal Emergency Management Agency to:

(i) Procure or obtain any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology of any system;

(ii) Enter into, extend, or renew a contract to procure or obtain any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology of any system;

(iii) Enter into, extend, or renew contracts with entities that use covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system; or

(iv) Provide, as part of its performance of this contract, subcontract, or other contractual instrument, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Exceptions.

(1) This clause does not prohibit consultant from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or Contract Provisions Guide 28

(ii) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) By necessary implication and regulation, the prohibitions also do not apply to:

(i) Covered telecommunications equipment or services that:

i. Are not used as a substantial or essential component of any system; and

ii.Are not used as critical technology of any system.

(ii) Other telecommunications equipment or services that are not considered covered telecommunications equipment or services.

(d) Reporting requirement.
(1) In the event the consultant identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the consultant is notified of such by a

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subcontractor at any tier or by any other source, the consultant shall report the information in paragraph (d)(2) of this clause to the recipient or subrecipient, unless elsewhere in this contract are established procedures for reporting the information.

(2) The Consultant shall report the following information pursuant to paragraph (d)(1) of this clause:

(i) Within one business day from the date of such identification or notification: The contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: Any further available information about mitigation actions undertaken or recommended. In addition, the consultant shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) Subcontracts. The Consultant shall insert the substance of this clause, including this paragraph (e), in all subcontracts and other contractual instruments."

14. "Domestic Preference for Procurements

As appropriate, and to the extent consistent with law, the consultant should, to the greatest extent practicable, provide a preference for the purchase, acquisition, or use of goods, products, or materials produced in the United States. This includes, but is not limited to iron, aluminum, steel, cement, and other manufactured products.

For purposes of this clause:

Produced in the United States means, for iron and steel products, that all manufacturing processes, from the initial melting stage through the application of coatings, occurred in the United States.

Manufactured products mean items and construction materials composed in whole or in part of non-ferrous metals such as aluminum; plastics and polymer-based products such as polyvinyl chloride pipe; aggregates such as concrete; glass, including optical fiber; and lumber."

15. Affirmative Socioeconomic Steps

If subcontracts are to be let, the prime consultant is required to take all necessary steps identified in 2 C.F.R. § 200.321(b)(1)-(5) to ensure that small and minority businesses, women's business enterprises, and labor surplus area firms are used when possible.

16. Copyright and Data Rights - License and Delivery of Works Subject to Copyright and Data Rights(as applicable)

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The Consultant grants to the Client, a paid-up, royalty-free, nonexclusive, irrevocable, worldwide license in data first produced in the performance of this contract to reproduce, publish, or otherwise use, including prepare derivative works, distribute copies to the public, and perform publicly and display publicly such data. For data required by the contract but not first produced in the performance of this contract, the Consultant will identify such data and grant to the Client or acquires on its behalf a license of the same scope as for data first produced in the performance of this contract. Data, as used herein, shall include any work subject to copyright under 17 U.S.C. § 102, for example, any written reports or literary works, software and/or source code, music, choreography, pictures or images, graphics, sculptures, videos, motion pictures or other audiovisual works, sound and/or video recordings, and architectural works. Upon or before the completion of this contract, the Consultant will deliver to the Client data first produced in the performance of this contract and data required by the contract but not first produced in the performance of this contract in formats acceptable by the Client.

17. RIGHTS TO INVENTIONS MADE UNDER A CONTRACT OR AGREEMENT(as applicable)

Contracts or agreements for the performance of experimental, developmental, or research work shall provide for the rights of the Federal Government and the recipient in any resulting invention in accordance with 37 CFR part 401, "Rights to Inventions Made by Nonprofit Organizations and Small Business Firms Under Government Grants, Contracts and Cooperative Agreements," and any implementing regulations issued by the Federal Government.

18. CONTRACT WORK HOURS AND SAFETY STANDARDS ACT (Applicable to construction contracts exceeding $2,000 and contracts exceeding $100,000 that involve the employment of mechanics or laborers)(These requirements do not apply to the purchase of supplies or materials or articles ordinarily available on the open market or contracts for the transportation or transmission of intelligence)

The Consultant shall comply with Sections 103 and 107 of the Contract Work Hours and Safety Standards Act (40 U.S.C. §§ 327-330) as supplemented by Department of Labor regulations (29 C.F.R. part 5).

All laborers and mechanics employed by consultants or subcontractors shall receive overtime compensation in accordance with and subject to the provisions of the Contract Work Hours and Safety Standards Act, and the consultant and subcontractors shall comply with all regulations issued pursuant to that act and with other applicable Federal laws and regulations pertaining to labor standards.

19. EQUAL EMPLOYMENT OPPORTUNITY (as applicable, Any contract that uses federal funds to pay for construction work is a "federally assisted construction contract" and must include the equal opportunity clause found in 2 C.F.R. Part 200, unless otherwise stated in 41 C.F.R. Part 60, which are incorporated by reference into this Agreement)

During the performance of this contract, the consultant agrees as follows:

(1) The consultant will not discriminate against any employee or applicant for employment because of race, color, religion, sex, sexual orientation, gender identity, or national origin. The consultant will take affirmative action to ensure that applicants are employed, and that employees are treated during employment without regard to their race, color, religion, sex,

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sexual orientation, gender identity, or national origin. Such action shall include, but not be limited to the following:
Employment, upgrading, demotion, or transfer; recruitment or recruitment advertising; layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship. The Consultant agrees to post in conspicuous places, available to employees and applicants for employment, notices to be provided setting forth the provisions of this nondiscrimination clause.

(2) The Consultant will, in all solicitations or advertisements for employees placed by or on behalf of the contractor, state that all qualified applicants will receive consideration for employment without regard to race, color, religion, sex, sexual orientation, gender identity, or national origin.

(3) The Consultant will not discharge or in any other manner discriminate against any employee or applicant for employment because such employee or applicant has inquired about, discussed, or disclosed the compensation of the employee or applicant or another employee or applicant. This provision shall not apply to instances in which an employee who has access to the compensation information of other employees or applicants as a part of such employee's essential job functions discloses the compensation of such other employees or applicants to individuals who do not otherwise have access to such information, unless such disclosure is in response to a formal complaint or charge, in furtherance of an investigation, proceeding, hearing, or action, including an investigation conducted by the employer, or is consistent with the contractor's legal duty to furnish information.

(4) The Consultant will send to each labor union or representative of workers with which he has a collective bargaining agreement or other contract or understanding, a notice to be provided advising the said labor union or workers' representatives of the contractor's commitments under this section, and shall post copies of the notice in conspicuous places available to employees and applicants for employment.

(5) The Consultant will comply with all provisions of Executive Order 11246 of September 24, 1965, and of the rules, regulations, and relevant orders of the Secretary of Labor.

(6) The Consultant will furnish all information and reports required by Executive Order 11246 of September 24, 1965, and by rules, regulations, and orders of the Secretary of Labor, or pursuant thereto, and will permit access to his books, records, and accounts by the administering agency and the Secretary of Labor for purposes of investigation to ascertain compliance with such rules, regulations, and orders.

(7) In the event of the contractor's noncompliance with the nondiscrimination clauses of this contract or with any of the said rules, regulations, or orders, this contract may be canceled, terminated, or suspended in whole or in part and the Consultant may be declared ineligible for further Government contracts or federally assisted construction contracts in accordance with procedures authorized in Executive Order 11246 of September 24, 1965, and such other sanctions may be imposed and remedies invoked as provided in Executive Order 11246 of September 24, 1965, or by rule, regulation, or order of the Secretary of Labor, or as otherwise provided by law.
(8) The Consultant will include the portion of the sentence immediately preceding paragraph (1) and the provisions of paragraphs (1) through (8) in every subcontract or purchase order unless exempted by rules, regulations, or orders of the Secretary of Labor issued pursuant to

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section 204 of Executive Order 11246 of September 24, 1965, so that such provisions will be binding upon each subcontractor or vendor. The Consultant will take such action with respect to any subcontract or purchase order as the administering agency may direct as a means of enforcing such provisions, including sanctions for noncompliance:

Provided, however, that in the event a Consultant becomes involved in, or is threatened with, litigation with a subcontractor or vendor as a result of such direction by the administering agency, the Consultant may request the United States to enter into such litigation to protect the interests of the United States.

The applicant further agrees that it will be bound by the above equal opportunity clause with respect to its own employment practices when it participates in federally assisted construction work: Provided, that if the applicant so participating is a state or local government, the above equal opportunity clause is not applicable to any agency, instrumentality or subdivision of such government which does not participate in work on or under the contract.

The applicant agrees that it will assist and cooperate actively with the administering agency and the Secretary of Labor in obtaining the compliance of contractors and subcontractors with the equal opportunity clause and the rules, regulations, and relevant orders of the Secretary of Labor, that it will furnish the administering agency and the Secretary of Labor such information as they may require for the supervision of such compliance, and that it will otherwise assist the administering agency in the discharge of the agency's primary responsibility for securing compliance.

The applicant further agrees that it will refrain from entering into any contract or contract modification subject to Executive Order 11246 of September 24, 1965, with a Consultant debarred from, or who has not demonstrated eligibility for, Government contracts and federally assisted construction contracts pursuant to the Executive Order and will carry out such sanctions and penalties for violation of the equal opportunity clause as may be imposed upon contractors and subcontractors by the administering agency or the Secretary of Labor pursuant to Part II, Subpart D of the Executive Order. In addition, the applicant agrees that if it fails or refuses to comply with these undertakings, the administering agency may take any or all of the following actions: Cancel, terminate, or suspend in whole or in part this grant (contract, loan, insurance, guarantee); refrain from extending any further assistance to the applicant under the program with respect to which the failure or refund occurred until satisfactory assurance of future compliance has been received from such applicant; and refer the case to the Department of Justice for appropriate legal proceedings.

20. Safeguarding of Sensitive Information and Information Technology Security and Privacy Training(Applicable when contractor has access to sensitive information or contractor IT system are used to input, store, process, output and/or transmit sensitive data)
(a) Applicability. This clause applies to the Consultant, its subcontractors, and Consultant employees (hereafter referred to collectively as "Consultant"). The Contractor shall insert the substance of this clause in all subcontracts.

(b) Definitions. As used in this clause—

"Personally Identifiable Information (PII)" means information that can be used to distinguish or trace an individual's identity, such as name, social security number, or biometric records, either alone, or when combined with other personal or identifying information that is linked

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or linkable to a specific individual, such as date and place of birth, or mother's maiden name. The definition of PII is not anchored to any single category of information or technology. Rather, it requires a case-by-case assessment of the specific risk that an individual can be identified. In performing this assessment, it is important for an agency to recognize that non-personally identifiable information can become personally identifiable information whenever additional information is made publicly available—in any medium and from any source—that, combined with other available information, could be used to identify an individual.

PII is a subset of sensitive information. Examples of PII include, but are not limited to: name, date of birth, mailing address, telephone number, Social Security number (SSN), email address, zip code, account numbers, certificate/license numbers, vehicle identifiers including license plates, uniform resource locators (URLs), static Internet protocol addresses, biometric identifiers such as fingerprint, voiceprint, iris scan, photographic facial images, or any other unique identifying number or characteristic, and any information where it is reasonably foreseeable that the information will be linked with other information to identify the individual.

(a) *Sensitive Information,* as used in this clause, means any information, which if lost, misused, disclosed, or, without authorization is accessed, or modified, could adversely affect the national or homeland security interest, the conduct of Federal programs, or the privacy to which individuals are entitled under section 552a of title 5, United States Code (the Privacy Act), but which has not been specifically authorized under criteria established by an Executive Order or an Act of Congress to be kept secret in the interest of national defense, homeland security or foreign policy. This definition includes the following categories of information:
(1) Protected Critical Infrastructure Information (PCII) as set out in the Critical Infrastructure Information Act of 2002 (Title II, Subtitle B, of the Homeland Security Act, Pub. L. 107-296, 196 Stat. 2135), as amended, the implementing regulations thereto (Title 6, Code of Federal Regulations, part 29) as amended, the applicable PCII Procedures Manual, as amended, and any supplementary guidance officially communicated by an authorized official of the Department of Homeland Security (including the PCII Program Manager or his/her designee);
(2) Sensitive Security Information (SSI), as defined in Title 49, Code of Federal Regulations, part 1520, as amended, "Policies and Procedures of Safeguarding and Control of SSI," as amended, and any supplementary guidance officially communicated by an authorized official of the Department of Homeland Security (including the Assistant Secretary for the Transportation Security Administration or his/her designee);
(3) Information designated as "For Official Use Only," which is unclassified information of a sensitive nature and the unauthorized disclosure of which could adversely impact a person's privacy or welfare, the conduct of Federal programs, or other programs or operations essential to the national or homeland security interest; and
(4) Any information that is designated "sensitive" or subject to other controls, safeguards or protections in accordance with subsequently adopted homeland security information handling procedures.
(b) "Information Technology Resources" include, but are not limited to, computer equipment, networking equipment, telecommunications equipment, cabling, network drives, computer drives, network software, computer software, software programs, intranet sites, and internet sites.
(c) Consultant employees working on this contract must complete such forms as may be necessary for security or other reasons, including the conduct of background investigations

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to determine suitability. Completed forms shall be submitted as directed by the Contracting Officer. Upon the Contracting Officer's request, the Consultant's employees shall be fingerprinted, or subject to other investigations as required. All Consultant employees requiring recurring access to Government facilities or access to sensitive information or IT resources are required to have a favorably adjudicated background investigation prior to commencing work on this contract unless this requirement is waived under Departmental procedures.

(d) The Contracting Officer may require the Consultant to prohibit individuals from working on the contract if the Government deems their initial or continued employment contrary to the public interest for any reason, including, but not limited to, carelessness, insubordination, incompetence, or security concerns.

(e) Work under this contract may involve access to sensitive information. Therefore, the Consultant shall not disclose, orally or in writing, any sensitive information to any person unless authorized in writing by the Contracting Officer. For those Consultant employees authorized access to sensitive information, the Consultant shall ensure that these persons receive training concerning the protection and disclosure of sensitive information both during and after contract performance.

(f) The Consultant shall include the substance of this clause in all subcontracts at any tier where the subcontractor may have access to Government facilities, sensitive information, or resources.

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WORK ORDER NO.___
STATEMENT OF WORK FOR DEBRIS MONITORING SERVICES

This Task Order No. __, Statement of Work for _____ for the _____ ("Task Order") effective as of _____, between _____ ("Client") and Witt O'Brien's, LLC ("Consultant").

WHEREAS, this Task Order is in support of the _____ ("Agreement"), dated _____, and attached herein as an exhibit;

WHEREAS, the Client selected the Consultant to provide Services, as defined in the proposal ("Proposal") dated _____, and attached herein as an exhibit;

NOW, THEREFORE, in consideration of the terms and conditions contained in the Agreement, and for other good and valuable consideration, the receipt and sufficiency of which are acknowledged, Client and Consultant hereby agree as follows:

1. Parties mutually agree to add the following terms (if applicable): _____
2. Parties mutually agree to add the following specific scope: _____
3. Parties mutually agree to add the following performance period: _____
4. Parties mutually agree to add the following not to exceed amount: _____
5. Other Terms and Conditions: All other terms and conditions of the basic Agreement remain in full force and effect.

IN WITNESS WHEREOF, the Parties hereto, by their duly authorized representatives, execute this Task Order to be effective as of the date set forth above.

[Insert Client]	**Witt O'Brien's, LLC**
_____	_____
Name:	Name:
Title:	Title:

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EXHIBIT A
PROPOSAL FOR SPECIFIC WORK QUOTED

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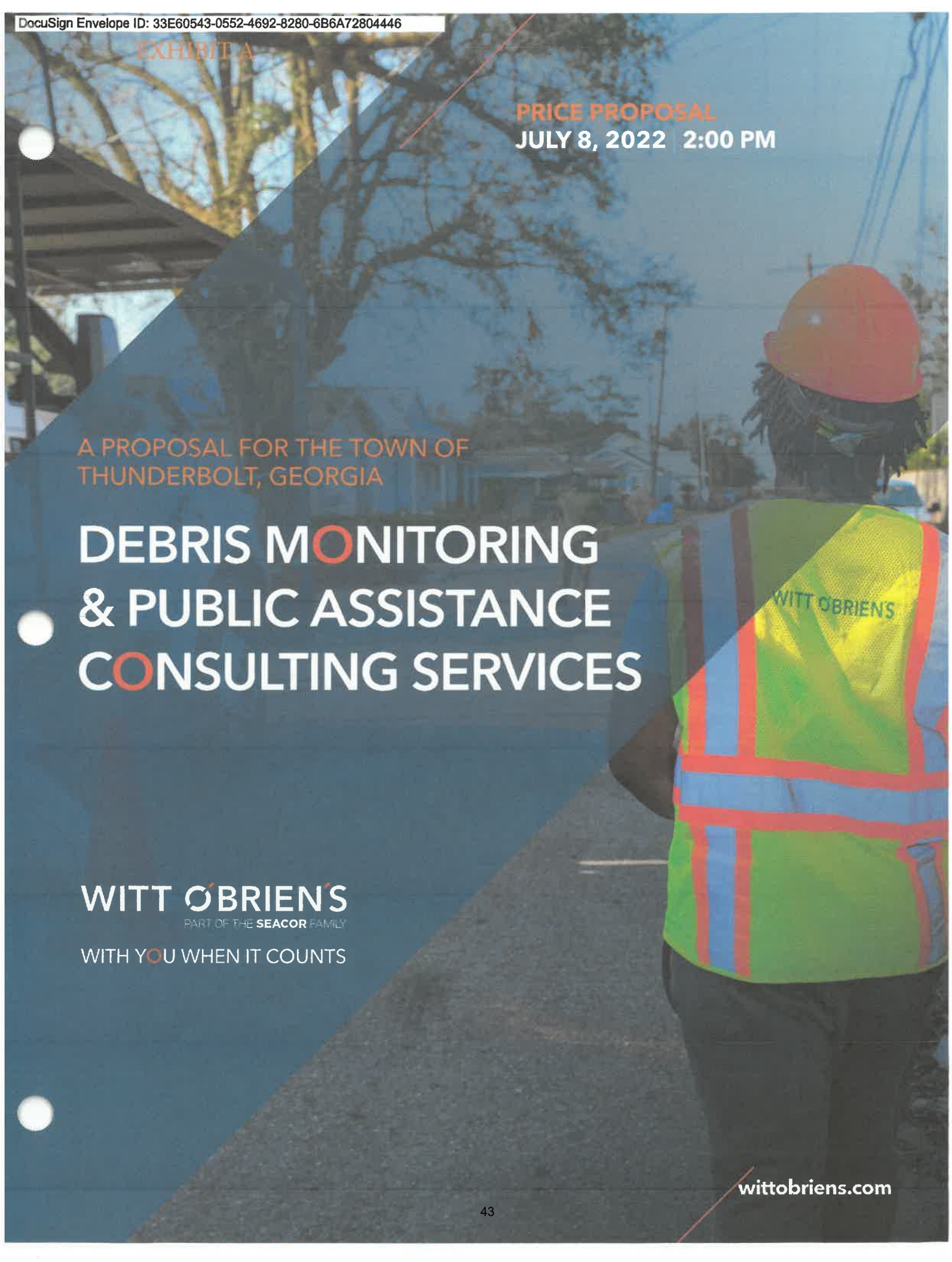
EXHIBIT A

PRICE PROPOSAL
JULY 8, 2022 2:00 PM

A PROPOSAL FOR THE TOWN OF THUNDERBOLT, GEORGIA

DEBRIS MONITORING & PUBLIC ASSISTANCE CONSULTING SERVICES



WITT O'BRIEN'S
PART OF THE SEACOR FAMILY

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PART OF THE SEACOR FAMILY

LETTER OF INTEREST

July 8, 2022

Town of Thunderbolt
Attn: Robert Milie
2821 River Drive
Thunderbolt, GA 31404

RE: Debris Monitoring & Public Assistance Consulting Services

Dear Robert Milie:

Witt O'Brien's is pleased to submit this proposal to the Town of Thunderbolt, Georgia (the Town), to continue our support for emergency debris monitoring and recovery services. As required by the RFP, this volume contains our cost proposal.

We have been privileged to be under contract with the Town for these services and are confident that you will again find our firm to be among the best qualified in the Nation to provide the requested disaster management services. For any questions about this proposal or our capabilities, please contact Charles Bryant, Director of Debris Operations, at 337-476-0158 or cbryant@wittobriens.com, and please cc contractrequests@wittobriens.com.

Respectfully,
Witt O'Brien's, LLC

Cheryl Joiner
Cheryl Joiner
Director, Contracts & Compliance

818 Town & Country Blvd
Suite 200
Houston TX 77024

T: +1 281 320 9796
F: +1 281 320 9700
E: contractrequests@wittobriens.com

wittobriens.com

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PROPOSAL PRICE

Please see Witt O'Brien's proposed price proposal below. The hourly rates are fully burdened with all applicable overhead, project, and non-related project costs.

As demonstration of our commitment to service for the Town of Thunderbolt, the rates provided below are consistent with our current contract with the Town. Thus, ***we have not escalated any rates since our initial agreement in 2017.***

Position	Hourly Rate
Project Manager	$70.00
Operations Manager	$55.00
Scheduler/Expeditor	$48.00
Field Supervisor	$48.00
Disposal Site/Tower Monitor	$34.00
Collection Monitor	$34.00
Roving Monitors/Mapping	$36.00
Citizen Drop off Monitor	$34.00
Call Center/P.I. Staff	$28.00
Data Manager	$55.00
Billing/Invoice Analyst	$38.00
Admin	$27.00
GIS Analyst	$50.00
Environmental Compliance Specialist	$98.00
FEMA/FHWA Program Consultant	$98.00

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WITH YOU WHEN IT COUNTS

818 TOWN & COUNTRY BLVD
SUITE 200, HOUSTON TX 77024

T: +1 281 320 9796
F: +1 281 320 9700

24/7 EMERGENCY
+1 985 781 0804

wittobriens.com

Annual Disaster Debris Removal, Reduction and Disposal Services Contract

By and Between

Thunderbolt, Georgia (Town)

and

Ceres Environmental Services, Inc.

This Contract is made and entered into on the dates hereinafter indicated, by and between the Town of Thunderbolt, Georgia, a political subdivision of the State of Georgia, hereinafter referred to as "Client", and Ceres Environmental Services, Inc., hereinafter referred to as "Ceres", a Florida corporation authorized to do and doing business in the State, represented herein by its Corporate Secretary, Tia Laurie, duly authorized.

WITNESSETH:

WHEREAS, Client requires a standby contract for Disaster Debris Removal, Reduction, and Disposal Services in the event of a natural or man-made disaster; and

WHEREAS, Client prepared and issued an RFP Invitation to Service Providers Annual Disaster Debris Removal, Reduction and Disposal Services, requesting proposals from qualified firms, hereinafter referred to as "the Request", a copy of which is attached hereto and incorporated herein by reference as Exhibit "A"; and

WHEREAS, Ceres submitted a formal proposal in response to the Request dated June 27, 2022, hereinafter referred to as "the Proposal", a copy of which is attached hereto and incorporated herein by reference as Exhibit "B"; and

WHEREAS, Ceres submitted the Proposal, contained relevant pricing information, hereinafter referred to as "Fee Schedule", a copy of which is attached hereto and incorporated herein by reference as Exhibit "C"; and

WHEREAS, Client and selected Ceres are now desirous of entering into a final and binding contract for the Request in accordance with the Exhibit documents annexed hereto and the terms and conditions outlined herein.

NOW THEREFORE, in consideration of the mutual covenants and agreements herein, Client and Ceres hereby agree as follows, to-wit:

SECTION 1 – GENERAL

This Contract will commence upon signature of the Client.

Ceres will provide The Request to Client in accordance with the terms and conditions stated herein, and those contained in the Request, Proposal, and Fee Schedule (Exhibits "A" "B" and "C").

For purposes of this Contract, the order of precedence for interpretation will be as follows:

1. This Contract to provide The Request
2. The Request for Proposal and any and all Addendums ("Exhibit A")
3. The Proposal ("Exhibit B")
4. Fee Schedule ("Exhibit C")

SECTION 2 – SCOPE OF SERVICES

Client hereby engages Ceres to provide The Request in accordance with the terms and conditions stated in Exhibit "A". The Scope of Services specifically includes those items listed in "Scope of Services, included in Exhibit A. This Contract is a pre-placement contract that can be activated by Client in the event of an emergency or disaster-related event such as, but not limited to, hurricanes, tornados, and floods. The use of Ceres' services under this Contract will therefore be on an as-needed basis as requested by Client. The Scope of Services may include removal of debris from public property; removal of debris from public streets and rights-of-way; processing and disposal of debris; preparing and maintaining documentation of all services performed including, but not limited to, time sheets, load tickets, materials used, invoices for rented equipment, etc.

SECTION 3 - MAXIMUM CONTRACT AMOUNT

The Contract is based on Unit Pricing as set forth in the Fee Schedule, Exhibit C.

SECTION 4 – CONTRACT PERIOD

This contract will commence on the signature of Client and will expire on July 13, 2024 with the option to renew for an additional two (2) additional one (1) year terms, upon agreement by both parties under the same terms and conditions. Services under this Contract will only be performed in the event of a disaster and no funding will be available for this Contract until the time of the disaster.

SECTION 5 – PRICE ADJUSTMENT ALLOWANCE

The CLIENT will allow one (1) price adjustment for each year, per one year renewal periods, but prices shall not exceed the Consumer Price Index (Urban Consumers) South Region percent of change for the twelve (12) months immediately preceding the date of written request for price adjustment.

Equitable Adjustments: AGREEMENT RENEWAL a. Price adjustment, during the optional renewal period, will be allowed, b. price adjustment per year of renewal and must be in accordance with the above CPI stipulation.

SECTION 6 – OWNERSHIP OF DEBRIS

All debris, including regulated hazardous waste, and white goods, shall become the property of Ceres for removal and lawful disposal. Ceres is permitted to retain any revenues generated from recycled goods such as white goods, metals etc. This list does not contain all recycled goods that Ceres may retain profits from.

SECTION 7 - AUDIT OF RECORDS

The monitoring and auditing of Ceres' records shall be allowed to Client's Finance Department, and any other appropriate CLIENT entities, or other third parties as designated by CLIENT.

SECTION 8 – INSURANCE REQUIREMENTS

Insurance:

Prior to commencing work, Ceres shall procure and maintain, at Ceres' own cost and expense for the duration of the agreement, the following insurance against claims for injuries to person or damages to property which may arise from, or in connection with, the performance of the work or services hereunder by Ceres, agents, representatives, employees, or subcontractors. The cost of such insurance shall be included in the Proposal.

Ceres shall maintain limits no less than: Commercial General/Umbrella Liability Insurance- $2,000,000.00 aggregate/one million dollars $1,000,000.00 per occurrence. Coverage is provided on a claims-made or preferably on an occurrence basis. The insurance shall include coverage for the following:

- Premise/Operations
- Explosion, Collapse and underground Property Damage Hazard (only when applicable to the project)

- Products/Completed Operations
- Contractual
- Independent Contractors
- Broad Form Property Damage
- Personal Injury

Business Automobile/Umbrella Liability Insurance- $1,000,000 limit per accident for property damage and personal injury.

- Owned/Leased Autos
- Non-owned Autos
- Hired Autos

This policy shall include Employers'/Umbrella Liability coverage for $1,000,000 per accident.

Workers' Compensation coverage is required as a condition of performing work or services for the Client, whether or not the Ceres is otherwise required by law to provide such coverage. Statutory limits are required by Georgia state law, and employer's liability limits of $500,000 each accident, $500,000 policy limit, and $500,000 each employee.

Environmental Liability Insurance- $1,000,000 per occurrence. Pollution Liability Insurance Covering claims for injuries to members of the public or damage to property of others arising out of covered act or omission of the Contractor or any of its employees, agents, subcontractors, or sub-consultants, including Premises and/or Operations, Independent Contractors; Broad Form Property Damage and a Contractual Liability Endorsement with One Million Dollars ($1,000,000) per occurrence and annual aggregate.

Other Insurance Provisions

Commercial General Liability and Automobile Liability Coverage's

The Client, Members of their Commissions, boards, commissioners and committees, officers, agents, employees and volunteers are to be covered as additional insured as respects: liability arising out of activities performed by or on behalf of Ceres; products and completed operations of the Ceres or premises on which Ceres is performing on behalf of the CLIENT. The coverage shall contain no special

limitations on the scope of protection afforded to the CLIENT, members of their Commissions, boards, commissions and committees, officers, agents, employees and volunteers.

Ceres' insurance coverage shall be primary insurance as respects the CLIENT, members of their Commissions, boards, commissioners and committees, officers, agents, employees and volunteers. Any insurance or self-insurance maintained by the CLIENT, members their Commissions, boards, commissions and committees, officers, agents employees and volunteers shall be in excess of Ceres' insurance and shall not contribute with it.

Any failure to comply with reporting provisions of the policies shall not affect coverage provided to the CLIENT, members of their Commissions, boards, commissions and committees, officers, agents, employees and volunteers.

Coverage shall state Ceres' insurance shall apply separately to each insured against whom a claim is made or suit is brought, except with respect to the limits of the insurer's liability.

Worker's' Compensation and Employer's Liability and Property Coverage's

The insurer shall agree to waive all rights of subrogation against the CLIENT, members of their Commissions, boards, commissioners and committees, officers, agents, employees and volunteers for losses arising from activities and operations of CERES in the performance of services under this agreement.

Umbrella Liability Coverage – Ceres' shall purchase and maintain a policy of Umbrella Liability Coverage in excess of the primary insurance afforded above and including all operations of the proposer, with a minimum limit of $10,000,000.00.

All Coverage's Each insurance policy required by this clause shall be endorsed to state that coverage shall not be suspended, voided, canceled, reduces in coverage or in limits except after (30) days prior written notice has been given to the CLIENT.

If CERES, for any reason, fails to maintain insurance coverage which is required pursuant to this Agreement, this shall be deemed a material breach of contract. The CLIENT, at its sole option, may terminate their respective Agreement and obtain damages from the CERES resulting from said breach.

Alternatively, the Client may purchase such required insurance coverage, but has no special obligation to do so. Without further notice to Ceres, the Client may deduct from sums due to Ceres any premium costs advanced by the Client for such insurance.

The Client names as "additional insured" as its interest may appear.

Deductibles and Self-Insured Retention's

Any deductibles or self-insured retentions must be declared to and approved by the CLIENT. At the option of the CLIENT, the insurer shall reduce or eliminate such deductibles or self-insured retentions as respects the CLIENT, members of its Client Commissions, boards, commissions and committees, officers, agents, employees and volunteers; or Ceres shall procure a bond guaranteeing payment of losses, related investigation, claim administration and defense expensed.

Acceptability of Insurers

Insurance is to be with Georgia admitted insures rated A or better by A.M. Best's rating service.

Verification of Coverage

CERES shall furnish the CLIENT with certificates of insurance, with original endorsements affecting coverage required by this clause. The certificates and endorsements for each policy are to be signed by a person authorized by that insurer to bind coverage on its behalf. The certificates and endorsements are to be received and approved by the CLIENT before work commences.

Subcontractors

CERES shall include each of its subcontractors as insureds under the policies of insurance required herein.

Subrogation:

All insurance shall include a waiver of subrogation in favor of the CLIENT and principals for whom the CLIENT is working, including any and all co-lessors of such principal, and shall be subject to the approval of the CLIENT. Insurance provided for comprehensive general liability, comprehensive automobile and water vehicle liability, and umbrella liability shall name the CLIENT as an additional insured party and shall be primary. Certificates shall indicate the waiver of subrogation in favor of the CLIENT and any principal for whom the CLIENT is working, including any and all co-lessors of such principal, and the contractual liability assumed under the Indemnity Provision of this Section, and shall specify that in the event of cancellation or material change in coverage, at least sixty (60) days prior written notice will be given to the CLIENT.

SECTION 9 – TERMINATION

This Agreement may be terminated by the Client or Ceres, should Ceres or Client fail to provide in any substantial manner the services and/or commodities required under this Agreement, or otherwise fails to comply with the terms of this Agreement or the Agreement Documents, or violates any ordinance, regulation or other law which applies to its performance under this Agreement.

Termination for Convenience

The Client may terminate this Contract, at any time, for any reason by giving at least fifteen (15) days notice in writing to the CERES. The CLIENT, at its option, may give CERES a reasonable period of time to cure the noncompliance. If the Contract is terminated by the Client as provided herein, CERES will be entitled to receive payment for those services reasonably performed to the date of termination.

Termination for Cause

If Ceres fails to comply with any of the terms and conditions of this Contract, the Client may give notice, in writing, all deficiencies claimed. The notice will be sufficient for all purposes if it describes the default in general terms. If all defaults are not cured and corrected within a reasonable period as specified in the notice, the Client may, with no further notice, declare this Contract terminated. CERES will thereafter be entitled to receive payment for those services reasonable performed to the date of termination, less the amount of reasonable damages suffered by Client, by reason of Ceres' failure to comply with this Contract.

DELAYS AND EXCUSED PERFORMANCE/FORCE MAJEURE.

Ceres shall not be considered in default by reason of failure, which arises out of causes reasonably beyond Ceres' control, and without its fault or negligence. Such causes may include, however, not limited to: Acts of God, the CLIENT's omissive and commissive failures, natural or public health emergencies, labor disputes, freight embargos.

SECTION 10 – INDEPENDENT CONTRACTOR

While in the performance of providing the services outlined herein or carrying out other obligations under this Contract, CERES shall be acting in the capacity of independent contractor and not as an employee of CLIENT. CLIENT shall not be obligated to any person, firm, corporation, or other entity of any obligation of CERES arising from the performance of services under this Contract. Nothing contained in this Contract is intended to, or shall be construed in any manner, as creating or establishing the relationship of employer/employee between the parties.

CERES shall at all times remain an independent contractor with respect to the services to be performed under this Contract. CERES understands and agrees that CLIENT shall be exempt from payment of all Unemployment Compensation, FICA, retirement, life and/or medical insurance and benefits, including Worker's Compensation insurance for any member, manager, employee, agent, servant, or volunteer of CERES, as CERES is an independent contractor.

SECTION 11 – CONTRACT EXECUTION AND AMENDMENT

This Contract, together with Exhibit A, B, and C represent the entire agreement between Client and Ceres. This Contract supersedes all prior negotiations, representations, or agreements, either written or oral. This Contract may be amended only by written instrument signed by both parties.

SECTION 12 – APPLICABLE LAW AND VENUE

This Contract shall be consummated in the State of Georgia and shall be governed and construed in accordance with the laws of the State of Georgia. Venue shall be in the Chatham County, State of Georgia; and by entering into this Contract, Ceres expressly waives any objections it has or may have to jurisdiction and venue, regardless of Ceres' residence or domicile.

SECTION 13 – INDEMNIFICATION

To the fullest extent permitted by law, Ceres shall protect, defend, indemnify, save and hold harmless Client, all Client departments, agencies, boards and commissions its officers, agents, servants and employees including volunteers from and against any and all claims, demands, expense and liability arising out of liability or death to any person or the damage, loss or destruction of any property which may occur or in any way grow out of any act or omission of Ceres, its agents, servants, and employees while performing any of the services contemplated under this Contract and any and all costs, expense or attorney's fees incurred by Ceres as a result of any such claims, demands and/or causes of action, except for those claims, demands, or causes of action arising out of the negligence of Client, its agents and/or employees. Ceres agrees to investigate, handle, respond to, provide defense for, and defend any such claims, demands, or causes of action at its sole expense, and agrees to bear all other costs and expenses related thereto, even if proven to be groundless, false or fraudulent.

SECTION 14 – NOTICES

Any communications by either party to the other shall be deemed to be duly given if set forth in writing, and personally delivered or sent by mail, registered or certified, postage prepaid with return receipt requested as follows:

Notices should be sent to CLIENT at the following address:

Town of Thunderbolt
Town Administrator
2821 River Drive
Thunderbolt, GA 31404

Notices should be sent to CERES at the following address:

CERES ENVIRONMENTAL SERVICES, INC.
ATTN: Tia Laurie
6968 Professional Parkway
Sarasota, FL 34240
800-218-4424

Written notices delivered personally shall be deemed communicated as of actual receipt. Mailed notices shall be deemed communicated five (5) days after deposit in the mail, postage prepaid, certified, in accordance with this Section.

SECTION 15 – SEVERABILITY

The parties to this Contract understand and agree that the provisions herein, shall, between them, have the effect of law, but in reference to matters not provided herein, the Contract shall be governed by the regulations of the United States and the laws of the State of Georgia. If any provision of this Contract is held to be illegal, invalid, or unenforceable under present or future laws effective during the term of this Contract, such provision is fully severable, and this Contract must be construed and enforced as if such illegal, invalid, or unenforceable provisions never comprised a part of this Contract and the remaining provisions of this Contract remain in full force and effect and may not be affected by the illegal, invalid, or unenforceable provision or its severance from this Contract.

SECTION 16 – ASSIGNMENT

This Contract may not be assigned or transferred at any time to any person, firm, corporation or other legal entity except with the express prior written approval of CLIENT.

SECTION 17 - DISCRIMINATION CLAUSE

Ceres agrees to abide by the requirements of the following as applicable: Title VI and VII of the Civil Rights Act of 1964, as amended by the Equal Opportunity Act of 1972, Federal Executive Order 11246, the Federal Rehabilitation Act of 1973, as amended, the Vietnam Era Veteran's Readjustment Assistance Act of 1974, Title IX of the Education Amendments of 1972, the Age Act of 1975, and Ceres agrees to abide by the requirements of the Americans with Disabilities Act of 990. CERES agrees to provide a work environment free of potential harassment and not to discriminate in its employment practices and will render services under this Contract without regard to race, color, religion, sex, sexual orientation, national origin, veteran status, political affiliation, or disabilities. Any act of discrimination committed by Ceres, or failure to comply with these statutory obligations when applicable shall be grounds for termination of this Contract.

SECTION 18 -OWNERSHIP OF RECORDS

When applicable, all records, reports, documents, or other material related to this Contract and/or obtained or prepared by Ceres in connection with the performance of the services contracted herein, shall become the property of Client, and shall, upon request, be returned by Ceres to Client, at Ceres' expense, at the termination or the expiration of this Contract.

SECTION 19 - FEDERAL CLAUSES

CERES agrees to the following miscellaneous terms and provisions for all federally funded and reimbursable contracts:

A. Contracting with small and minority businesses, women's business enterprises, and labor surplus area firms.

(1) In accordance with 2 C.F.R. § 200.321, CERES shall take all necessary affirmative steps to assure that minority businesses, women's business enterprises, and labor surplus area firms are used when possible.

(2) Affirmative steps for the prime contractor to take regarding subcontractors must include:

(a) Placing qualified small and minority businesses and women's business enterprises on solicitation lists.

(b) Assuring that small and minority businesses, and women's business enterprises are solicited whenever they are potential sources.

(c) Dividing total requirements, when economically feasible, into smaller tasks or quantities to permit maximum participation by small and minority businesses, and women's business enterprises;

(d) Establishing delivery schedules, where the requirement permits, which encourage participation by small and minority businesses, and women's business enterprises;

(e) Using the services and assistance, as appropriate, of such organizations as the Small Business Administration and the Minority Business Development Agency of the Department of Commerce.

(3) Contractor shall sign the Statement of Compliance - Small and Minority Businesses, Women's Business Enterprises, and Labor Surplus Area Firms.

B. Debarment and Suspension:

CLIENT and CERES are subject to the debarment and suspension regulations implementing Executive Order 12549, Debarment and Suspension (1986) and Executive Order 12689, Debarment and Suspension (1989) at 2 C.F.R. Part 3000 (Non- procurement Debarment and Suspension).

(1) This contract is a covered transaction for purposes of 2 C.F.R. pt. 180 and 2 C.F.R. pt. 3000. As such CERES is required to verify that none of the contractor, its principals (defined at 2 C.F.R. § 180.995), or its affiliates (defined at 2 C.F.R. § 180.905) are excluded (defined at 2 C.F.R. § 180.940) or disqualified (defined at 2 C.F.R. § 180.935).

(2) CERES must comply with 2 C.F.R. pt. 180, subpart C and 2 C.F.R. pt. 3000, subpart C and must include a requirement to comply with these regulations in any lower tier covered transaction it enters into.

(3) This certification is a material representation of fact relied upon by CERES. If it is later determined that CERES did not comply with 2 C.F.R. pt. 180, subpart C and 2 C.F.R. pt. 3000, subpart C, in addition to remedies available to CLIENT, the Federal Government may pursue available remedies, including but not limited to suspension and/ or debarment.

(4) CERES agrees to comply with the requirements of 2 C.F.R. pt. 180, subpart C and 2 C.F.R. pt. 3000, sub-part C while this offer is valid and throughout the period of any contract that may arise from this offer. The bidder or proposer further agrees to include a provision requiring such compliance in its lower tier covered transactions.

C. Byrd Anti-Lobbying Amendment 31 U.S.C. § 1352 (as amended)

Contractors who bid for an award of $100,000 or more shall file the required certification. Each tier certifies to the tier above that it will not and has not used Federal appropriated funds to pay any person or organization for influencing or attempting to influence an officer or employee of any agency, a member

of Congress, officer or employee of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant, or any other award covered by 31 U.S.C. § 1352. Each tier shall also disclose any lobbying with non-Federal funds that takes place in connection with obtaining any Federal award. Such disclosures are forwarded from tier to tier, up to the recipient. Contractor shall sign the Byrd Anti Lobbying Certification for Contracts, Grants, Loans, and Cooperative Agreements form.

D. DHS Seal, Logo, and Flags

Ceres shall not use the Department Homeland Security seal(s), logos, crests, or reproductions of flags or likenesses of DHS agency officials without specific FEMA pre-approval.

E. Compliance with Federal Law, Regulations, and Executive Orders

Contract financial assistance will be used to fund the contract only. The contractor will comply will all applicable federal law, regulations, executive orders, FEMA policies, procedures, and directives.

F. No Obligation by Federal Government

The Federal Government is not a party to this contract and is not subject to any obligations or liabilities to the non-Federal entity, contractor, or any other party pertaining to any matter resulting from the contract.

G. Program Fraud and False or Fraudulent Statements or Related Acts

CERES acknowledges that 31 U.S.C. Chap. 38 (Administrative Remedies for False Claims and Statements) applies to the contractor's actions pertaining to this contract. Ceres SHALL ABIDE BY THE FOLLOWING PROVISIONS IF THE BOXES ARE CHECKED.

H. PROHIBITION ON CONTRACTING FOR COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES.

(a) *Definitions.* As used in this clause, the terms backhaul; covered foreign country; covered telecommunications equipment or services; interconnection arrangements; roaming; substantial or essential component; and telecommunications equipment or services have the meaning as defined in FEMA Policy 405-143-1, Prohibitions on Expending FEMA Award Funds for Covered Telecommunications Equipment or Services (Interim), as used in this clause—

(b) *Prohibitions.*

(1) Section 889(b) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019, Pub. L. No. 115-232, and 2 C.F.R. § 200.216 prohibit the head of an executive agency on or after Aug.13, 2020, from obligating or expending grant, cooperative agreement, loan, or loan guarantee funds on certain telecommunications products or from certain entities for national security reasons.

(2) Unless an exception in paragraph (c) of this clause applies, the contractor and its subcontractors may not use grant, cooperative agreement, loan, or loan guarantee funds from the Federal Emergency Management Agency to:

(i) Procure or obtain any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology of any system;

(ii) Enter into, extend, or renew a contract to procure or obtain any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology of any system;

(iii) Enter into, extend, or renew contracts with entities that use covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system; or

(iv) Provide, as part of its performance of this contract, subcontract, or other contractual instrument, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Exceptions.*

(1) This clause does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) By necessary implication and regulation, the prohibitions also do not apply to:

(i) Covered telecommunications equipment or services that:

i. Are *not used* as a substantial or essential component of any system; *and*

ii. Are *not used* as critical technology of any system.

(ii) Other telecommunications equipment or services that are not considered covered telecommunications equipment or services.

(d) *Reporting requirement.*

(1) In the event the CERES identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or CERES is notified of such by a subcontractor at any tier or by any other source, CERES shall report the information in paragraph (d)(2) of this clause to the recipient or subrecipient, unless elsewhere in this contract are established procedures for reporting the information.

(2) CERES shall report the following information pursuant to paragraph (d)(1) of this clause:

(i) Within one business day from the date of such identification or notification: The contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: Any further available information about mitigation actions undertaken or recommended. In addition, CERES shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) *Subcontracts.* CERES shall insert the substance of this clause, including this paragraph (e), in all subcontracts and other contractual instruments.

I. DOMESTIC PREFERENCES FOR PROCUREMENTS

As appropriate, and to the extent consistent with law, CERES should, to the greatest extent practicable, provide a preference for the purchase, acquisition, or use of goods, products, or materials produced in the United States. This includes, but is not limited to iron, aluminum, steel, cement, and other manufactured products.

For purposes of this clause:

Produced in the United States means, for iron and steel products, that all manufacturing processes, from the initial melting stage through the application of coatings, occurred in the United States.

Manufactured products mean items and construction materials composed in whole or in part of non-ferrous metals such as aluminum; plastics and polymer-based products such as polyvinyl chloride pipe; aggregates such as concrete; glass, including optical fiber; and lumber.

J. COPYRIGHT AND DATA RIGHTS

Ceres grants to the Client, a paid-up, royalty-free, nonexclusive, irrevocable, worldwide license in data first produced in the performance of this contract to reproduce, publish, or otherwise use, including prepare derivative works, distribute copies to the public, and perform publicly and display publicly such data. For data required by the contract but not first produced in the performance of this contract, Ceres will identify such data and grant to the Client or acquires on its behalf a license of the same scope as for data first produced in the performance of this contract. Data, as used herein, shall include any work subject to copyright under 17 U.S.C. § 102, for example, any written reports or literary works, software and/or source code, music, choreography, pictures or images, graphics, sculptures, videos, motion pictures or other audiovisual works, sound and/or video recordings, and architectural works. Upon or before the completion of this contract, Ceres will deliver to the Client data first produced in the

performance of this contract and data required by the contract but not first produced in the performance of this contract in formats acceptable by the Client.

[X] **Federally Assisted Construction Contract**

As required by 41 C.F.R. Part 60-1.4(b), during the performance of this contract, CERES agrees as follows:

(1) Ceres will not discriminate against any employee or applicant for employment because of race, color, religion, sex, sexual orientation, gender identity, or national origin. The Ceres will take affirmative action to ensure that applicants are employed, and that employees are treated during employment without regard to their race, color, religion, sex, sexual orientation, gender identity, or national origin. Such action shall include, but not be limited to the following:

Employment, upgrading, demotion, or transfer; recruitment or recruitment advertising; layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship. Ceres agrees to post in conspicuous places, available to employees and applicants for employment, notices to be provided setting forth the provisions of this nondiscrimination clause.

(2) Ceres will, in all solicitations or advertisements for employees placed by or on behalf of the Ceres, state that all qualified applicants will receive consideration for employment without regard to race, color, religion, sex, sexual orientation, gender identity, or national origin.

(3) Ceres will not discharge or in any other manner discriminate against any employee or applicant for employment because such employee or applicant has inquired about, discussed, or disclosed the compensation of the employee or applicant or another employee or applicant. This provision shall not apply to instances in which an employee who has access to the compensation information of other employees or applicants as a part of such employee's essential job functions discloses the compensation of such other employees or applicants to individuals who do not otherwise have access to such information, unless such disclosure is in response to a formal complaint or charge, in furtherance of an investigation, proceeding, hearing, or action, including an investigation conducted by the employer, or is consistent with Ceres' legal duty to furnish information.

(4) Ceres will send to each labor union or representative of workers with which he has a collective bargaining agreement or other contract or understanding, a notice to be provided advising the said labor union or workers' representatives of Ceres' commitments under this section, and shall post copies of the notice in conspicuous places available to employees and applicants for employment.

(5) Ceres will comply with all provisions of Executive Order 11246 of September 24, 1965, and of the rules, regulations, and relevant orders of the Secretary of Labor.

(6) Ceres will furnish all information and reports required by Executive Order 11246 of September 24, 1965, and by rules, regulations, and orders of the Secretary of Labor, or pursuant thereto, and will permit access to his books, records, and accounts by the administering agency and the Secretary of Labor for purposes of investigation to ascertain compliance with such rules, regulations, and orders.

(7) In the event of Ceres' noncompliance with the nondiscrimination clauses of this contract or with any of the said rules, regulations, or orders, this contract may be canceled, terminated, or suspended in whole or in part and the Ceres may be declared ineligible for further Government contracts or federally assisted construction contracts in accordance with procedures authorized in Executive Order 11246 of September 24, 1965, and such other sanctions may be imposed and remedies invoked as provided in Executive Order 11246 of September 24, 1965, or by rule, regulation, or order of the Secretary of Labor, or as otherwise provided by law.

(8) Ceres will include the portion of the sentence immediately preceding paragraph (1) and the provisions of paragraphs (1) through (8) in every subcontract or purchase order unless exempted by rules, regulations, or orders of the Secretary of Labor issued pursuant to section 204 of Executive Order 11246 of September 24, 1965, so that such provisions will be binding upon each subcontractor or vendor. Ceres will take such action with respect to any subcontract or purchase order as the administering agency may direct as a means of enforcing such provisions, including sanctions for noncompliance:
Provided, however, that in the event Ceres becomes involved in, or is threatened with, litigation with a subcontractor or vendor as a result of such direction by the administering agency, Ceres may request the United States to enter into such litigation to protect the interests of the United States.

The Client further agrees that it will be bound by the above equal opportunity clause with respect to its own employment practices when it participates in federally assisted construction work: *Provided,* that if the Client so participating is a state or local government, the above equal opportunity clause is not applicable to any agency, instrumentality or subdivision of such government which does not participate in work on or under the contract.
The applicant agrees that it will assist and cooperate actively with the administering agency and the Secretary of Labor in obtaining the compliance of Ceres and subcontractor with the equal opportunity clause and the rules, regulations, and relevant orders of the Secretary of Labor, that it will furnish the administering agency and the Secretary of Labor such information as they may require for the supervision of such compliance, and that it will otherwise assist the administering agency in the discharge of the agency's primary responsibility for securing

compliance.

The Client further agrees that it will refrain from entering into any contract or contract modification subject to Executive Order 11246 of September 24, 1965, with a Ceres debarred from, or who has not demonstrated eligibility for, Government contracts and federally assisted construction contracts pursuant to the Executive Order and will carry out such sanctions and penalties for violation of the equal opportunity clause as may be imposed upon Ceress and subcontractor by the administering agency or the Secretary of Labor pursuant to Part II, Subpart D of the Executive Order. In addition, the Client agrees that if it fails or refuses to comply with these undertakings, the administering agency may take any or all of the following actions: Cancel, terminate, or suspend in whole or in part this grant (contract, loan, insurance, guarantee); refrain from extending any further assistance to the applicant under the program with respect to which the failure or refund occurred until satisfactory assurance of future compliance has been received from such applicant; and refer the case to the Department of Justice for appropriate legal proceedings."

[X] PROCUREMENT OF RECOVERED MATERIALS

CLIENT and CERES must comply with section 6002 of the Solid Waste Disposal Act, as amended by the Resource Conservation and Recovery Act. The requirements of Section 6002 include procuring only items designated in guidelines of the Environmental Protection Agency (EPA) at 40 CFR part 247 that contain the highest percentage of recovered materials practicable, consistent with maintaining a satisfactory level of competition, where the purchase price of the item exceeds $10,000 or the value of the quantity acquired during the preceding fiscal year exceeded $10,000; procuring solid waste management services in a manner that maximizes energy and resource recovery; and establishing an affirmative procurement program for procurement of recovered materials identified in the EPA guidelines.

(1) In the performance of this contract, CERES shall make maximum use of products containing recovered materials that are EPA designated items unless the product cannot be acquired:

(i) Competitively within a timeframe providing for compliance with the contract performance schedule;
(ii) Meeting contract performance requirements; or
(iii) At a reasonable price.

(2) Information about this requirement is available at EPA's Comprehensive Procurement Guidelines web site, http://www.epa.gov/cpg/. The list of EPA-designate items is available at http://www.epa.gov/cpg/products.htm."

[X] FEMA REQUIREMENTS

(1) CHANGE OR MODIFICATION.

To be eligible for FEMA assistance under a FEMA grant or cooperative agreement, the cost of a change, modification, change order, or constructive change must be allowable, allocable, within the scope of the grant or cooperative agreement, and reasonable for the completion of the project scope. Accordingly, CERES shall comply with the following:

CHANGE IN THE WORK OR TERMS OF THE PROJECT DOCUMENTS

(1) Without invalidating the contract, Client reserves and shall have the right, from time to time to make such increases, decreases or other changes in the character or quantity of the work as may be considered necessary or desirable to complete fully and acceptably the project in a satisfactory manner in accordance with the scope of the FEMA grant or cooperative agreement. Any extra or additional Services within the scope of the Request must be accomplished by means of appropriate Field Orders, Change Orders, or Amendments.

(2) The Contract Administrator shall have the right to approve and issue Field Orders, Change Order, or Amendments setting forth written interpretations of the intent of the project documents and ordering minor changes in work execution, providing the Field Order, Change Order, or Amendment involves no change in the Contract Price or the Contract Time.

(3) Changes in the quantity or character of the Services within the scope of the Request which are not properly the subject of Field Orders, including all changes resulting in changes in the Contract Price, or the Contract Time, shall be authorized only by Change Orders or Amendments approved in advance and issued in accordance with the provisions of CLIENT'S Procurement Code, as amended from time to time.

(2) ACCESS TO RECORDS.

(a) In addition to the requirements of Executive Order 11246 of September 24, 1965, Ceres and their successors, transferees, assignees, and subcontractors acknowledge and agree to comply with applicable provisions governing Department and FEMA access to records, accounts, documents, information, facilities, and staff. See DRS Standard Terms and Conditions, v 3.0, if XXVI (2013).

(b) CERES agrees to provide CLIENT, the FEMA Administrator, the Comptroller General of the United States, or any of their authorized representatives, access to any books, documents, papers, and records of CERES which are directly pertinent to this contract for the purposes of making audits, examinations, excerpts, and transcriptions.

(c) CERES agrees to permit any of the foregoing parties to reproduce by any means whatsoever or to copy excerpts and transcriptions as reasonably needed.

(d) CERES agrees to provide the FEMA Administrator or his authorized representative access to construction or other work sites pertaining to the work being completed under the contract.

[X] CONTRACTS IN EXCESS OF $100,000.00 THAT INVOLVE THE EMPLOYMENT OF MECHANICS OR LABORERS

Contract Work Hours and Safety Standards Act

(1) Overtime requirements. No contractor or subcontractor contracting for any part of the contract work which may require or involve the employment of laborers or mechanics shall require or permit any such laborer or mechanic in any workweek in which he or she is employed on such work to work in excess of forty hours in such workweek unless such laborer or mechanic receives compensation at a rate not less than one and one-halftimes the basic rate of pay for all hours worked in excess of forty hours in such workweek.

(2) Violation; liability for unpaid wages; liquidated damages. In the event of any violation of the clause set forth in this section the contractor and any subcontractor responsible therefor shall be liable for the unpaid wages. In addition, such contractor and subcontractor shall be liable to the United States (in the case of work done under contract for the District of Columbia or a territory, to such District or to such territory), for liquidated damages. Such liquidated damages shall be computed with respect to each individual laborer or mechanic, including watchmen and guards, employed in violation of the clause set forth in this section, in the sum of $10 for each calendar day on which such individual was required or permitted to work in excess of the standard workweek of forty hours without payment of the overtime wages required by the clause set forth in this section.

(3) Withholding for unpaid wages and liquidated damages. CLIENT shall upon its own action or upon written request of an authorized representative of the Department of Labor withhold or cause to be withheld, from any moneys payable on account of work performed by CERES or subcontractor under any such contract or any other Federal contract with the same prime contractor, or any other federally-assisted contract subject to the Contract Work Hours and Safety Standards Act, which is held by the same prime contractor, such sums as may be determined to be necessary to satisfy any liabilities of such contractor or subcontractor for unpaid wages and liquidated damages as provided in the clause set forth in this section.

(4) Subcontracts. CERES or subcontractor shall insert in any subcontracts the clauses set forth in paragraph (1) through (4) of this section and also a clause requiring the subcontractors to include these clauses in any lower tier subcontracts. The prime contractor shall be responsible for compliance by any subcontractor or lower tier subcontractor with the clauses set forth in paragraphs (1) through (4) of this section.

[X] CLEAN AIR ACT & FEDERAL WATER POLLUTION CONTROL ACT – CONTRACTS IN EXCESS OF $150,000.00

(1) CERES agrees to comply with all applicable standards, orders or regulations issued pursuant to the Clean Air Act, as amended, 42 U.S.C. § 7401 et seq.

(2) CERES agrees to report each violation to CLIENT and understands and agrees that CLIENT will, in turn, report each violation as required to assure notification to the Federal Emergency Management Agency (FEMA), and the appropriate Environmental Protection Agency Regional Office.

(3) CERES agrees to include these requirements in each subcontract exceeding $100,000 financed in whole or in part with Federal assistance provided by FEMA. FEDERAL WATER POLLUTION CONTROL ACT (1) CERES agrees to comply with all applicable standards, orders or regulations issued pursuant to the Federal Water Pollution Control Act, as amended, 33 U.S.C. 1251 et seq.

(4) CERES agrees to report each violation to CLIENT and understands and agrees that CLIENT, in turn, report each violation as required to assure notification to the Federal Emergency Management Agency, and the appropriate Environmental Protection Agency Regional Office.

"Compliance with the Copeland "Anti-Kickback" Act.

Ceres shall comply with 18 U.S.C. § 874, 40 U.S.C. § 3145, and the requirements of 29 C.F.R. Part 3 as may be applicable, which are incorporated by reference into this contract.
Ceres or subcontractor shall insert in any subcontracts the clause above
and such other clauses as FEMA may by appropriate instructions require, and also a clause requiring the subcontractors to include these clauses in any lower tier subcontracts. Ceres shall be responsible for the compliance by any subcontractor or lower tier subcontractor with all of these contract clauses.

A breach of the contract clauses above may be grounds for termination of the contract,
and for debarment as a Ceres and subcontractor as provided in 29 C.F.R. § 5.12.

IN WITNESS WHEREOF, the parties have executed this Contract before the undersigned competent witnesses on the dates hereinafter indicated.

WITNESS:

_____

The Town of Thunderbolt, Georgia

By: _____

Date: _____

APPROVED AS TO FORM:

_____

Office of the Town Attorney

WITNESS:

August 31, 2022

CERES ENVIRONMENTAL SERVICES, INC.

By: _____

Tia Laurie – Corporate Secretary

Date: August 31, 2022

BYRD ANTI LOBBYING CERTIFICATION FOR CONTRACTS, GRANTS, LOANS, AND COOPERATIVE AGREEMENTS

To be submitted with each bid or offer exceeding $100,000.00

The undersigned certifies, to the best of his or her knowledge and belief, that:

(1) No Federal appropriated funds have been paid or will be paid, by or on behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of an agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal contract, grant, loan, or cooperative agreement.

(2) If any funds other than Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with this Federal contract, grant, loan, or cooperative agreement, the undersigned shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying," in accordance with its instructions.

(3) The undersigned shall require that the language of this certification be included in the award documents for all sub-awards at all tiers (including subcontracts, sub-grants, and contracts under grants, loans, and cooperative agreements) and that all sub-recipients shall certify and disclose accordingly.

This certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this certification is a prerequisite for making or entering into this transaction imposed by section 1352, title 31, U.S. Code. Any person who fails to file the required certification shall be subject to a civil penalty of not less than $10,000 and not more than $100,000 for each such failure.

The Contractor, Ceres Environmental Services, Inc. certifies or affirms the truthfulness and accuracy of each statement of its certification and disclosure, if any. In addition, the Contractor understands and agrees that the provisions of 31 U.S.C. §3801 *et seq.* apply to this certification and disclosure, if any.

Signature of Contractor's Authorized Official

Tia Laurie, Corporate Secretary
Name and Title of Contractor's Authorized Official

Date August 31, 2022

STATEMENT OF COMPLIANCE - SMALL AND MINORITY BUSINESSES, WOMEN'S BUSINESS ENTERPRISES, AND LABOR SURPLUS AREA FIRMS

The undersigned CONTRACTOR hereby swears under penalty of perjury that CONTRACTOR took the following affirmative steps to assure that minority businesses, women's business enterprises, and labor surplus area firms were used when possible:

(a) Placing qualified small and minority businesses and women's business enterprises on solicitation lists;
(b) Assuring that small and minority businesses, and women's business enterprises are solicited whenever they are potential sources;
(c) Dividing total requirements, when economically feasible, into smaller tasks or quantities to permit maximum participation by small and minority businesses, and women's business enterprises;
(d) Establishing delivery schedules, where the requirement permits, which encourage participation by small and minority businesses, and women's business enterprises;
(e) Using the services and assistance, as appropriate, of such organizations as the Small Business Administration and the Minority Business Development Agency of the Department of Commerce.

Dated August 31, 2022

Ceres Environmental Services, Inc.
Contractor

By _____
(Signature)

By: Tia Laurie, Corporate Secretary
(Name and Title)

Agreement for Event Planning Services Blessing of the Fleet
& Social Media Management Services
Town of Thunderbolt, Georgia

This agreement is made and entered into by and between The Town of Thunderbolt, whose address is 2821 River Drive, Thunderbolt, GA 31404 ("Client"), and Simply Savannah Marketing ("Simply Savannah Marketing"), whose address is 213 E Hall St., Savannah, GA 31401.

1. Services.

a. Simply Savannah Marketing will provide the Client with event planning services for The Town of Thunderbolt Blessing of the Fleet on (2023 date TBD), along River Drive. The client agrees to hire Simply Savannah Marketing as an independent contractor for the sole purpose of advising and consulting for the planning and execution of this event. At all times during the course of this contract, the Client retains all decision-making power and responsibility for the final execution of the event.
b. Simply Savannah Marketing will provide social media management for a period of twelve (12) months beginning September 1, 2022, to August 31, 2023, for the Town of Thunderbolt. Social media management includes The Town of Thunderbolt and Blessing of the Fleet pages.

2. Payment terms and conditions. All fees are quoted in and shall be paid in USD (United States dollars). Invoices must be made via QuickBooks or by check to Simply Savannah Marketing. All fees are nonrefundable.

3. Payment schedule

a. Event Planning Services Blessing of the Fleet and Social Media Management for the Town of Thunderbolt for a twelve (12) month term. ($34,400)
    i. Prior to or upon signing this contract, the Client agrees to pay Simply Savannah Marketing $3,400. This deposit constitutes 10 percent (10%) of the total event organizer service fees of $34,400 as recited above.
    ii. Before May 1, 2023 or one day before the Blessing of the Feet Event if it is postponed, whichever comes later, the Client agrees to pay Simply Savannah Marketing any and all additional approved project expenses, plus fees for managing social media and public relations pertaining to the Town of Thunderbolt. There is a $100 late fee per diem for every ten (10) day period that this payment is past due.
    iii. Kill fee. Should Simply Savannah Marketing fail to secure $25,000 in corporate sponsorship funds by March 24, 2023, then the Client may cancel the contract and Simply Savannah Marketing will retain the deposit and will continue Social Media Services until August 31st, 2023.or the client may reschedule the event and efforts to secure sponsorships.
    iv. It is recognized that the entire festival expenses are anticipated to be approximately $70,000, and Simply Savannah Marketing is expected via

sponsorship to cover all costs of said festival. The expected expenses in addition to the $34,400 to be paid to Simply Savannah Marketing will include but not be limited to Stage Rental, Live Radio Broadcast, Sound System, Trolly Rental, Event Signage & Flyers, Special Event Permit Application. Portable Toilets, Medical Tent, Bishop Fee, Social Media Paid Promotion, Digital TV/Radio Advertising, event insurance and Town costs for overtime expenses of employees before, during and after the event. Any money secured over the amount of festival related costs born by the Town of Thunderbolt, will remain with the Town of Thunderbolt to be used for public good (park upgrades, other events for residents and the like.

4. Event vendors. The Client agrees to hire event vendors that are licensed in their fields and who are insured.

5. Contract term. Both parties agree that the term of this Agreement shall begin when the Client's deposit has cleared through the bank and shall end when the event services are complete.

6. Liability. The Client assumes all liability for the event and is responsible for obtaining event insurance coverage at the Client's discretion.

7. Image release The client agrees that Simply Savannah Marketing may use images from the event for display, advertising, website, blog, magazine submissions, and any other means of promotion of Simply Savannah Marketing's business, and Simply Savannah Marketing has the right to alter the images. The client waives any right to payment, royalties, or any other consideration for the use of the images. The client waives the right to inspect or approve the finished product, including a written or electronic copy, wherein the Clients' likeness appears. Simply Savannah Marketing is hereby held harmless and released and forever discharged from all claims, demands, and causes of action which Clients, their heirs, representatives, executors, administrators, or any other persons acting on Clients behalf or on behalf of the Clients' estates have or may have by reason of this authorization.

8. Indemnification. All debts, obligations, and liabilities of the Client (the Indemnitor), whether arising in contract, tort, or otherwise, will be solely the debts, obligations, and liabilities of the Client, and Simply Savannah Marketing shall not be obligated for any such debt, obligation, or liability of the Client solely by reason of being an independent contractor for the hired event or task.

9. Force majeure. Neither party will be held responsible if the fulfillment of any terms or provisions of this Agreement is delayed or prevented by acts of God, fires, floods, explosions, riots, wars, hurricanes, or any events beyond the reasonable anticipation and control of the Party whose performance is affected thereby.

10. Confidentiality. Simply Savannah Marketing agrees not to disclose private, confidential information obtained from the Client to anyone.

11. Amendments. This agreement contains the entire understanding of the parties with respect to all matters referred to herein and may not be changed, amended, modified, or waived orally but only by a written agreement signed by the party against whom enforcement of any waiver, change, modification, or amendment is sought. This agreement shall be construed under the laws of the State of Georgia.

12. Disputes. All parties agree that any disputes will be resolved in the Chatham County of Georgia, United States of America. All parties agree to avoid litigation and to settle differences with an agreed-upon mediator.

The parties have executed this agreement on Sept. 14th, 2022.

Mayor Dana Williams
The Town of Thunderbolt, Georgia

Marianne Ganem-Poppell
Simply Savannah Marketing

Sales and Service

9/1/2022

TOWN OF THUNDERBOLT
2821 RIVER DR
THUNDERBOLT, GA 31404
RE: Planned Maintenance Proposal

Dear Oscar Crosby,

Cummins Sales and Service is a premier engine and power generation systems provider committed to delivering fast and proven solutions to our customers. We are pleased to offer you a Planned Maintenance Proposal for your review and approval. Due to the critical nature of your standby power system, this Agreement was developed based on your specific needs and equipment to ensure maximum performance and reliability.

Benefits of Planned Maintenance

- Improves system reliability.
- Maintenance performed by certified technicians specifically trained in power generation.
- PM customers receive preferred service for unscheduled emergency repairs.
- Creation of a service record for customer equipment.
- Additional maintenance recommendations documented at that time.
- Scheduling managed by Cummins Sales and Service to ensure timely maintenance intervals.
- Eliminates administrative burden, covers equipment from multiple vendors.

Please sign, date and return the enclosed Agreement to our office along with any purchase documentation necessary so we can tend to your servicing needs. Planned Maintenance Agreements are "auto-renewed" annually prior to the end of your agreement. Should you have any questions or require additional information on this or any other subject relating to your equipment, please feel free to contact me. We look forward to the opportunity to earn your trust and business.

Sincerely,

Steve Fuller

Steve Fuller
Planned Maintenance Sales
Office: (404) 763-0151
Cell: (912) 257-2844
Email: steve.fuller@cummins.com

Cummins Sales and Service

Cummins Inc. dba Cummins Sales and Service
5534 Augusta Road
Savannah, GA 31408
Phone: (912)721-3028
Fax: (404) 763-0711

PLANNED EQUIPMENT MAINTENANCE AGREEMENT

Customer Address	Customer Contact		Quote Information	
TOWN OF THUNDERBOLT	Name:	Oscar Crosby	Quote Date:	9/1/2022
2821 RIVER DR	Phone:	(912) 354-5533	Quote Expires:	10/31/2022
THUNDERBOLT, GA 31404	Cell:	912-547-3545	Quote ID:	QT-15980
Customer #: 344631	Fax:	(912) 354-2038	Quoted By:	Steve Fuller
Payment Type: Pay As You Go	E-mail:	pwstaff@thunderboltga.org	Quote Term:	1 Year

Site Name:Public Works Generac
(1 Bonaventure Rd THUNDERBOLT GA 31404)

Unit Name: Public Works Generac
Make: Generac
Model: SD40
S/N: 3007109886
Size: 40kW
ATS Qty: 1
Notes:

Year	Month of 1st Service	Service Type	Qty	Sell Price	Extended Price
1	Unknown	Inspection	1	$269.61	$269.61
1	Unknown	Full Service	1	$488.38	$488.38
1	Unknown	Loadbank (2 Hrs)	1	$551.60	$551.60
				Year 1 Total:	$1,309.59

Site Name:Well # 3
(1 Center St By Fire Dept THUNDERBOLT GA 31404)

Unit Name: Well # 3
Make: Generac
Model: SD130
S/N: 3007113303
Size: 130kW
ATS Qty: 1
Notes:

Year	Month of 1st Service	Service Type	Qty	Sell Price	Extended Price
1	Unknown	Inspection	1	$329.70	$329.70
1	Unknown	Full Service	1	$705.38	$705.38
1	Unknown	Loadbank (2 Hrs)	1	$641.60	$641.60
				Year 1 Total:	$1,676.68

Site Name:Well #4
(1 Bonaventure Rd THUNDERBOLT GA 31404)

Unit Name: Well #4
Make: Cummins
Model: DSGAB-1611476
S/N: D160943322
Size: 125kW
ATS Qty: 1
Notes:

Year	Month of 1st Service	Service Type	Qty	Sell Price	Extended Price
1	Unknown	Inspection	1	$332.31	$332.31
1	Unknown	Full Service	1	$707.99	$707.99
1	Unknown	Loadbank (2 Hrs)	1	$641.60	$641.60
				Year 1 Total:	$1,681.90

Year 1 Total:*	$4,668.17
Total Original Amount:	**$4,913.86**
Discount:	**($245.69)**
Total Agreement Amount:*	**$4,668.17**

Quote does not include applicable taxes

Sales and Service

Cummins Inc. dba Cummins Sales and Service
5534 Augusta Road
Savannah, GA 31408
Phone: (912)721-3028

PLANNED EQUIPMENT MAINTENANCE AGREEMENT

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Customer #: 344631	Fax:	(912) 354-2038	Quoted By:	Steve Fuller
Payment Type: Pay As You Go	E-mail:	pwstaff@thunderboltga.org	Quote Term:	1 Year

Total Original Amount:	**$4,913.86**
Discount:	**($245.69)**
Total Agreement Amount:*	**$4,668.17**

Quote does not include applicable taxes

Total Agreement Amount Does Not Include Applicable Taxes. Please call 404-763-0151 or Email Southern.PEM@cummins.com for invoice total prior to sending payment.

Planned Equipment Maintenance Agreements are designed with an automatic renewal provision. Details of this provision are listed in the "Planned Equipment Maintenance Agreement Terms and Conditions". If you do not wish to participate in the auto renew option, please check the box below to opt out.

☐ Opt out of Automatic Renewal.

Selection Required for Load Bank Test
Readings will be taken every 15 minutes, unless otherwise specified.
*If no selection is made, we will perform this option by default

☐ *30% of the EPS nameplate kW rating for 30 minutes, followed by 50% of the EPS nameplate kW rating for 30 minutes, followed by 75% of the EPS nameplate kW rating for 60 minutes for a total of 2 continuous hours

☐ 80% of the EPS nameplate kW rating for 2 continuous hours

☐ Other – Please Specify _____

Please return signed agreement to:
Cummins Inc. d/b/a Cummins Power South
5125 Hwy 85
Atlanta, Ga 30349
Tel #: 404-763-0151

Email: Southern.PEM@cummins.com

Seller hereby agrees to sell to Buyer, and Buyer hereby agrees to buy from Seller, the foregoing products/services upon the terms and conditions set forth in the "Planned Equipment Maintenance Agreement Terms and Conditions" attached hereto, which are hereby incorporated herein by reference.

Customer Approval (Quote ID QT-15980)	Cummins Inc. dba Cummins Sales and Service Approval
Signature: _____	Signature: _____
Date: _____	Date: _____

PLANNED MAINTENANCE AGREEMENT TERMS AND CONDITIONS

These Planned Maintenance Agreement Terms and Conditions, together with the Quote on the front side and the Scope of Services, are hereinafter referred to as this "Agreement" and shall constitute the entire agreement between the customer identified in the Quote ("Customer") and Cummins Inc. ("Cummins") and supersede any previous agreement or understanding (oral or written) between the parties with respect to the subject matter of this Agreement. Customer shall be deemed to have made an unqualified acceptance of these Terms and Conditions and it shall become a binding agreement between the parties on the earliest of the following to occur: (i) Cummins' receipt of Customer's purchase order or purchase order number; (ii) Customer's signing or acknowledgment of this Agreement; (iii) Cummins' release of Products to production pursuant to Customer's oral or written instruction or direction; (iv) Customer's payment of any amounts due to Cummins; or (v) any other event constituting acceptance under applicable law. No prior inconsistent course of dealing, course of performance, or usage of trade, if any, constitutes a waiver of or serves to explain or interpret this Agreement. Electronic transactions between Customer and Cummins will be solely governed by this Agreement, and any terms and conditions on Customer's website or other internet site will be null and void and of no legal effect on Cummins. In the event Customer delivers, references, incorporates by reference, or produces any purchase order or document, any terms and conditions related thereto: (i) shall be null and void and of no legal effect on Cummins, and (ii) this Agreement shall remain the governing terms of the transaction.

1. SCOPE OF SERVICES; PERFORMANCE OF SERVICES. Cummins shall perform the maintenance ("Services") on the equipment identified in the Quote ("Equipment") in accordance with the schedule specified in the Quote. The Services include those services defined in the "Service Event" section of the Quote. No additional services or materials are included in this Agreement unless agreed upon by the parties in writing. Unless otherwise indicated in the Quote, Cummins will provide the labor and tools necessary to perform the Services and shall keep Customer's property free from accumulation of waste materials caused by Cummins' operations. Either party may terminate this Agreement with or without cause by providing thirty (30) days written notice to the other.

2. CUSTOMER OBLIGATIONS. Customer shall provide Cummins safe access to Customer's site and arrange for all related services and utilities necessary for Cummins to perform the Services. During the performance of the Services, Customer shall fully and completely secure all or any part of any facility where the Equipment is located to remove and mitigate any and all safety issues and risks, including but not limited to facility occupants, customers, invitees, or any third party and or property damage or work interruption arising out of the Services. Customer shall make all necessary arrangement to address and mitigate the consequences of any electrical service interruption which might occur during the Services. CUSTOMER IS RESPONSIBLE FOR OPERATING AND MAINTAINING THE EQUIPMENT IN ACCORDANCE WITH THE OWNER'S MANUAL FOR THE EQUIPMENT.

3. PAYMENT TERMS. Unless otherwise agreed to by the parties in writing and subject to credit approval by Cummins, payments are due thirty (30) days from the date of the invoice. If Customer does not have approved credit with Cummins, as solely determined by Cummins, payments are due in advance or at the time of supply of the Services. If payment is not received when due, in addition to any rights Cummins may have at law, Cummins may charge Customer eighteen percent (18%) interest annually on late payments, or the maximum amount allowed by law. Customer agrees to pay all Cummins' costs and expenses (including all reasonable attorneys' fees) related to Cummins' enforcement and collection of unpaid invoices, or any other enforcement of this Agreement by Cummins. Unless otherwise stated, the Quote excludes all applicable local, state, or federal sales and/or use or similar taxes which Cummins is required by applicable laws to collect from Customer and shall be stated on the invoice.

4. **DELAYS.** Any performance dates indicated in this Agreement are estimated and not guaranteed. Cummins shall not be liable for any delays in performance however occasioned, including any that result directly or indirectly from acts of Customer or causes beyond Cummins' control, including but not limited to acts of God, accidents, fire, explosions, flood, unusual weather conditions, acts of government authority, or labor disputes. *AS A RESULT OF THE OUTBREAK OF THE DISEASE COVID-19 ARISING FROM THE NOVEL CORONAVIRUS, TEMPORARY DELAYS IN DELIVERY, LABOUR OR SERVICES FROM CUMMINS AND ITS SUB-SUPPLIERS OR SUBCONTRACTORS MAY OCCUR. AMONG OTHER FACTORS, CUMMINS' DELIVERY OBLIGATIONS ARE SUBJECT TO CORRECT AND PUNCTUAL SUPPLY FROM OUR SUB-SUPPLIERS OR SUBCONTRACTORS, AND CUMMINS RESERVES THE RIGHT TO MAKE PARTIAL DELIVERIES OR MODIFY ITS LABOUR OR SERVICE. WHILE CUMMINS SHALL MAKE EVERY COMMERCIALLY REASONABLE EFFORT TO MEET THE DELIVERY, SERVICE OR COMPLETION OBLIGATIONS SET FORTH HEREIN, SUCH DATES ARE SUBJECT TO CHANGE.*

5. WARRANTY. Cummins shall perform the Services in a reasonable and workmanlike manner. Parts and components supplied under this Agreement are governed by the express written manufacturer's limited warranty. No other warranty for parts or components is provided under this Agreement. All Services shall be free from defects in workmanship for a period of ninety (90) days after completion of Services. In the event of a warrantable defect in workmanship of Services supplied under this Agreement ("Warrantable Defect"), Cummins' obligation shall be solely limited to correcting the Warrantable Defect. Cummins shall correct the Warrantable Defect where (i) such Warrantable Defect becomes apparent to Customer during the warranty period; (ii) Cummins receives written notice of any Warrantable Defect within thirty (30) days following discovery by Customer; and (iii) Cummins has determined that there is a Warrantable Defect. Warrantable Defects remedied under this provision shall be subject to the remaining warranty period of the original warranty of the Services. New parts supplied during the remedy of Warrantable Defects are warranted for the balance of the warranty period still available from the original warranty of such parts. The remedies set forth in this Section 5 shall not be deemed to have failed of their essential purpose so long as Cummins is willing to correct defective Services or refund the purchase price therefor.

6. LIMITATIONS OF WARRANTIES AND LIABILITY. THE REMEDIES PROVIDED IN THE LIMITED WARRANTY AND THIS AGREEMENT ARE THE SOLE AND EXCLUSIVE WARRANTIES AND REMEDIES PROVIDED BY CUMMINS TO THE CUSTOMER UNDER THIS AGREEMENT. EXCEPT AS SET OUT IN THE WARRANTY AND THIS AGREEMENT, AND TO THE EXTENT PERMITTED BY LAW, CUMMINS EXPRESSLY DISCLAIMS ALL OTHER REPRESENTATIONS, WARRANTIES, ENDORSEMENTS, AND CONDITIONS OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING, WITHOUT LIMITATION, ANY STATUTORY OR COMMON LAW IMPLIED REPRESENTATIONS, WARRANTIES AND CONDITIONS OF FITNESS FOR A PURPOSE OR MERCHANTABILITY.

NOTWITHSTANDING ANY OTHER TERM OF THIS AGREEMENT, IN NO EVENT SHALL CUMMINS, ITS OFFICERS, DIRECTORS, EMPLOYEES, OR AGENTS BE LIABLE TO CUSTOMER OR ANY THIRD PARTY FOR ANY INDIRECT, INCIDENTAL, SPECIAL, PUNITIVE, OR CONSEQUENTIAL DAMAGES OF ANY KIND (INCLUDING WITHOUT LIMITATION DOWNTIME, LOSS OF PROFIT OR REVENUE, LOSS OF DATA, LOSS OF OPPORTUNITY, DAMAGE TO GOODWILL, AND DAMAGES CAUSED BY DELAYS) IN ANY WAY RELATED TO OR ARISING FROM CUMMINS' SUPPLY OF PARTS OR SERVICES UNDER THIS AGREEMENT. IN NO EVENT SHALL CUMMINS' LIABILITY TO CUSTOMER OR ANY THIRD PARTY CLAIMING DIRECTLY THROUGH CUSTOMER OR ON CUSTOMER'S BEHALF UNDER THIS AGREEMENT EXCEED THE TOTAL COST OF PARTS AND SERVICES SUPPLIED BY CUMMINS UNDER THIS AGREEMENT. BY ACCEPTANCE OF THIS AGREEMENT, CUSTOMER ACKNOWLEDGES CUSTOMER'S SOLE REMEDY AGAINST CUMMINS FOR ANY LOSS SHALL BE THE REMEDY PROVIDED HEREIN.

7. INDEMNITY. Customer shall indemnify, defend and hold harmless Cummins from and against any and all claims, actions, costs, expenses, damages and liabilities, including reasonable attorneys' fees, brought against or incurred by Cummins related to or arising out of this Agreement or the Services supplied under this Agreement (collectively, the ("Claims"), where such Claims were caused or contributed to by, in whole or in part, the acts, omissions, fault or negligence of the Customer. Customer shall present any Claims covered by this indemnity to its insurance carrier unless Cummins directs that the defense will be handled by Cummins' legal counsel at Customer's expense.

8. CONFIDENTIALITY. Each party shall keep confidential any information received from the other that is not generally known to the public and at the time of disclosure, would reasonably be understood by the receiving party to be proprietary or confidential, whether disclosed in oral, written, visual, electronic or other form, and which the receiving party (or agents) learns in connection with this Agreement including, but not limited to: (a) business plans, strategies, sales, projects and analyses; (b) financial information, pricing, and fee structures; (c) business processes, methods and models; (d) employee and supplier information; (e) specifications; and (f) the terms and conditions of this Agreement. Each party shall take necessary steps to ensure compliance with this provision by its employees and agents.

9. GOVERNING LAW. This Agreement and all matters arising hereunder shall be governed by and construed in accordance with the laws of the State of Indiana without giving effect to any choice or conflict of law provision. The parties agree that the courts of the State of Indiana shall have exclusive jurisdiction to settle any dispute or claim arising in connection with this Agreement.

10. INSURANCE. Upon Customer's request, Cummins will provide to Customer a Certificate of Insurance evidencing Cummins' relevant insurance coverage.

11. ASSIGNMENT. This Agreement shall be binding on the parties and their successors and assigns. Customer shall not assign this Agreement without the prior written consent of Cummins.

12. INTELLECTUAL PROPERTY. Any intellectual property rights created by either party, whether independently or jointly, in the course of the performance of this Agreement or otherwise related to Cummins pre-existing intellectual property or subject matter related thereto, shall be Cummins' property. Customer agrees to assign, and does hereby assign, all right, title, and interest to such intellectual property to Cummins. Any Cummins pre-existing intellectual property shall remain Cummins' property. Nothing in this Agreement shall be deemed to have given Customer a license or any other rights to use any of the intellectual property rights of Cummins.

13. MISCELLANEOUS. Cummins shall be an independent contractor with respect to the Services performed under this Agreement. All notices under this Agreement shall be in writing and be delivered personally, mailed via first class certified or registered mail, or sent by a nationally recognized express courier service to the addresses set forth in the Quote. No amendment of this Agreement shall be valid unless it is writing and signed by the parties hereto. Failure of either party to require performance by the other party of any provision hereof shall in no way affect the right to require such performance at any time thereafter, nor shall the waiver by a party of a breach of any of the provisions hereof constitute a waiver of any succeeding breach. Any provision of this Agreement that is invalid or unenforceable shall not affect the validity or enforceability of the remaining terms hereof.

14. ON-CALL SERVICES. Upon Customer's request, Cummins shall provide on-call services (repair, emergency work or other) on the Equipment ("On-call Services"). Any On-call Services shall be invoiced to the Customer at the Cummins current hour rate (including traveling) and shall be governed by the terms and conditions of this Agreement.

15. PRICING. To the extent allowed by law, actual prices may vary from the price at the time of order placement, as the same will be based on prices prevailing on the date of shipment. Subject to local laws, Cummins reserves the right to adjust pricing on goods and services due to input and labor cost changes and other unforeseen circumstances beyond Cummins' control.

16. To the extent applicable, this contractor and subcontractor shall abide by the requirements of 41 CFR §§ 60-1.4(a), 60-300.5(a) and 60-741.5(a). These regulations prohibit discrimination against qualified individuals based on their status as protected veterans or individuals with disabilities and prohibit discrimination against all individuals based on their race, color, religion, sex, sexual orientation, gender identity or national origin. Moreover, these regulations require that covered prime contractors and subcontractors take affirmative action to employ and advance in employment individuals without regard to race, color, religion, sex, sexual orientation, gender identity, national origin, protected veteran status or disability. The employee notice requirements set forth in 29 CFR Part 471, Appendix A to Subpart A, are hereby incorporated by reference into this contract.

Scope of Services

Generator
Planned Equipment Maintenance

INSPECTION

INTERVALS AVAILABLE: WEEKLY, MONTHLY, QUARTERLY, SEMI-ANNUALLY OR ANNUALLY

BATTERIES AND BATTERY CHARGER
- Visually inspect battery terminal connections
- Verify electrolyte level, vent caps of all cells in the starting battery system
- Visually inspect wiring, connections and insulation
- Record battery charging functions
- Record battery information
- Record battery condition test

FUEL SYSTEM
- Visually inspect ignition system (Natural Gas and Propane Only)
- Record primary tank fuel level
- Inspect engine fuel system for leaks
- Visually inspect all engine fuel hoses, clamps, pipes, components and fittings
- Visually inspect rupture/ containment basin
- Inspect day tank and controls (if applicable)
- Optional - fuel sample for laboratory analysis*

COOLING SYSTEM
- Record coolant level
- Visually inspect for coolant leaks
- Visually inspect drive belts condition
- Verify for proper coolant heater operation
- Record jacket water temperature
- Visually inspect fan, water pump, drives and pulleys
- Visually inspect all coolant hoses, clamps and connections
- Visually inspect radiator condition
- Visually inspect louver for damage
- Visually inspect fan hub and drive pulley for mechanical damage
- Record freeze point of antifreeze protection
- Record DCA level prior to changing coolant filter
- Optional - Coolant sample for laboratory analysis*

LUBRICATION SYSTEM
- Visually inspect engine oil leaks
- Visually inspect engine oil lines and connections
- Record oil level
- Optional - Oil sample for laboratory analysis*

GENSET CONTROLS AND ACCESSORIES
- Visually inspect all engine mounted wiring, senders and devices
- Visually inspect all control mounted components and wiring
- Verify all connecting plugs are tightened and in a good condition
- Visually inspect all accessory components and wiring
- Visually inspect and test lighting indicators

INTAKE AND EXHAUST SYSTEMS
- Visually inspect air filter and housing
- Visually inspect all engine piping and connections
- Record air cleaner restriction
- Visually inspect engine exhaust system for leaks
- Visually inspect rain cap
- Optional – Air filter replacement*
- Optional - Clean crankcase breather or replace filters*

GENERAL CONDITIONS
- Visually inspect governor linkage and oil level
- Visually inspect guards
- Visually inspect enclosure
- Visually inspect engine and generator mounts
- Verify emergency stop operation

TRANSFER SWITCH
- Visually inspect controls and time delay settings
- Verify function of exercise clock and record settings from controller
- Verify remote start control operation
- Record utility / source one voltage

AFTERTREATMENT (Upon request)
- Verify DEF level
- Record DPF restriction
- Visually inspect aftertreatment and controls

SWITCHGEAR (Upon Request)
- Inspection and Full Service quote available upon request.

FULL SERVICE

INCLUDES INSPECTION

OPERATIONAL & FUNCTIONAL REVIEW OF GENERATOR CRITICAL COMPONENTS
- Inspect engine cooling fan & fan drives for excessive wear or shaft wobble
- Check all pulleys, belt tensioners, slack adjusters & idler pulleys for travel, wear & overall condition
- Inspect / lubricate drive bearings, gear or belt drives, and other shaft connecting hardware

LUBRICATION OIL & FILTRATION SERVICE
- Change engine oil
- Change oil, fuel and water filters
- Post lube services operations of genset (unloaded) at rated temperature

* Additional Charge

Any additional repairs, parts, or service which are required will be brought to the attention of the owner. Repairs will only be made after proper authorization from the owner is given to Cummins. Any additional repairs, maintenance or service performed by Cummins or a Planned Equipment Maintenance Agreement holder will be at current Cummins labor rates.

Arc flash boundary and available incident energy shall be identified and marked on equipment being serviced or maintained.

Sales and Service

June 15, 2022

Town Of Thunderbolt
2821 River Dr
Thunderbolt, GA 31404

Re: Planned Maintenance Quote

Attention : Oscar Crosby

Cummins Sales and Service is a premier engine and power generation systems provider committed to delivering fast and proven solutions to our customers. We are pleased to offer you a Planned Maintenance Proposal for your review and approval. Due to the critical nature of your standby power system, this Agreement was developed based on your specific needs and equipment to ensure maximum performance and reliability.

Benefits of Planned Maintenance:

-Improves system reliability.
-Maintenance performed by certified technicians specifically trained in power generation.
-PM customers receive preferred service for unscheduled emergency repairs.
-Creation of a service record for customer equipment.
-Additional maintenance recommendations documented at that time.
Scheduling managed by Cummins Sales and Service to ensure timely maintenance intervals.
-Eliminates administrative burden, covers equipment from multiple vendors.

Please sign, date and return the enclosed Agreement to our office along with any purchase documentation necessary so we can tend to your servicing needs. Planned Maintenance Agreements are "auto-renewed" annually prior to the end of your agreement. Should you have any questions or require additional information on this or any other subject relating to your equipment, please feel free to contact me. We look forward to the opportunity to earn your trust and business.
Sincerely,

Steven P Fuller

Cummins Sales and Service

SAVANNAH GA BRANCH
5534 AUGUSTA RD.
SAVANNAH, GA 31407 9280
Phone: 912-2325565

PLANNED MAINTENANCE AGREEMENT

Customer Address	Customer Contact		Quote Information	
TOWN OF THUNDERBOLT	Contact:	Oscar Crosby	Quote Date:	19-MAY-22
ACCTS PAYABLE	Phone:	912 547-3545	Quote Expires:	19-MAY-23
2821 RIVER DR	Fax:	912 3542038	Quote Num:	167953
Thunderbolt, GA 31404	Cust Id:	344631	Quoted By:	Steven P Fuller
			Quote Term:	1 Year(s)

Site Information

1	TOWN OF THUNDERBOLT	2821 RIVER DR	THUNDERBOLT	GA	31404
2	DOWNING AVE	20 DOWNING AVE	THUNDERBOLT	GA	31404
3	FIRE DEPARTMENT GENERATOR	1 CTR ST	THUNDERBOLT	GA	31404
4	ROBERTSON LIFE STATION	1 ROBERTSON ST	THUNDERBOLT	GA	31404

Site	Unit Number	Manufacturer	Model	Prod Model	Serial Number	Type
1	CITY HALL GEN	CATERPILLAR	D50P3	D50P3	GABL004351	STNBY
2	DOWNING L/S	ONAN	GEN SET	DFCC	E950576384	ST
3	FIRE DEPT GEN	CATERPILLAR	G60	G60	F3OLY00000ANGD	STNDBY
4	ROBERTSON LIF	CATPILLAR	G20UHI	G20UHI	E3928A/001	

Site	Unit Number	Service Event	Qty	Sell Price	Extended Price
1	CITY HALL GEN	PM INSPECTION	1	244.83	244.83
		FULL SERVICE W/LBT	1	844.69	844.69
2	DOWNING L/S	PM INSPECTION	1	230.44	230.44
		FULL SERVICE W/LBT	1	1,484.15	1,484.15
3	FIRE DEPT GEN	PM INSPECTION	1	230.37	230.37
		FULL SERVICE W/LBT	1	814.20	814.20
4	ROBERTSON LIFT	PM INSPECTION	1	194.65	194.65
		FULL SERVICE W/LBT	1	703.84	703.84

This renewal proposal covers two (2) service visits annually: one (1) Full Maintenance Service with a two-hour (2 hr.) Load Bank Test (LBT) and one (1) Maintenance Inspection. This proposal does not include replacement of batteries, air filters or coolant over two gallons. All services are to be performed during normal business hours, unless otherwise specified.

Services to be scheduled as follows:
Full Service with LBT (2-hr) - July 2022; Inspection- January 2023.

This is a one (1) year proposal, running from 01 July 2022 through 31 June 2023, which will be automatically renewed unless cancelled by either party.

Thank you for choosing Cummins! Please feel free to contact us with any questions or comments.

This renewal proposal is being sent on behalf of Steve Fuller, Territory Manager, any questions please contact Steve Fuller.

Steve Fuller
Cummins Sales and Service

Sales and Service

PLANNED MAINTENANCE AGREEMENT

Customer Address	Customer Contact		Quote Information	
TOWN OF THUNDERBOLT	Contact:	Oscar Crosby	Quote Date:	19-MAY-22
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2821 RIVER DR	Fax:	912 3542038	Quote Num:	167953
Thunderbolt, GA 31404	Cust Id:	344631	Quoted By:	Steven P Fuller
			Quote Term:	1 Year(s)

Jacksonville and Savannah
Mobile: (912) 257- 2844
Email: steve.fuller@cummin.com

Please contact Steve Fuller (912) 257-2844 or steve.fuller@cummins.com with any questions or concerns.

Standard Agreement Amount	**$4,747.17**
Proposal Total	**$4,747.17**

THERE ARE ADDITIONAL CONTRACT TERMS AND CONDITIONS ON THE REVERSE SIDE OF THIS DOCUMENT, INCLUDING LIMITATIONS OF WARRANTIES AND LIABILITY, WHICH ARE EXPRESSLY INCORPORATED HEREIN. CUSTOMER ACKNOWLEDGES THAT THE CONTRACT TERMS AND CONDITIONS HAVE BEEN READ, FULLY UNDERSTOOD, AND ACCEPTED.

Customer Approval

Signature: _____

Date: _____

CUMMINS INC

Signature: _____

Date: _____

PLANNED MAINTENANCE AGREEMENT TERMS AND CONDITIONS

These Planned Maintenance Agreement Terms and Conditions, together with the Quote on the front side and the Scope of Services, are hereinafter referred to as this 'Agreement' and shall constitute the entire agreement between the customer identified in the Quote ('Customer') and Cummins Inc. ('Cummins') and supersede any previous agreement or understanding (oral or written) between the parties with respect to the subject matter of this Agreement. In the event of any inconsistency between this Agreement and any purchase order, terms and conditions or other document produced or delivered by Customer, the terms and conditions of this Agreement shall take precedence.

1. SCOPE OF SERVICES; PERFORMANCE OF SERVICES. Cummins shall perform the maintenance ('Services') on the equipment identified in the Quote ('Equipment') in accordance with the schedule specified in the Quote. The Services include those services defined in the 'Service Event' section of the Quote. No additional services or materials are included in this Agreement unless agreed upon by the parties in writing. Unless otherwise indicated in the Quote, Cummins will provide the labor and tools necessary to perform the Services and shall keep Customer's property free from accumulation of waste materials caused by Cummins' operations. Either party may terminate this Agreement with or without cause by providing thirty (30) days written notice to the other.

2. CUSTOMER OBLIGATIONS. Customer shall provide Cummins safe access to Customer's site and arrange for all related services and utilities necessary for Cummins to perform the Services. During the performance of the Services, Customer shall fully and completely secure all or any part of any facility where the Equipment is located to remove and mitigate any and all safety issues and risks, including but not limited to facility occupants, customers, invitees, or any third party and or property damage or work interruption arising out of the Services. Customer shall make all necessary arrangement to address and mitigate the consequences of any electrical service interruption which might occur during the Services. CUSTOMER IS RESPONSIBLE FOR OPERATING AND MAINTAINING THE EQUIPMENT IN ACCORDANCE WITH THE OWNER'S MANUAL FOR THE EQUIPMENT.

3. PAYMENT TERMS. Unless otherwise agreed to by the parties in writing and subject to credit approval by Cummins, payments are due thirty (30) days from the date of the invoice. If Customer does not have approved credit with Cummins, as solely determined by Cummins, payments are due in advance or at the time of supply of the Services. If payment is not received when due, in addition to any rights Cummins may have at law, Cummins may charge Customer eighteen percent (18%) interest annually on late payments, or the maximum amount allowed by law. Customer agrees to pay all Cummins' costs and expenses (including all reasonable attorneys' fees) related to Cummins' enforcement and collection of unpaid invoices, or any other enforcement of this Agreement by Cummins. Unless otherwise stated, the Quote excludes all applicable local, state, or federal sales and/or use or similar taxes which Cummins is required by applicable laws to collect from Customer and shall be stated on the invoice.

4. DELAYS. Any performance dates indicated in this Agreement are estimated and not guaranteed. Cummins shall not be liable for any delays in performance however occasioned, including any that result directly or indirectly from acts of Customer or causes beyond Cummins' control, including but not limited to acts of God, accidents, fire, explosions, flood, unusual weather conditions, acts of government authority, or labor disputes.

5. WARRANTY. Cummins shall perform the Services in a reasonable and workmanlike manner. Parts and components supplied under this Agreement are governed by the express written manufacturer's limited warranty. No other warranty for parts or components is provided under this Agreement. All Services shall be free from defects in workmanship for a period of ninety (90) days after completion of Services. In the event of a warrantable defect in workmanship of Services supplied under this Agreement ('Warrantable Defect'), Cummins' obligation shall be solely limited to correcting the Warrantable Defect. Cummins shall correct the Warrantable Defect where (i) such Warrantable Defect becomes apparent to Customer during the warranty period; (ii) Cummins receives written notice of any Warrantable Defect within thirty (30) days following discovery by Customer; and (iii) Cummins has determined that there is a Warrantable Defect. Warrantable Defects remedied under this provision shall be subject to the remaining warranty period of the original warranty of the Services. New parts supplied during the remedy of Warrantable Defects are warranted for the balance of the warranty period still available from the original warranty of such parts. The remedies set forth in this Section 5 shall not be deemed to have failed of their essential purpose so long as Cummins is willing to correct defective Services or refund the purchase price therefor.

6. LIMITATIONS OF WARRANTIES AND LIABILITY.
THE REMEDIES PROVIDED IN THE LIMITED WARRANTY AND THIS AGREEMENT ARE THE SOLE AND EXCLUSIVE WARRANTIES AND REMEDIES PROVIDED BY CUMMINS TO THE CUSTOMER UNDER THIS AGREEMENT. EXCEPT AS SET OUT IN THE WARRANTY AND THIS AGREEMENT, AND TO THE EXTENT PERMITTED BY LAW, CUMMINS EXPRESSLY DISCLAIMS ALL OTHER REPRESENTATIONS, WARRANTIES, ENDORSEMENTS, AND CONDITIONS OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING, WITHOUT LIMITATION, ANY STATUTORY OR COMMON LAW IMPLIED REPRESENTATIONS, WARRANTIES AND CONDITIONS OF FITNESS FOR A PURPOSE OR MERCHANTABILITY.
NOTWITHSTANDING ANY OTHER TERM OF THIS AGREEMENT, IN NO EVENT SHALL CUMMINS, ITS OFFICERS, DIRECTORS, EMPLOYEES, OR AGENTS BE LIABLE TO CUSTOMER OR ANY THIRD PARTY FOR ANY INDIRECT, INCIDENTAL, SPECIAL, PUNITIVE, OR CONSEQUENTIAL DAMAGES OF ANY KIND (INCLUDING WITHOUT LIMITATION DOWNTIME, LOSS OF PROFIT OR REVENUE, LOSS OF DATA, LOSS OF OPPORTUNITY, DAMAGE TO GOODWILL, AND DAMAGES CAUSED BY DELAYS) IN ANY WAY RELATED TO OR ARISING FROM CUMMINS' SUPPLY OF PARTS OR SERVICES UNDER THIS AGREEMENT. IN NO EVENT SHALL CUMMINS' LIABILITY TO CUSTOMER OR ANY THIRD PARTY CLAIMING DIRECTLY THROUGH CUSTOMER OR ON CUSTOMER'S BEHALF UNDER THIS AGREEMENT EXCEED THE TOTAL COST OF PARTS AND SERVICES SUPPLIED BY CUMMINS UNDER THIS AGREEMENT. BY ACCEPTANCE OF THIS AGREEMENT, CUSTOMER ACKNOWLEDGES CUSTOMER'S SOLE REMEDY AGAINST CUMMINS FOR ANY LOSS SHALL BE THE REMEDY PROVIDED HEREIN.

7. INDEMNITY. Customer shall indemnify, defend and hold harmless Cummins from and against any and all claims, actions, costs, expenses, damages and liabilities, including reasonable attorneys' fees, brought against or incurred by Cummins related to or arising out of this Agreement or the Services supplied under this Agreement (collectively, the ('Claims'), where such Claims were caused or contributed to by, in whole or in part, the acts, omissions, fault or negligence of the Customer. Customer shall present any Claims covered by this indemnity to its insurance carrier unless Cummins directs that the defense will be handled by Cummins' legal counsel at Customer's expense.

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Scope of Services

Generator
Planned Equipment Maintenance

INSPECTION

INTERVALS AVAILABLE: WEEKLY, MONTHLY, QUARTERLY, SEMI-ANNUALLY OR ANNUALLY

BATTERIES AND BATTERY CHARGER
- Visually inspect battery terminal connections
- Verify electrolyte level, vent caps of all cells in the starting battery system
- Visually inspect wiring, connections and insulation
- Record battery charging functions
- Record battery information
- Record battery condition test

FUEL SYSTEM
- Visually inspect ignition system (Natural Gas and Propane Only)
- Record primary tank fuel level
- Inspect engine fuel system for leaks
- Visually inspect all engine fuel hoses, clamps, pipes, components and fittings
- Visually inspect rupture/ containment basin
- Inspect day tank and controls (if applicable)
- Optional - fuel sample for laboratory analysis*

COOLING SYSTEM
- Record coolant level
- Visually inspect for coolant leaks
- Visually inspect drive belts condition
- Verify for proper coolant heater operation
- Record jacket water temperature
- Visually inspect fan, water pump, drives and pulleys
- Visually inspect all coolant hoses, clamps and connections
- Visually inspect radiator condition
- Visually inspect louver for damage
- Visually inspect fan hub and drive pulley for mechanical damage
- Record freeze point of antifreeze protection
- Record DCA level prior to changing coolant filter
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- Visually inspect engine oil leaks
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- Visually inspect all engine mounted wiring, senders and devices
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- Verify all connecting plugs are tightened and in a good condition
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- Visually inspect enclosure
- Visually inspect engine and generator mounts
- Verify emergency stop operation

TRANSFER SWITCH
- Visually inspect controls and time delay settings
- Verify function of exercise clock and record settings from controller
- Verify remote start control operation
- Record utility / source one voltage

AFTERTREATMENT (Upon request)
- Verify DEF level
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- Visually inspect aftertreatment and controls

SWITCHGEAR (Upon Request)
- Inspection and Full Service quote available upon request.

FULL SERVICE

INCLUDES INSPECTION

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- Inspect engine cooling fan & fan drives for excessive wear or shaft wobble
- Check all pulleys, belt tensioners, slack adjusters & idler pulleys for travel, wear & overall condition
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- Change engine oil
- Change oil, fuel and water filters
- Post lube services operations of genset (unloaded) at rated temperature

* Additional Charge

Any additional repairs, parts, or service which are required will be brought to the attention of the owner. Repairs will only be made after proper authorization from the owner is given to Cummins. Any additional repairs, maintenance or service performed by Cummins or a Planned Equipment Maintenance Agreement holder will be at current Cummins labor rates.

Arc flash boundary and available incident energy shall be identified and marked on equipment being serviced or maintained.

LEASE

STATE OF GEORGIA

CHATHAM COUNTY

THIS LEASE INDENTURE made and entered into as of the ____ day of _____, 2022, by and between the TOWN OF THUNDERBOLT, a duly organized municipality within the State of Georgia and Eric Fournier (hereinafter referred to as Fournier).

WITNESSETH

PREMISES: Fournier for and in consideration of the rents reserved to be paid and the covenants to be performed by Fournier. does hereby lease from Thunderbolt that certain portion of property owned by Thunderbolt, referred to as space in the Senior Citizens Building known as Room _____.

TERM: The term of this lease shall commence on the 1st day of_____, 2022 and shall continue until the 31st day of December, 2022. Thereafter the term of the lease shall be year to year starting on the 1st day of January and ending on the 31st day of December with the rent being negotiated on each renewal beginning on January 1st of each year.

RENT: During the term of this lease Fournier shall provide to Thunderbolt IT services as set forth in a separate contract with the base cost of such services being $_____ per month paid by Thunderbolt to Fournier. In consideration of Thunderbolt providing space to Fournier for his use for IT services Fournier will not charge Thunderbolt for IT service overages for IT service provided to Thunderbolt for services over and above the basic monthly service under the IT contract.

USE: The premises hereby leased by Thunderbolt to Fournier shall be used only for the purpose of establishing and operating IT services and for no other purpose or purposes.

BUSINESS LICENSE: Fournier shall at all times during this lease or any renewal maintain the appropriate business license and pay annually the appropriate occupational tax as required by applicable Town ordinances.

INDEMNITY: Fournier. shall indemnify and save Thunderbolt harmless by reason of Fournier's occupancy and use of the premises from and against any and all losses, costs, damages, expenses and liabilities in connection with claims for damages as a result of bodily, emotional or other injury or death of any person or property damage to any property except if any of the aforesaid is caused by the negligence of Thunderbolt. Fournier shall also indemnify and save lessor harmless by reason of Fournier's occupancy or use of the premises from and against the defense of any action or proceeding to discharge the premises from any charge, lien or encumbrance or in obtaining possession after default of Fournier under any material, term or condition, of this agreement or its termination and against any action at law or in equity arising by reason of Fournier's occupancy or use of the premises or performance or alteration, maintenance or improvement thereon or therein.

INSURANCE: Fournier shall, during and through the time that this lease is in force, maintain the following insurance: COMPREHENSIVE GENERAL LIABILITY INSURANCE with limits of $100,000 one person and $200,000 one accident, and property damage limits of $_____ which insurance shall contain a special endorsement recognizing and insuring any liability accruing to Fournier. under the preceding Paragraph hereof.

RENEWAL: The parties agree that this lease shall automatically renew for annual terms (from January through December). Any increases in the rent shall be agreed upon at the time of renewal provided, however, that Thunderbolt shall not be obligated to renew any such lease if there has been any default or material failure by Fournier in the performance of the conditions of this lease. Notwithstanding any other provision of this agreement, Thunderbolt shall not be obligated to renew the term of this lease unless a majority of the Mayor & Council agree that the renewal of the terms of this lease are in the best interest of the Town of Thunderbolt.

TERMINATION: Notwithstanding any other provision of this lease Thunderbolt may terminate the lease with 60 days written notice to Fournier.

GENERAL PROVISIONS

This lease contains the entire agreement of the parties and no representations, inducements, promises, or agreements, oral or otherwise, not embodied herein, shall be of any force or effect.

IN WITNESS WHEREOF, the parties have caused this instrument to be executed and their respective seals to be affixed hereto by persons thereunto duly authorized,

This _____ day of _____, 2022.

_____

TOWN OF THUNDERBOLT

Mayor

_____

Eric Fournier

DANA WILLIAMS
MAYOR

ROBERT L. MILIE
TOWN ADMINISTRATOR

DEATRE N. DENION
CLERK/ZONING ADMINISTRATOR

CHARLES W. BARROW
TOWN ATTORNEY

COUNCIL MEMBERS

DAVID P. CRENSHAW

EDWARD M. DROHAN, III

LAWRENCE WARD

BROOKS BARBAREE

JAMES LAVIN

BETHANY SKIPPER-GREER

To be on the agenda –
-Blessing of the Fleet Contract – Consent Agenda – Recommend Approval – Only Cost is Deposit – and that will be refunded upon sponsorship – Reviewed and approved via legal
-Cummings Generator Contract – Consent Agenda – Recommend Approval - Best value and cost and continuing relationship with vendor -– Reviewed and approved via legal
-Disaster Hauler Primary Contract (Ceres)– Consent Agenda- Recommend Approval - Approved via Council – Reviewed and approved via legal
-Disaster Monitor (Witt O'Brians) – Consent Agenda – Recommend Approval – Council Approved – Reviewed and approved via legal
-Eric Fournier (IT Consultant) Lease – Consent Agenda – Recommend Approval – Will use unused office in the Senior Center – This will be an exchange for services, where we no longer pay for any overages for time in exchange for space – estimated cost savings for the Town of $5,000 - $6,000 annually – Reviewed and approved via legal

- Finance Report
- Dept. & Admin Report
- PD Lt. Promotion
- Life Saver Awards
-

Department Reports
Manager Section Update (Website, STR, AARP, HVAC Server Room Project)
Disaster Monitor Contract Award

August Town Council Meeting 2022 – Monthly Administrator Report

Town Hall –

Roof – AC on Police side is out – part has been ordered and is set to be completed early September (part on back order) ~~August~~.

Around Town –

Re-paving - Working to use our 2020 Local Maintenance Improvement Grant (LMIG) to repave Rowland as the road is in need and the infrastructure is sound – This grant must be used and accounted for this fiscal year to be eligible to receive 2023 LMIG funding – Bid has been modified as we are working with the County Asst. Manager and Engineering to use economies of scale to be added on their paving cycle – IGA is now in place and awaiting schedule from County of work

Road work – Working with DPW Director Crosby on a comprehensive Shell Road infrastructure replacement as well as phase two repaving to hopefully consolidate 2021, 2022, 2023, and 2024 LMIG funding - Shell Road Modification to Plan – await zoning modifications if necessary and put in a shut off valve – will explain – but in a 20 year plan – we may have infrastructure 20 years old prior to use

Grants –

- Evaluation a water reduction grant via the state as shared by Councilman Drohan
- In process of applying for a Tree grant via Ms. Sue DeRosa

Process Improvement – All still on the table

-Tax Commissioner meeting and will bring before Council a potential IGA for the TC to perform Thunderbolt's tax collection – increased collections – free up in house staff – more coordination with software – immediate liens and tax sales – not possible until next year – meeting set up with Deatre & Tax Commissioner
- Exploring a Shell Rd District to allow for more commercial while recognizing water conservation as a must
-Exploring a Human Resource Consultant for liability protection and to ensure our polices are legal, up to date and provide as much protection as possible to the Town and staff
-Bannon Drive Survey Results are in and attached to this report – believe based on financials and split in survey will try the speed sign first
-Working with Bill Lucas on a cost savings plan for the Town and staff regarding medical expenses

Town Departments –

Finance –

-Please see attached reports for March plus Ms. Brett assessment

Code Enforcement –

- In addition to normal enforcement actions beginning to look at condemning or moving towards that on certain structures within Town Limits – legal is involved to ensure the next step in subpoena process and accountability – order of tablet for in field use and tie into our current permitting software – Moving Code Enforcement under Municipal Court as we start to move Code into more enforcement and fines etc…
-

Police –

- See attached report

Fire -

- See attached report– Fire Station roof – sealing of structure and mold remediation next – see FD report of second floor transition

DPW-

- See attached report – Palm Trees planted on Mechanics – second phase of Mechanics underway to remove grass – low lying attractive plants and mulch – low maintenance design to look better, cost less and save labor– Designs for Honey Park are forthcoming – Possible forthcoming donation regarding trees down to Honey Park as a replacement for trees possibly being taken down

Newer Town Topics

- LOST (Local Option Sales Tax) Negotiations Training and Preparation – Including State Expert – Retired COS Manager Michael Brown – this is a 10 year set percentage – now heading into mediation
- Thunderbolt Tidy Program set to start– All departments involved to include sanitation for bulk items – this is receiving excellent feedback and next date is July 12th
- Working with a vendor to possibly reduce our Telecom billing etc… - no cost to the Town unless money is saved
- Woring with a vendor on Utility Billing for Power to save money – no cost if money is not saved
- Continuing SOLAR discussion with four vendors
- Continuing Fiber discussion with vendors and consultant possibility from Speros

Bannon Drive Survey Results

59 Surveys Distributed. 28 Surveys returned.

Do you walk, bike, or go along the sides of the streets in your neighborhood not using a vehicle?	Yes	No
Response	96%	4%

If yes, how many times per week?	More than 5	5 to 3	1 to 2	Rarely	Never
Response	46%	29%	14%	7%	4%

Do you have pets or children who might be near the street?	Yes	No
Response	71%	29%

Please rank in order of concern	1	2	3	4	5
Speeding	0%	4%	4%	32%	61%
Overflow Parking	39%	18%	11%	29%	4%
Large Truck Traffic	0%	11%	21%	21%	46%
Amount of Traffic	0%	14%	25%	29%	32%
Being able to walk along the side of the road	4%	11%	7%	29%	50%

Speed Bump	54%
Flashing Sign	50%
WRITE IN: Speed Cameras	4%

What is your age group?	18-25	26-40	41-65	Over 65	Omitted
Response	0%	7%	57%	32%	4%

INTER OFFICE CORRESPONDENCE

TO: Town Administrator, Robert Milie

FROM: Chief Sean Clayton

DATE: September 1, 2022

SUBJECT: Monthly Report for August 2022

POLICE DEPARTMENT:
During the month of August, we finished our firearms qualification so all officers are qualified with their primary, and secondary weapons. I've reached out to the Board of Education Police and we now have keys for the knox box located on the outside of Johnson High School. The knox box holds the keys for the exterior doors of the school so that officers will have the ability to enter the school in the event of an emergency. Only PD and Fire have access to these keys. We are also coordinating with Johnson High School Emergency Response Team officer to start conducting active shooter training.

New batteries were purchased for the mobile radar sign, so with the new batteries we should get about a week to two weeks of runtime out of the sign. The flashing light for the school zone on Whatley Avenue had to have a flasher replaced so everything is up and running and September 5, 2022 was the last day of the 30-day warning period.

Officer CJ Wilson was nominated by other officers on the department as the Officer of the Year. Officer Wilson will also be recognized at the 9-1-1 Ceremony being held at the American Legion Post 184 at 2p, September 11, 2022. Officer Wilson is a solid officer and I'm very proud of the job he's done thus far, and the experience he brings with him.

DEPARTMENT MONTHLY ACTIVITY REPORT

INCIDENT REPORTS	33
ACCIDENT REPORTS	5
MISC. REPORTS	2
DOMESTIC VIOLENCE CASES	3
D.U.I. ARRESTS	0
PERSONS ARRESTED	9
TRAFFIC CITATIONS	63
WRITTEN WARNINGS	23
ANIMAL COMPLAINTS	0

2021/2022 Monthly Comparison																										
	Jan		Feb		Mar		Apr		May		Jun		Jul		Aug		Sep		Oct		Nov		Dec		Yearly	
Classification of Offenses	21	22	21	22	21	22	21	22	21	22	21	22	21	22	21	22	21	22	21	22	21	22	21	22	2021	2022
Homicide	0	**0**	0	0	0	**0**	0	0	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**
Sexual Assault	0	**0**	0	**0**	0	**0**	0	0	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**	0	**0**	1	**0**	1	0
Robbery	0	**1**	0	**1**	0	**0**	0	0	0	**0**	0	**0**	0	**0**	0	**2**	0	**0**	0	**0**	0	**0**	0	**0**	0	4
Agg Assault	1	**0**	1	**0**	0	**1**	0	0	1	**0**	1	**0**	0	**2**	0	**0**	0	**0**	0	**0**	0	**0**	1	**0**	5	3
Simple Assault	2	**0**	0	2	2	**0**	1	1	2	2	1	**2**	4	**2**	0	**1**	1	**0**	1	**0**	3	0	2	**0**	19	10
Burglary	0	**1**	0	**0**	0	**0**	1	0	0	2	0	**0**	0	**3**	0	**0**	0	**0**	1	0	1	0	1	**0**	4	6
Larceny-Theft	2	**1**	5	**1**	11	**2**	0	9	3	9	2	**4**	1	**6**	3	**1**	3	**0**	1	0	2	1	3	**0**	36	33
Auto Theft	0	**0**	0	0	0	**0**	0	0	1	1	1	**1**	0	**3**	1	**0**	1	**0**	0	0	0	0	0	**0**	4	5
	5	3	6	**4**	**13**	**3**	2	10	7	14	5	7	5	16	4	**4**	**5**	**0**	**3**	0	6	0	8	0	69	61

MUNICIPAL COURT

The fees and fines the Court collected for the month of August were $16,872.90

Mission Statement

"The mission of the Thunderbolt Fire Department is to minimize loss of life, property and environment in the Town of Thunderbolt from both natural and man-made disasters, life threatening situations and to assist other emergency agencies. We will achieve this mission through professional/progressive training and fire education while providing first class services to our community."

MAYOR AND COUNCIL REPORT

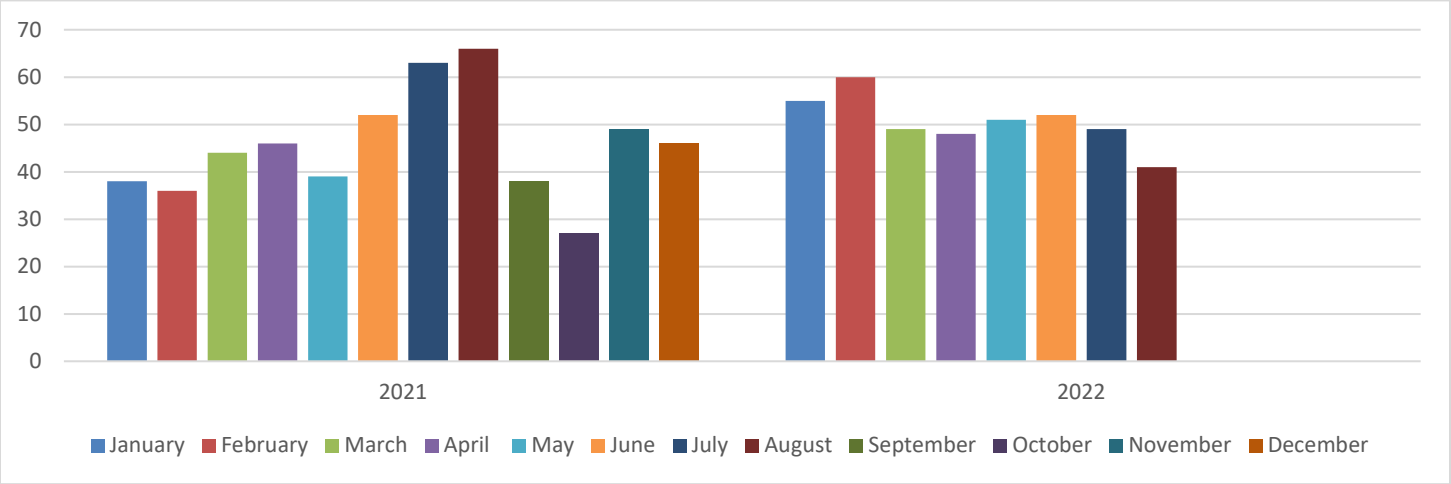
September Report

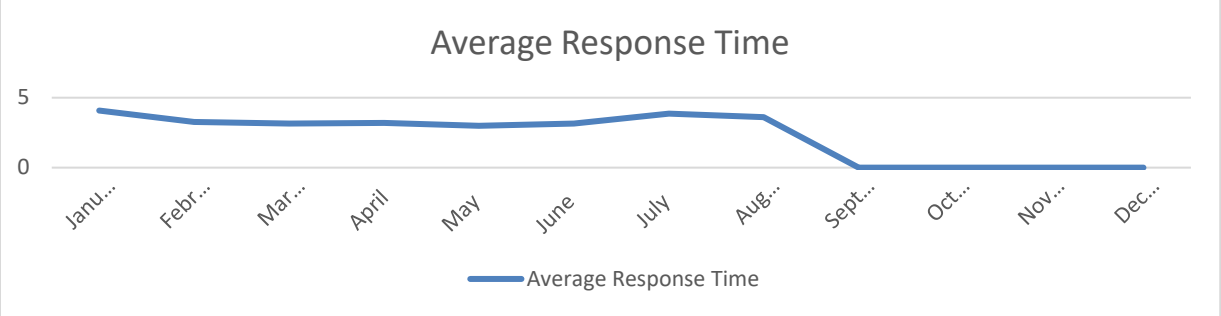
Prepared by:
Andrew Bateman
Chief of Thunderbolt Fire Department

Thunderbolt Fire Incident Breakdown

	JAN	FEB	MAR	APR	MAY	JUN	JUL	AUG	SEPT	OCT	NOV	DEC	YTD
Fire Response	16	17	23	15	22	18	15	26					152
EMS Response	39	43	26	33	29	34	34	15					253
Grand Total	55	60	49	48	51	52	49	41	0	0	0	0	405

Call Comparison Between 2021 & 2022





Department News

Highlighted Incidents:

- No Major Incidents to Report

Highlighted Projects:

- Chief Office and Emergency Operation Center/Classroom Update
    - Scheduling for Spray foam and Sheetrock as begun
    - Electrical is about 90% Complete
    - A/C work is about 80% Complete
    - All Bay Exterior work completed.
- Roof Leaks
    - Work being completed week of September 6.
- Town Hall Roof Mats
    - Mats have been placed on roof and will be scheduling to cut and put in place.

Chief Report:

- Department is continuing to search for Open Full Time Position.
    - Still accepting applications for position
    - Chief is back on regular schedule, Part timers are filling the open position

- Recognizing the following Town Employees:

  While at the Town Employee appreciation night at the Savannah Bananas, a team member collapsed while pitching. These individuals below jumped the wall and immediately stepped into action providing life saving acts on player. There actions gave this person a second chance of life and I am beyond grateful to have and work next to these individuals.

    - Firefighter Kristopher Fain and Wife Paramedic Heather Fain
    - Firefighter Drew Davies
    - Firefighter Frank Koualczuk
    - Police Chief Sean Clayton
    - Police Lieutenant Brandon Runyon

Thunderbolt Fire Department
Training

Online Training: **9 Hours**

Company Training: **19 Hours**

Outside Training: **0 Hour**

YTD 2022 Hours: 454.41 Hours

MONTHLY STATUS REPORT

FOR

PUBLIC WORKS

FOR THE

TOWN OF THUNDERBOLT

AUGUST 2022

Water Treatment Reports

GEORGIA
DEPARTMENT OF NATURAL RESOURCES
ENVIRONMENTAL PROTECTION DIVISION

Coastal H 2 O
Laboratory: 600
115 Oglethorpe Professional Ct. Suite 8
Savannah, Ga. 31406
912.352.4311
coastalh2o@comcast.net

Water Report

Water System: GA 0510006 Thunderbolt Water System 2

Sampling Location: ***3213 Pierce***
Sample Type: ***Routine***
Lab Sample No.: **116119**

Collected by Oscar Crosby
Sample Collected:8/16/2022 10:50
Lab Received: 8/16/2022 11:34
Chlorine Residual: **0.70**

Analyte	Method	Start Date /Time	End Date/Time
Coliform TCR	9223B	8/16/2022 11:36	8/17/2022 13:00

Results:

Detection limits: Absent

Total Coliform: Absent
E. Coli: Absent

Absent *- Total Coliform Absent indicates this sample is suitable for consumer usage. No further action required.*

Present*- Total Coliform Present indicates that disease-causing microbes may be present.*

Report Date: 8/17/2022

By: _____
Laboratory Director

Drinking Water Compliance Unit, 2 Martin Luther King Jr. Drive, Suite 1152 East, Atlanta, GA 30334

GEORGIA
DEPARTMENT OF NATURAL RESOURCES
ENVIRONMENTAL PROTECTION DIVISION

Coastal H 2 O
Laboratory: 600
115 Oglethorpe Professional Ct. Suite 8
Savannah, Ga. 31406
912.352.4311
coastalh2o@comcast.net

Water Report

Water System: GA 0510006 Thunderbolt Water System 3

Collected by Oscar Crosby

Sampling Location: ***2610 Dogwood***
Sample Type: ***Routine***
Lab Sample No.: **116120**

Sample Collected:8/16/2022 10:43
Lab Received: 8/16/2022 11:34
Chlorine Residual: **1.20**

Analyte	Method	Start Date /Time	End Date/Time
Coliform TCR	9223B	8/16/2022 11:36	8/17/2022 13:00

Results:

Detection limits: Absent

Total Coliform: Absent
E. Coli: Absent

Absent *- Total Coliform Absent indicates this sample is suitable for consumer usage. No further action required.*

Present- *Total Coliform Present indicates that disease-causing microbes may be present.*

Report Date: 8/17/2022

By: _____
Laboratory Director

Drinking Water Compliance Unit, 2 Martin Luther King Jr. Drive, Suite 1152 East, Atlanta, GA 30334

GEORGIA
DEPARTMENT OF NATURAL RESOURCES
ENVIRONMENTAL PROTECTION DIVISION

Coastal H 2 O
Laboratory: 600
115 Oglethorpe Professional Ct. Suite 8
Savannah, Ga. 31406
912.352.4311
coastalh2o@comcast.net

Water Report

Water System: GA 0510006 Thunderbolt Water System 1

Collected by Oscar Crosby

Sampling Location: ***Nellie Johnson Park***
Sample Type: ***Routine***
Lab Sample No.: **116118**

Sample Collected:8/16/2022 11:02
Lab Received: 8/16/2022 11:34
Chlorine Residual: **0.60**

Analyte	Method	Start Date /Time	End Date/Time
Coliform TCR	9223B	8/16/2022 11:36	8/17/2022 13:00

Results:

Detection limits: Absent

Total Coliform: Absent
E. Coli: Absent

Absent *- Total Coliform Absent indicates this sample is suitable for consumer usage. No further action required.*

Present- *Total Coliform Present indicates that disease-causing microbes may be present.*

Report Date: 8/17/2022

By: _____
Laboratory Director

Drinking Water Compliance Unit, 2 Martin Luther King Jr. Drive, Suite 1152 East, Atlanta, GA 30334

Water Distribution Reports

Thunderbolt Meter

Public Works _____ 4,200 gals.

Fire Department _____ 7,300 gals.

Senior Citizens _____ 3,600 gals.

Town Hall _____ 31,200 gals.

Thompson Park _____ 47,470 gals.

Honey Park _____ 460 gals.

Nellie Johnson Park _____ 140 gals.

Cesoroni Ball Field _____ 40 gals.

Downing St. Lift Station
Gross Pumped _____ Pending

Savannah Water Usage _____ 2,326,706 gals.

Line Flushing _____ 7,200 gals.

Chlorides: Well #3 10 ppm Well #4 80 ppm

State of Georgia
Department of Natural Resources
Environmental Protection Division

ENVIRONMENTAL PROTECTION DIVISION
DRINKING WATER PROGRAM
GROUND WATER OPERATION REPORT

Drinking Water Permitting & Engineering
2 Martin Luther King Jr. Drive Suite 1362 East
Atlanta, GA 30334

System Name: Thunderbolt Water System
WSID #: GA- 510006
Plant Name: Well #4
Plant ID# :
County: Chatham
Permit # : 510006
Summary of (MONTH) AUGUST
(YEAR): 2022

Day of Month	Raw Water Treated* (Gallons)	Treated Water Pumped to Distribution System* (Gallons)	Amount of Fluoride Used (lb or gal)	Finished Water Analysis: Chlorine Free Available (mg/L)	Finished Water Analysis: Fluoride (mg/L)	Finished Water Analysis: pH Value (S.U.)	Remarks
1	143,557	143,557		1.11		8.3	
2	280,703	280,703		0.94		8.4	
3	202,054	202,054		1.65		8.4	
4	279,633	279,633		1.23		8.4	
5	297,700	297,700		1.07		8.3	
6	206,690	206,690		0.75		8.2	
7	243,420	243,420		0.84		8.2	
8	254,740	254,740		1.01		8.2	
9	331,265	331,265		0.59		8.2	
10	250,543	250,543		0.73		8.2	
11	279,578	279,578		0.85		8.2	
12	298,274	298,274		1.99		8.3	
13	218,638	218,638		1.07		8.2	
14	246,690	246,690		1.13		8.2	
15	277,838	277,838		0.99		8.3	
16	192,683	192,683		0.98		8.3	
17	228,882	228,882		0.87		8.3	
18	280,516	280,516		1.40		8.3	
19	94,328	94,328		1.65		8.3	
20	0	0		1.06		8.3	
21	0	0		0.23		8.1	
22	0	0		0.32		8.1	
23	148,099	148,099		0.81		8.1	
24	237,215	237,215		1.31		8.1	
25	200,634	200,634		1.04		8.1	
26	309,372	309,372		1.05		8.1	
27	291,276	291,276		1.70		8.1	
28	159,806	159,806		1.08		8.1	
29	227,742	227,742		0.95		8.1	
30	235,645	235,645		0.94		8.1	
31	186,296	186,296		1.35		8.1	
Total	6,603,817	6,603,817	0	32.69	0	254.60	
Days	31	31	0	31	0	31	
Avg.	213,026	213,026	0.00	1.05	0.00	8.21	
Max.	331,265	331,265	0	1.99	0	8.4	
Min.	0	0	0	0.23	0	8.1	

*Treated and/or Pumped values should be reported as a total for a 24 hour period beginning 0000-2400.
(e.g., Take reading at same time each day so that it is for 24 hours)

Type Fluoride Compound Used: n/a
Type Chlorine Compound Used: Sodium Hypochlorite

I certify that all information contained on this form is correct and true to the best of my knowledge.

Signature:
Title: Public Works Manager
Print Name: Oscar Crosby II
Certification Class: III
Phone #: 912-644 7999

State of Georgia
Department of Natural Resources
Environmental Protection Division

ENVIRONMENTAL PROTECTION DIVISION
DRINKING WATER PROGRAM
GROUND WATER OPERATION REPORT

Drinking Water Permitting & Engineering
2 Martin Luther King Jr. Drive Suite 1362 East
Atlanta, GA 30334

System Name: Thunderbolt Water System
Plant Name: Well # 3
County: Chatham
Summary of (MONTH) AUGUST

WSID #: GA- 510006
Plant ID# :
Permit # : 510006
(YEAR): 2022

Day of Month	Raw Water Treated* (Gallons)	Treated Water Pumped to Distribution System* (Gallons)	Amount of Fluoride Used (lb or gal)	Finished Water Analysis: Chlorine Free Available (mg/L)	Finished Water Analysis: Fluoride (mg/L)	Finished Water Analysis: pH Value (S.U.)	Remarks
1	0	0		0.00	0.0	0.0	No water withdrawn from
2	0	0					the ground.
3	0	0					
4	0	0					
5	0	0					
6	0	0					
7	0	0					
8	0	0					
9	0	0					
10	0	0					
11	0	0					
12	0	0					
13	0	0					
14	0	0					
15	0	0					
16	0	0					
17	0	0					
18	0	0					
19	0	0					
20	0	0					
21	0	0					
22	0	0					
23	0	0					
24	0	0					
25	0	0					
26	0	0					
27	0	0					
28	0	0					
29	0	0					
30	0	0					
31	0	0					
Total	0	0	0	0.00	0	0.00	
Days	31	31	0	1	1	1	
Avg.	0	0	0.00	0.00	0.00	0.00	
Max.	0	0	0	0	0	0	
Min.	0	0	0	0	0	0	

*Treated and/or Pumped values should be reported as a total for a 24 hour period beginning 0000-2400.
(e.g., Take reading at same time each day so that it is for 24 hours)

Type Fluoride Compound Used: n/a
Type Chlorine Compound Used: Sodium Hypochlorite

I certify that all information contained on this form is correct and true to the best of my knowledge.

Signature: [signature]
Title: Public Works Manager

Print Name: Oscar Crosby II
Certification Class: III
Phone #: 912-644 7999

Comprehensive Work Order Report

Description	January	February	March	April	May	June	July	August	September	October	November	December	YTD
Water													
Cut-on	45	38	46	38	26	36	47	44					320
Cut-off	42	36	41	41	21	34	43	36					294
Red-tagged residences	0	0	0	0	0	0	0	0					0
Complaints- quality	1	1	0	0	1	1	1	1					6
Complaints- LWP	0	0	0	0	1	0	0	1					2
Meters read	1104	1096	1099	1098	1103	1095	1093	1097					8785
Meters re-read	10	3	8	5	7	9	4	3					49
Meters/Boxes replaced	0	0	0	6	0	0	1	1					8
New meters installed	0	0	0	0	1	0	0	0	1				2
Data Logs	2	8	4	14	4	10	4	6					52
Lines repaired/leaks	4	0	4	0	3	4	2	1					18
Hydrant flushed	2	0	0	0	2	4	4	2					14
Wastewater													
Complaints	0	0	0	0	0	0	0	0					0
Repairs- managed	0	0	0	0	1	0	0	1					2
Repairs- enacted	0	0	0	0	1	0	0	1					2
Spills	0	0	0	0	0	0	0	0					0
Back-ups	0	0	0	0	0	0	0	0					0
LS call-outs	0	0	0	0	4	0	0	4					8
Sanitation													
Garbage Tons collected	117.65	100.9	91.42	121.43	142.02								573.42
RECY Tons collected	13.81	20.18	24.18	15.61	16.3								90.08
Dry Trash Emptied	0	0	0	0	0	0	0	0					0
Complaints	0	0	0	0	0	0	0	3					3
Cans replaced/repaired	0	0	0	0	0	0	0	0					0
General Maintenance													
Facilities/Parks repairs	15	19	23	12	13	19	15	25					141
Road repairs	4	3	3	6	0	0	8	3					27
Signs repaired/installed	5	8	4	3	2	3	0	0					25
Stormwater													
Tide Gates/Outfalls	0	0	0	0	0	0	0	0					0
Canals/Ditches	2	6	7	16	4	4	8	0					47
Structures	0	1	0	0	0	0	0	0					1
Repairs	0	2	0	0	0	0	0	0					2
Maintenance	6	0	0	0	0	0	0	14					20
Inspections	18	15	42	0	0	0	0	0					75

Thunderbolt Development and Resource Utilization Project (TDRUP)

(1st Meeting Held on 09/08/2022, 1-2 PM)

Committee Membership

Council Members	Present
Edward Drohan, PhD	X
Larry Ward	
James Lavin	
<u>Staff Members</u>	
Bob Milie	X
Deatre Denion	X
Oscar Crosby	X

- Discussion of Purpose of TDRUP

The purpose of this project is to evaluate the various challenges related to infrastructure relative to potential future development within the Town of Thunderbolt. The primary goal is to be able to provide to the Town Council the pertinent data required in order to formulate policy that responsibly manages resources, infrastructure and development throughout the town respecting the rights of property owners and the general citizenry relative to fairness and quality of life as these might be impacted by future development.

Development Districts (DD) were assigned for the purpose of data collection as follows:

-River Dr DD

-Victory Drive DD

-Shell Rd Corridor DD

-Bonaventure Ave DD

-Downing Ave DD

-Individual Lots – Town Wide DD

-Blighted Properties and Vacant Properties – Town Wide DD

-Miscellaneous Properties - Town Wide DD

DDs will be assessed based on the following factors

Current Zoning Status

Development Status

- D = Developed
- U = Undeveloped
- PD = Partially Developed
- IP = Development in Process
- W = Wetlands
- Developed Water Service Needs
- Developed Sewer Service Needs
- W&S Infrastructure Needs
- Street/Transportation Infrastructure Improvement Needs

Scoring- An Example

A central issue in this research relates to the sewer resources and how it can fairly be shared among the stakeholders, citizens and developers. I suggest that we use a fairly simple analytical model for this purpose.

Daily Limits
minus Buffer for Emergencies =
Rational Daily Sewer Resources

Rational Daily Sewer Resources
minus Current Average Sewer Utilization =
Available Surplus Daily Sewer Resources

Each property is then scored based on its current zoning status for the number of housing units based an assumption of 2.75 occupants per unit.

These scored values will then be totaled across each District and then Town-wide to provide us with the Potential Sewer Resource Utilization.

Available Surplus Daily Sewer Resources minus

Potential Sewer Resource Utilization =

Projected Sewer Resource Availability.

Projected Sewer Resource Availability

provides us with an important but only one of the necessary measures Council will need to make create responsible, data driven policy relative to future development in Thunderbolt.

Data collection for the TDRUP has begun and is currently ongoing. Oscar, Deatre and Bob have all taken on responsibilities in that regard and the hope that this project can be completed in the next 30-45 days.

The results hopefully will provide the Council with solid information regarding the complex process of policy development relative to land development in a rapidly changing financial and utilization landscape.

Progress to Date

- TDRUP Worksheet and DD Maps
- Committee Member Goals and Progress to Date

TDRUP

River Drive Development District

(All Properties Zoned RDD)

Property ID	Current Zoning Status	Development Status D= Developed U=Undeveloped P=Partial Developed IP= Dev. In Process W=Wetlands	Developed Water Service Needs	Developed Sewer Service Needs	W&S Infrastructure Improvements Y/N	Street/Transportation Infrastructure Improvements R=Roadway W=Walkway	
30004 07002	RDD	U					
30004 07002A	RDD	U					
30004 07003	RDD	U					
30005 04040	RDD	W					
30005 05002	RDD	W					
30005 04015	RDD	U					
30005 06004B	RDD	U					
30005 06004F	RDD	U					
30005 06004A	RDD	P					
30005 06003	RDD	U					
30005 06002	RDD	IP					
30005 06001	RDD	P					
30005 06001A	RDD	P					
30006 16001A	RDD	P					
30006 16001	RDD	U					
30006 16004	RDD	U					
30006 16003	RDD	P					
30006 16003A	RDD	P					
30005 04011	RDD	D- River Supply Facing Tuberson					
30005 04011E	RDD	D- River Supply Facing River Dr					
30005 06004C	RDD	D- River Services					

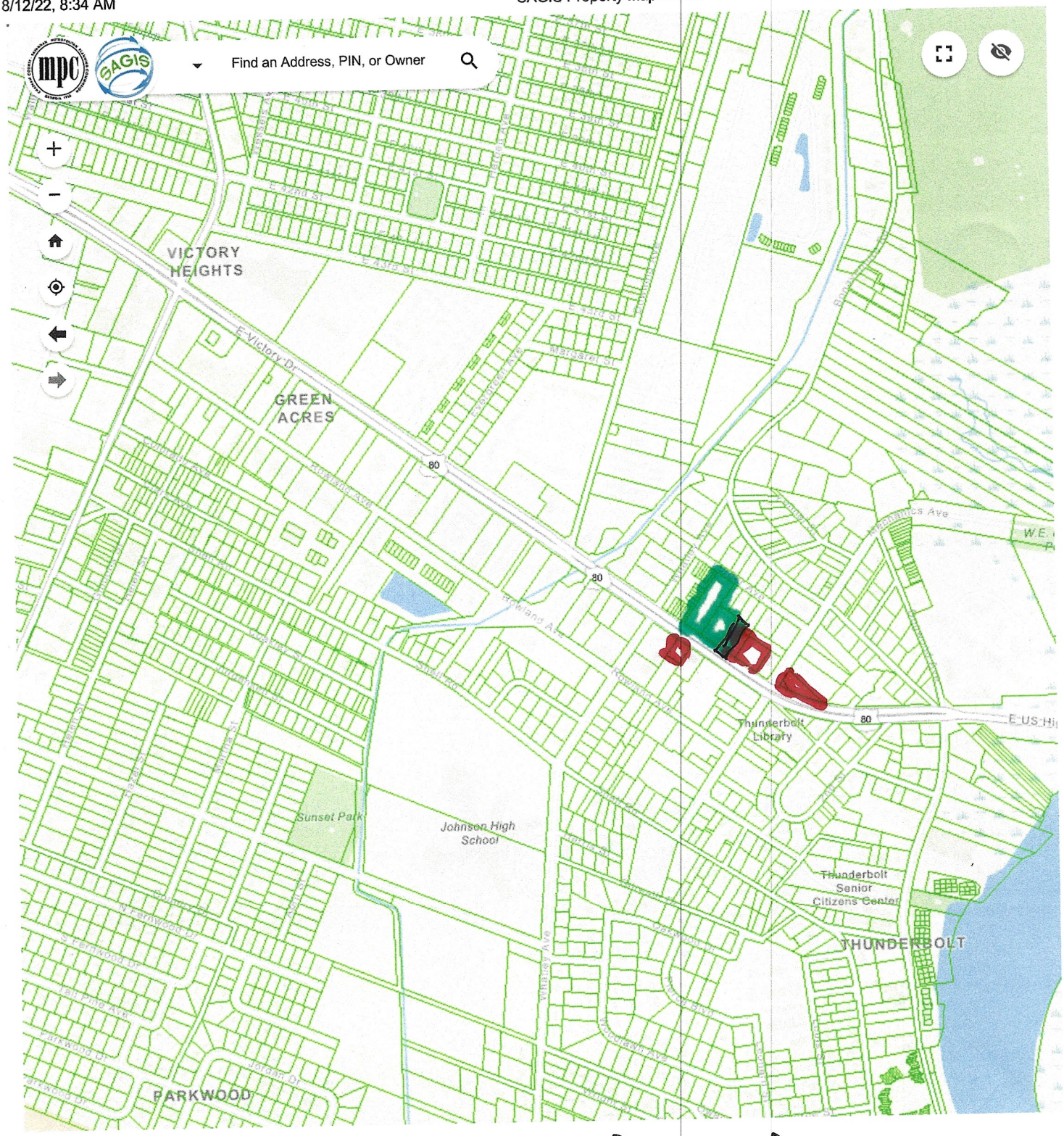
Find an Address, PIN, or Owner
E US Highway 80
Thunderbolt
Senior
Citizens Center
THUNDERBOLT
Nellie Johnson
River Drive District
DEVELOPED
UNDEVELOPED
PARTIAL DEVELOPED
DEVELOPMENT IN PROGRESS
WETLANDS
-81.049 32.029 Degrees
0 150 300ft

TDRUP

Victory Drive Development District

(All Properties Zoned VDD)

Property ID	Current Zoning Status	Development Status D= Developed U=Undeveloped P=Partial Developed IP= Dev. In Process W=Wetlands	Developed Water Service Needs	Developed Sewer Service Needs	W&S Infrastructure Improvements Y/N	Street/Transportation Infrastructure Improvements R=Roadway W=Walkway
30004 13014	VDD	U				
30003 05005	VDD	Chatham County				
30004 01017	VDD	P				
30004 01003	VDD	P				
30004 01004	VDD	P				
30004 01005	VDD	U				
30004 01006	VDD	U				
30004 02006	VDD	U				
30004 02006A	VDD	U				



VICTORY DRIVE DISTRICT

UNDEVELOPED

PARTIAL DEVELOP.

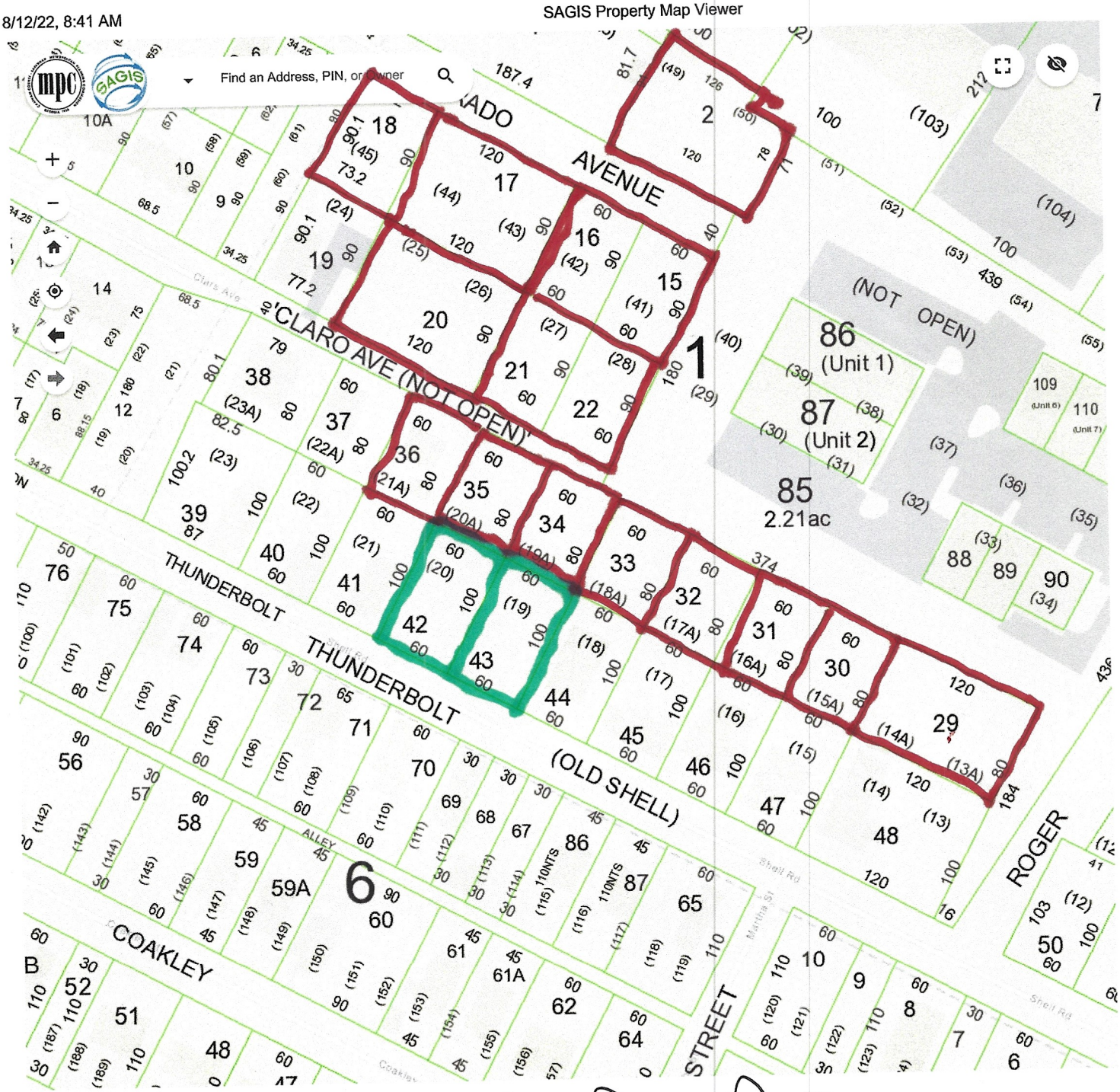
-81.050 32.032 Degrees

0 300 600ft

TDRUP

Shell Road Corridor

Property ID	Current Zoning Status	Development Status D= Developed U=Undeveloped P=Partial Developed IP= Dev. In Process W=Wetlands	Developed Water Service Needs	Developed Sewer Service Needs	W&S Infrastructure Improvements Y/N	Street/Transportation Infrastructure Improvements R=Roadway W=Walkway
Freeman 30003 01043 30003 01042	B	P				
Freeman 30003 01035 30003 01034	R-2	U				
Harris 30003 01033	B	U				
Harris 30003 01032 30003 01031 30003 01030	R-2	U				
30003 01029	R-2	U				
30003 01036	R-2	U				
Marner 30003 01022 30003 01021 30003 01015 30003 01016 30003 01018	R-2	U				
30003 01020	R-2	U				
30003 01017	R-2	U				
30003 01002	R-2	U				



SHELL RD DEV. DIST

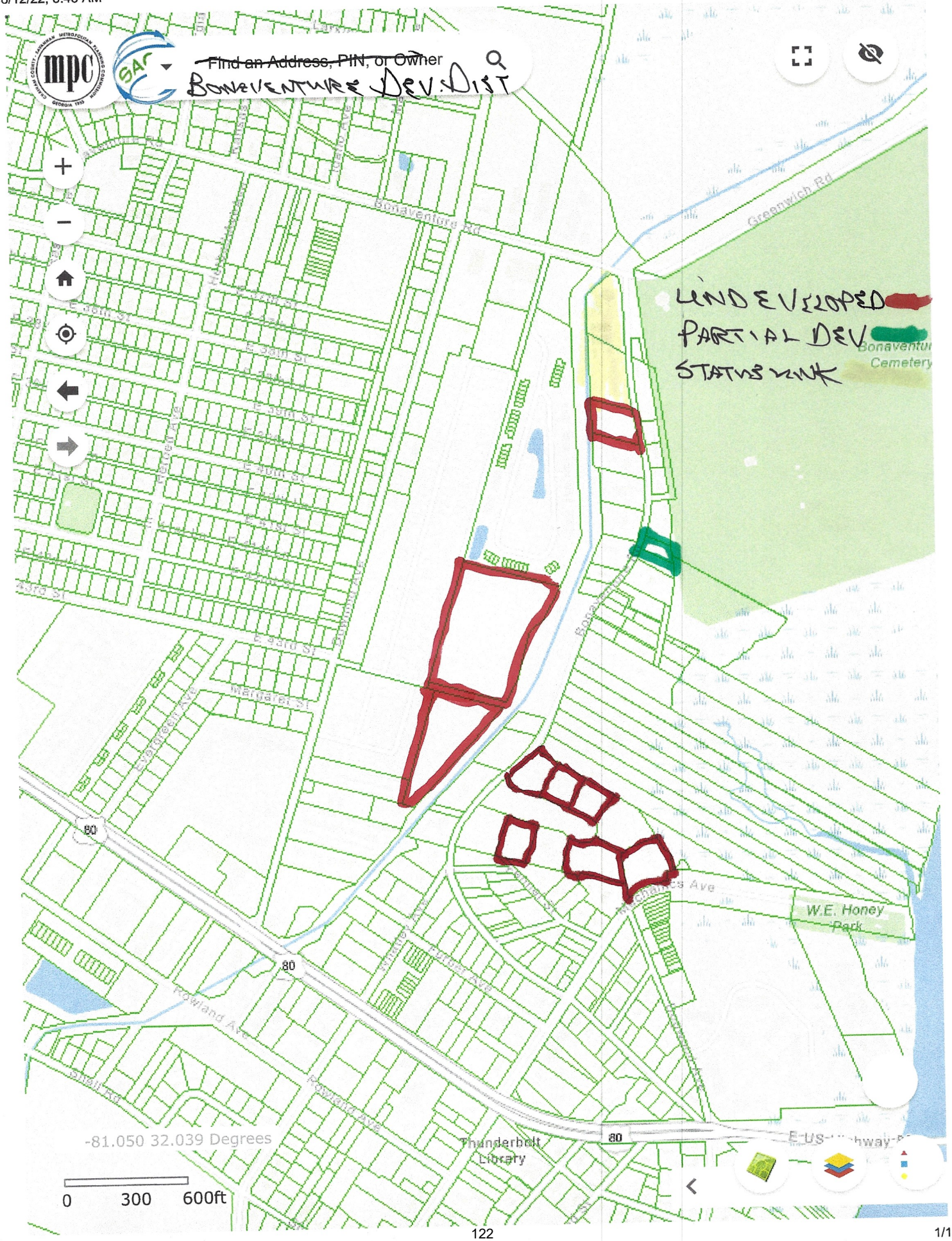
UNDEVELOPED

PARTIAL DEV.

TDRUP

Bonaventure Ave Development District

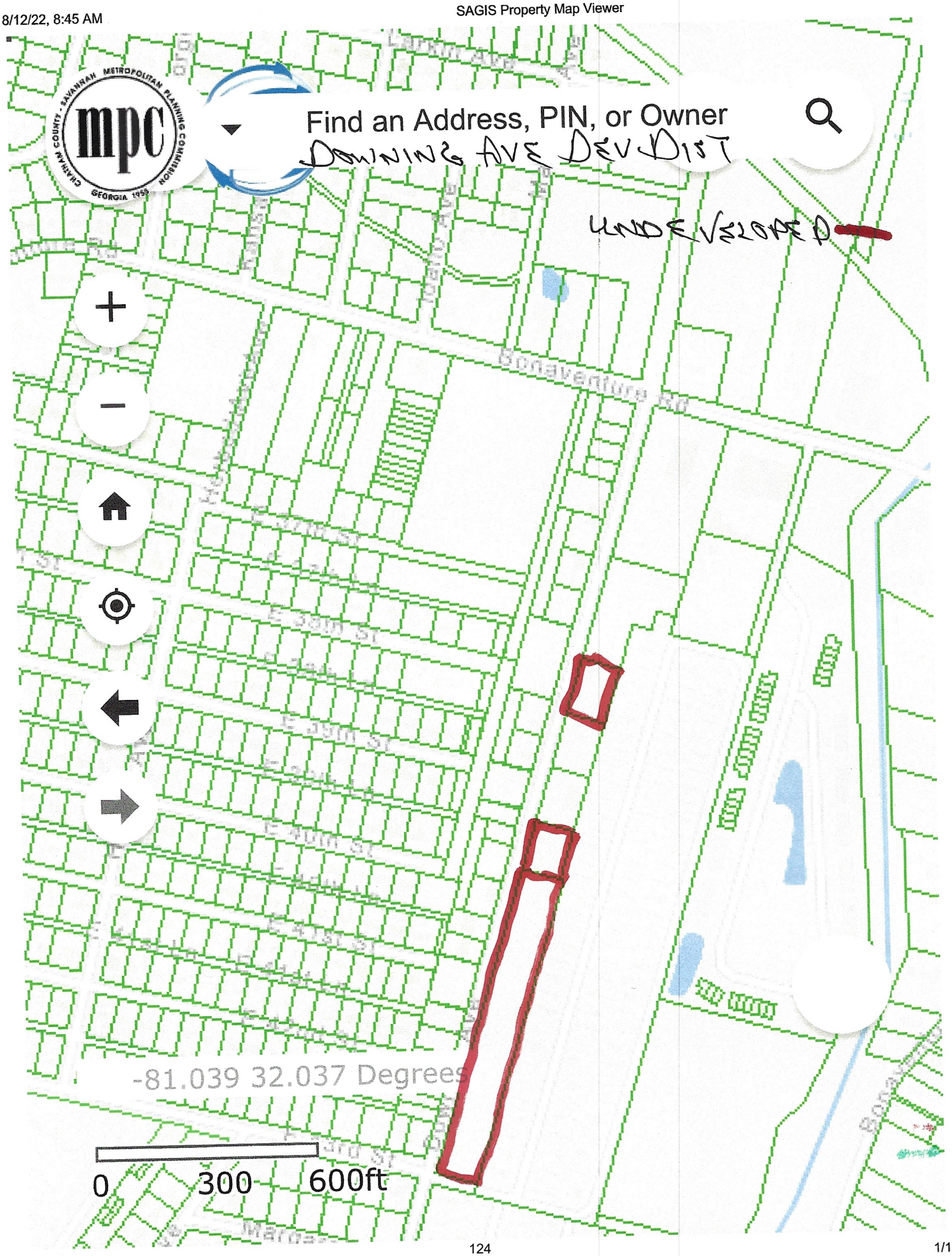
Property ID	Current Zoning Status	Development Status D= Developed U=Undeveloped P=Partial Developed IP= Dev. In Process W=Wetlands	Developed Water Service Needs	Developed Sewer Service Needs	W&S Infrastructure Improvements Y/N	Street/Transportation Infrastructure Improvements R=Roadway W=Walkway
Williams Hollow 30002 06031 30002 06046 30002 06039 30002 06034 30002 06035 30002 06036	R-1	U & P				
30002 02015	R-3	U				
County Access to Canal	No Zone	Development/Access Status Unknown				
30001 02010	R-3	U				
30001 02011	R-2	U				
30001 02005	R-2	P				
30001 02007	B	Development Status Unknown				


Find an Address, PIN, or Owner
BONAVENTURE DEV. DIST
UNDEVELOPED
PARTIAL DEV
STATUS UNK
Bonaventure Cemetery
Greenwich Rd
Bonaventure Rd
E 40th St
E 39th St
E 38th St
E 37th St
E 36th St
Margaret St
Lorraine Ave
Rowland Ave
Rowland Ave
Rowland Ave
Bonaventure Ln
Bonaventure Ln
Bonaventure Ln

TDRUP

Downing Ave Development Zone

Property ID	Current Zoning Status	Development Status D= Developed U=Undeveloped P=Partial Developed IP= Dev. In Process W=Wetlands	Developed Water Service Needs	Developed Sewer Service Needs	W&S Infrastructure Improvements Y/N	Street/Transportation Infrastructure Improvements R=Roadway W=Walkway
30001 01002 Johnson Tract Subdivision in Process	R-3 Currently- 13 Lots R-1 in Process	U				
30001 01009 Regency	PB	U				
30001 01014	PB	U				


Find an Address, PIN, or Owner
DOWNING AVE DEV DIST
UNDEVELOPED
Bonaventure Rd
E 37th St
E 39th St
E 40th St
E 41st St
E 42nd St
-81.039 32.037 Degrees
0 300 600ft

TDRUP

Individual Lots (Undeveloped)

Property ID	Current Zoning Status	Development Status D= Developed U=Undeveloped P=Partial Developed IP= Dev. In Process W=Wetlands	Developed Water Service Needs	Developed Sewer Service Needs	W&S Infrastructure Improvements Y/N	Street/Transportation Infrastructure Improvements R=Roadway W=Walkway

TDRUP

Blighted Properties and Vacant Properties

Property ID	Current Zoning Status	Development Status D= Developed U=Undeveloped P=Partial Developed IP= Dev. In Process W=Wetlands	Developed Water Service Needs	Developed Sewer Service Needs	W&S Infrastructure Improvements Y/N	Street/Transportation Infrastructure Improvements R=Roadway W=Walkway

TDRUP

Miscellaneous Properties

Property ID	Current Zoning Status	Development Status U=Undeveloped P=Partial Developed IP= Dev. In Process W=Wetlands	Developed Water Service Needs	Developed Sewer Service Needs	W&S Infrastructure Improvements Y/N	Street/Transportation Infrastructure Improvements R=Roadway W=Walkway